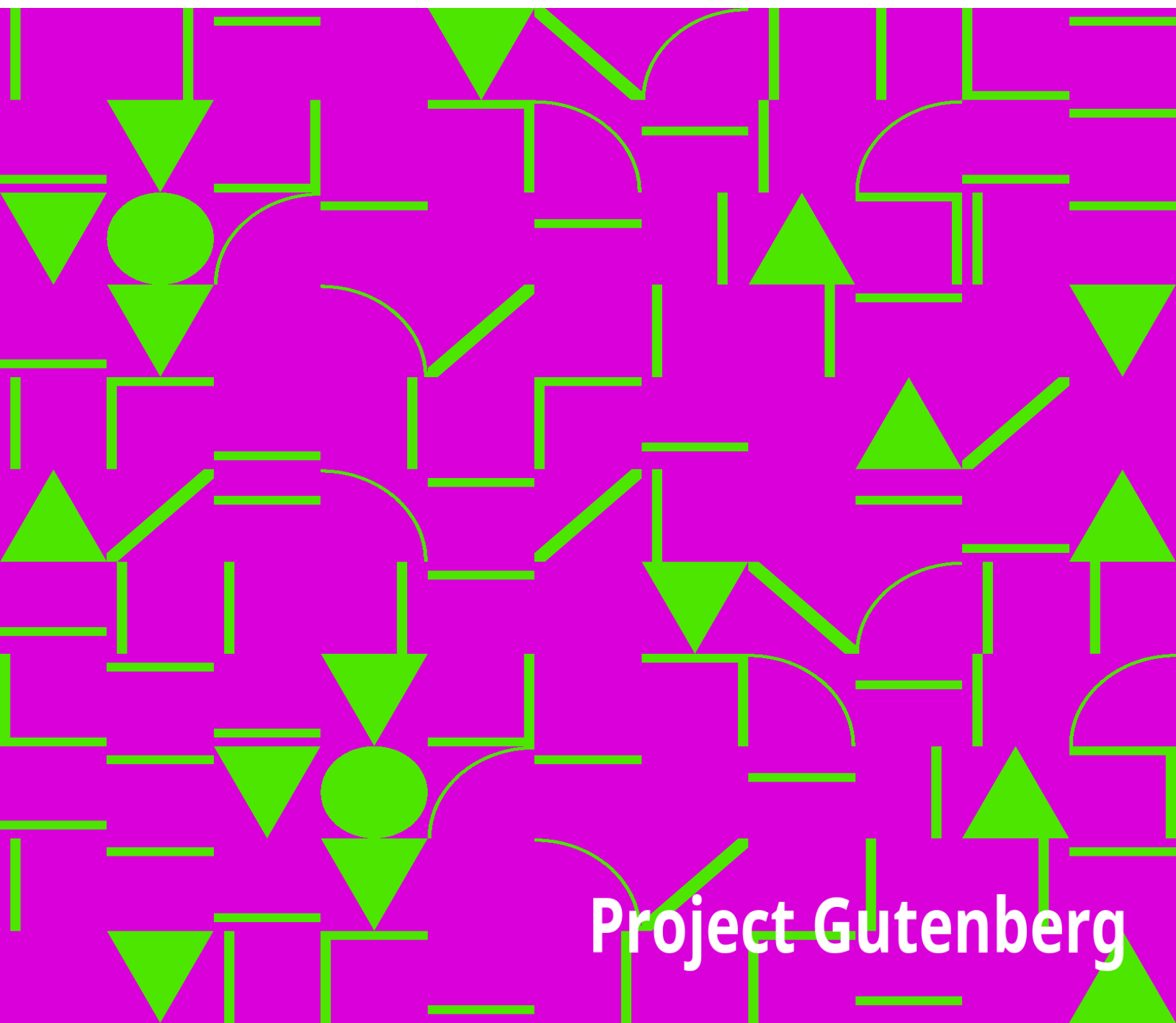


The Smugglers: Picturesque Chapters in the Story of an Ancient Craft

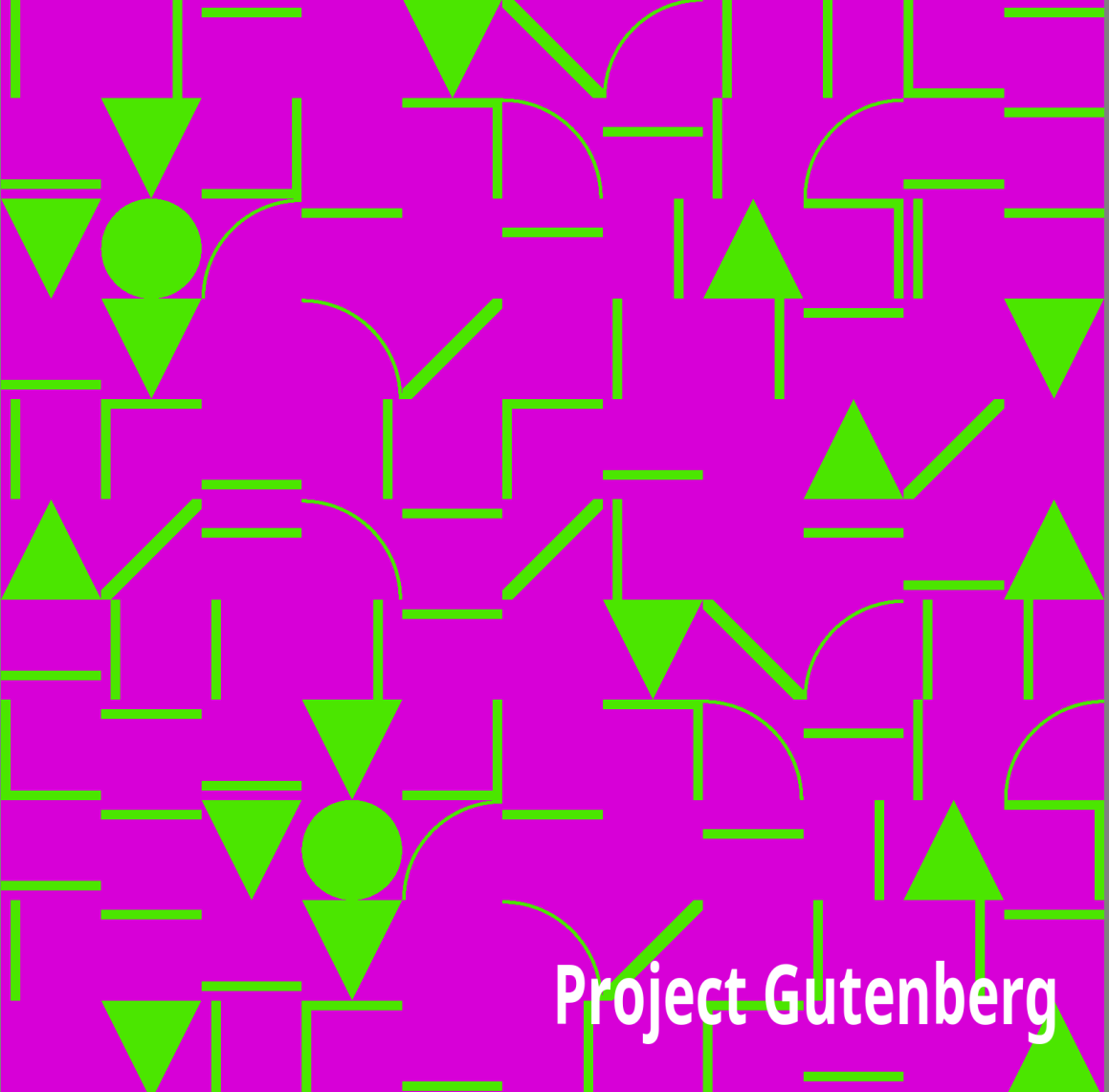
Charles G. Harper



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THE SMUGGLERS

PICTURESQUE CHAPTERS IN THE
STORY OF AN ANCIENT CRAFT

BY

CHARLES G. HARPER

“SMUGGLER.—A wretch who, in defiance of the laws, imports or exports goods without payment of the customs.”—DR. JOHNSON

ILLUSTRATED BY PAUL HARDY, BY THE AUTHOR
AND FROM OLD PRINTS AND PHOTOGRAPHS



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PREFACE

OPINIONS have ever been divided on the question of the morality, or the immorality, of smuggling. This is not, in itself, remarkable, since that subject on which all men think alike has not yet been discovered; but whatever the views held upon the question of the rights and wrongs of the “free-traders”’ craft, they have long since died down into abstract academic discussion. Smuggling is, indeed, not dead, but it is not the potent factor it once was, and to what extent Governments are justified in taxing or restricting in any way the export or the import of goods will not again become a living question in this country until the impending Tariff Reform becomes law. There have been those who, reading the proofs of this book, have variously found in it arguments for, and others arguments against, Protection; but, as a sheer matter of fact, there are in these pages no studied arguments either way, and facts are here presented just as they are retrieved from half-forgotten records, with no other ulterior object than that of entertainment. But if these pages also serve to show with what little wisdom we are, and generally have been, governed, they may not be without their uses. England, it may surely be gathered, here and elsewhere, is what she is by sheer force of dogged middle-class character, and in spite of her statesmen and lawgivers.

CHARLES G. HARPER

PETERSHAM, SURREY,
July 1909.

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INTRODUCTORY

Customs dues and embargoes on imports and exports are things of immemorial antiquity, the inevitable accompaniments of civilisation and luxury; and the smugglers, who paid no dues and disregarded all prohibitions, are therefore of necessity equally ancient. Carthage, the chief commercial community of the ancient world, was probably as greatly troubled by the questions of customs tariffs and smuggling as was the England of George the Third. Without civilisation, and the consequent demand for the products of other lands, the smuggler's trade cannot exist. In that highly organised condition of so-styled civilisation which produces wars and race-hatreds and hostile tariffs and swollen taxation, the smuggler becomes an important person, a hateful figure to governments, but not infrequently a beneficent being to the ill-provided—in all nations the most numerous class—to whom he brought, at a reasonable price, and with much daring and personal risk, those comforts which, when they had paid toll to the Chancellor of the Exchequer, were all but unattainable.

The chief defence, on the score of morals, set up by those few smugglers who ever were at pains to prove that smuggling could be no crime, was that customs duties were originally imposed in the time of Charles the Second to provide funds for the protection of our coasts from the Algerine and Barbary pirates who then occasionally adventured thus far from their piratical lurks in the Mediterranean and ravaged the more remote villages of our seaboard. When these dangers ceased, contended these smugglers on their defence, the customs dues should automatically have been taken off; but they were, on the contrary, greatly increased.

This view, or excuse, or defence—call it how we will—was, however, entirely without historical foundation. It is true, indeed, that some ports had been taxed, and that customs dues had been imposed for this purpose, but customs charges were immemorially older than the seventeenth century.

There were probably such imposts in that lengthy era when Britain was a Roman colony, and we certainly hear of customs charges being levied in the reign of Ethelred, when a toll of one halfpenny was charged upon every small boat arriving at Billingsgate, and one penny upon larger boats, with sails.

These pages will show that not only import, but also export smuggling was long continued in England, and not only so, but that the export smuggling, notably that of wool, was for centuries the most important, if not the only, kind. The prohibition of sending wool out of the kingdom was, of course, introduced with the object of fostering the cloth manufacture; but there are always two sides to any question, and in this case the embargo upon wool soon taught the cloth-workers that, in the matter of prices, they had the wool-growers at their mercy. By law they could not sell to foreign customers, or (later) only upon paying heavy dues; and the cloth-workers could therefore practically dictate their own terms. In this pitiful resort—an example of the disastrous effect of government interference with trade—there was nothing left but to set the law at defiance, which the wool-growers and their allies, the “owlers,” accordingly did, risking life and limb in the wholesale exportation of wool. It is the duty of every citizen to oppose bad laws, but this opposition to ill-conceived enactments creates a furtive class of men, very Ishmaelites, who, with their liberty, and even their lives, forfeit, are rendered capable, in extremity, of any and every enormity. Hence arose those reckless bands of smugglers who in the middle of the eighteenth century became highly organised and all-powerful in Kent, Sussex, and Hampshire, and, realising their power, developed into criminals of the most ferocious type. They were, properly regarded, the products of bad government, the creatures brought into existence by a vicious system that took its origin in the coming of William the Third, the “Deliverer,” as history, tongue in cheek, styles him.

The growth of customs dues in the last years of the seventeenth century, and so onward, in a vicious progression until the opening years of the nineteenth, was not in any way owing to consideration for home traders, or to a desire for the protection of British industries. They grew exactly in proportion as the needs of the Government for revenue increased; and were the direct results of that long-continued policy of foreign alliances and aggressive interference in continental politics—that “spirited foreign

policy” advocated even in our own times—which was introduced with the coming of William the Third. We did well to depose James the Second, but we might have done better than bring over his son-in-law and make him king; and we might, still more, have done better than raise the Elector of Hanover to the status of British sovereign, as George the First. Then we should probably have avoided foreign entanglements, at any rate, until that later era when increased intercourse between the nations rendered international politics inevitable.

Foreign wars, and the heavy duties levied to pay for them, brought about the enormous growth of smuggling, and directly caused all the miseries and the blood-stained incidents that make the story of the smugglers so “romantic.” Glory is very fine, and stirs the pulses in reading the pages of history, but it is a commodity for which victorious nations, no less than the defeated, are called upon to pay in blood, tears, and privation.

With the great peace that, in 1815, succeeded the long and harassing period of continual war, the people naturally looked forward towards a time when the excessively heavy duties would be reduced, and many articles altogether relieved from taxation. As a matter of fact, some of these duties scarce paid the cost of their collection, and simply helped to keep in office a large and increasing horde of officials. But the price of glory continues to be paid, long after the laurels have faded; and not for many years to come were those imposts reduced.

Sydney Smith, writing in 1820 on the subject of American desire for a large navy, even then very manifest, warned the people of the United States of the nemesis awaiting such indulgence. “We can inform Jonathan,” he said, “what are the inevitable consequences of being too fond of glory: Taxes upon every article which enters into the mouth, or covers the back, or is placed under the foot; taxes upon everything which it is pleasant to see, hear, feel, smell, or taste; taxes upon warmth, light, and locomotion; taxes on everything on earth, and the waters under the earth; on everything that comes from abroad, or is grown at home; taxes on the raw material, taxes on every fresh value that is added to it by the industry of man; taxes on the sauce which pampers man’s appetite and the drug that restores him to health; on the ermine which decorates the judge and the rope which hangs the criminal; on the poor man’s salt and the rich man’s spice; on the brass

nails of the coffin and the ribands of the bride; at bed or board, couchant or levant, we must pay. The schoolboy whips his taxed top; the beardless youth manages his taxed horse with a taxed bridle on a taxed road; and the dying Englishman, pouring his medicine, which has paid seven per cent., into a spoon that has paid fifteen per cent., flings himself back upon his chintz bed which has paid twenty-two per cent., makes his will on an eight-pound stamp, and expires in the arms of an apothecary who has paid a licence of a hundred pounds for the privilege of putting him to death. His whole property is then immediately taxed from two to ten per cent. Besides the probate, large fees are demanded for burying him in the chancel; his virtues are handed down to posterity on taxed marble; and he is then gathered to his fathers—to be taxed no more.”

The real cost of military glory was aptly shown by a caricaturist of this period, who illustrated the general rise of prices consequent upon war in the following incident of an old country-woman buying a halfpenny candle at a chandler’s shop:

“Price has gone up,” said the shopkeeper curtly, when she tendered the money.

“What’s that for, then?” asked the old woman.

“On account of the war, ma’am.”

“Od rot ’em! do they fight by candlelight?” she not unnaturally asked.

Housekeepers of the present day may well enter—although somewhat ruefully—into the humour of this simple story, for in the great and continued rise of every commodity since the great Boer War, it is most poignantly illustrated for us. In short, the people who pay for the glory see nothing of it, and derive nothing from it.

How entirely true were those witty phrases of Sydney Smith we may easily guess from the mere rough statement that there were, in 1787, no fewer than 1,425 articles liable to duty (very many of them taxed at several times their market value), bringing in £6,000,000 a year.

In 1797 the customs laws filled six large folio volumes. The total number of Customs Acts prior to the accession of George the Third was 800, but no

fewer than 1,300 were added between the years 1760 and 1813, and newer Acts, partly repealing and partly adding to older enactments, were continually being added to this vast mass of chaotic legislation down to the middle of the Victorian era, until even experts were frequently baffled as to the definite legal position of many given articles. Finally—it is typical of our English amateur way of doing things—in 1876, when so-called “Free Trade” had come in, and few articles remained customable, the customs laws were consolidated.

Many years before, at one swoop, Sir Robert Peel had removed the duties from four hundred different dutiable articles, leaving, however, many hundreds of others more or less heavily assessed.

In consequence of this relief from taxation, smuggling rapidly decreased, and the Commissioners of Customs were enabled to report: “With the reduction of duties, and the removal of all needless and vexatious restrictions, smuggling has greatly diminished, and the public sentiment with regard to it has undergone a very considerable change. The smuggler is no longer an object of general sympathy, as a hero of romance; and people are beginning to awaken to a perception of the fact that his offence is not only a fraud on the revenue, but a robbery of the fair trader. Smuggling is now almost entirely confined to tobacco, spirits, and watches.”

No fewer than four hundred and fifty other dutiable articles were struck off the list in 1845, and the Cobdenite era of Free Trade, to which, it was expected, all other nations would speedily be converted, had opened.

“Free Trade,” we are told, “killed smuggling.” It naturally killed smuggling so far as duty-free articles were concerned; but this all-embracing term of “Free Trade” is altogether a mockery and a delusion. There has never been—there is not now—complete Free Trade in this so-called free-trade country. Wines and spirits, tobacco, tea and coffee, cocoa and sugar, are not they in the forefront of the articles that render regularly to the Chancellor of the Exchequer? There have been, indeed, throughout all the years of the Free Trade era, some forty articles scheduled for paying customs duty on import into the United Kingdom. They help the revenue to the extent of about £27,000,000 per annum.

The romance of smuggling has very largely engaged the attention of every description of writers, but we do not hear so much of its commercial aspects, although it must be evident that for men to dare so greatly as the smugglers did with winds and waves and with the customs' forces, the possible gains must have been great. Time and again a cargo of tea or of spirits would be seized, and yet the smugglers be prepared with other ventures, knowing, as they did, that one entirely successful run would pay for perhaps two failures. When tea could be purchased in Holland at sevenpence a pound, and sold in England at prices ranging from 3s. 6d. to 5s., and when tobacco, purchased at the same price, sold at 2s. 6d., it is evident that great possibilities existed for the enterprising free-trader.

As regards spirits, if we take brandy as an example, we find almost equal profits; for excellent cognac was shipped from Roscoff, in Brittany, from Cherbourg, Dieppe, and other French ports in tubs of four gallons each, which cost in France £1 a tub, and sold in England at £4. One of the ordinary smuggling luggers, generally built especially for this traffic, on racing lines, would hold eighty tubs.

On such a cargo being brought, according to preconcerted plan, within easy distance off-shore, generally at night, a lantern or other signal shown from cliff or beach by confederates on land would indicate the precise spot where the goods were most safely to be beached; and there would be assembled a sufficient company of labourers engaged for the job. A cargo of eighty tubs required forty men, who carried two each, slung by ropes over chest and back. According to circumstances, they marched in company on foot, inland; or, if the distance were great, they went on horseback, each man with a led horse, carrying three or four tubs in addition. These labourers, although not finally interested in the safe running of the goods, and not paid on any other basis than being hired for the heavy job of carrying considerable weights throughout the night, were quite ready and willing to fight any opponents that might be met, as innumerable accounts of savage encounters tell us. Besides these carriers, there were often, in case of opposition to the landing being anticipated, numerous "batsmen," armed with heavy clubs, to protect the goods.

The pay of a labourer or carrier varied widely, of course, in different places, at different times, and according to circumstances. It ranged from five

shillings to half a sovereign a night, and generally included also a present of a package of tea or a tub of brandy for so many successful runs. It is recorded that the labourers engaged for riding horseback, each with a led horse, from Sandwich, Deal, Dover, Folkestone, or Romney, to Canterbury, a distance of some fifteen miles, were paid seven shillings a night. The horses cost the smugglers nothing, for they were commandeered, as a general rule, from the neighbouring farmers, who did not usually offer any objection, for it was not often that the gangs forgot to leave a tub in payment. The method employed in thus requisitioning horses was quite simple. An unsigned note would be handed to a farmer stating that his horses were wanted, for some purpose unnamed, on a certain night; and that he was desired to leave his stables unlocked for those who would come and fetch them. If he did not comply with this demand he very soon had cause to regret it in the mysterious disasters that would shortly afterwards overtake him: his outbuildings being destroyed by fire, his farming implements smashed, or his cattle mutilated.

The farmers, indeed, were somewhat seriously embarrassed by the prevalence of smuggling. On the one hand, they had to lend their horses for the smugglers' purposes, and on the other they discovered that the demand for carriers of tubs and other goods shortened the supply of labour available for agricultural purposes, and sent up the rate of wages. A labourer in the pay of smugglers would often be out three nights in the week, and, with the money he received and with additional payment in kind, was in a very comfortable position.

CHAPTER I

THE “OWLERS” OF ROMNEY MARSH, AND THE ANCIENT EXPORT SMUGGLING OF WOOL

THE earliest conflicts of interests between smugglers and the Government were concerned with the export of goods, and not with imports. We are accustomed to think only of the import smuggler, who brought from across Channel, or from more distant shores, the spirits, wines, tea, coffee, silks, laces, and tobacco that had never yielded to the revenue of the country; but before him in point of time, if not also in importance, was the “owler” who, defying all prohibitions and penalties, even to those of bodily mutilation and death, sold wool out of England and secretly shipped it at night from the shores of Kent and Sussex.

English wool had from a very early date been greatly in demand on the Continent. The England of those distant times was a purely agricultural country, innocent of arts, industries, and manufactures, except of the most primitive description. The manufacturers then exercised their skilled trades largely in France and the Low Countries; and, in especial, the cloth-weaving industries were practised in Flanders.



THE OWLERS.

So early as the reign of Edward the First the illegal exportation of wool engaged the attention of the authorities, and an export duty of £3 a bag (in modern money) was imposed, soon after 1276. This was in 1298 increased to £6 a bag, then lowered, and then again raised. English wool was then worth 1s. 6d. a pound.

In the reign of Edward the Third a strenuous attempt was made to introduce the weaving industries into England, and every inducement was offered the Flemish weavers to settle here and to bring their art with them. In support of this policy, the export of wool was, in various years, subjected to further restrictions, and at one time entirely forbidden. The royal solicitude for the newly cradled English weaving industries also in 1337 forbade the wearing of clothing made with cloth woven out of the country; but it is hardly necessary to add that edicts of this stringency were constantly broken; and in 1341 Winchelsea, Chichester, and thirteen other ports were named, whence wool might be exported, on payment of a duty of 50s. a sack of twenty-six stone—*i.e.* 364 lb.

The interferences with the sale and export of wool continued, and the duty was constantly being raised or lowered, according to the supposed needs of

the time; but nearly always with unforeseen and disastrous effects. The wool staple was removed to the then English possession of Calais in 1363, and the export of it absolutely forbidden elsewhere. The natural result, in spite of the great amount of smuggling carried on, was that in a long series of years the value of wool steadily fell; the cloth-makers taking advantage of the accumulation of stocks on the growers' hands to depress the price. In 1390 the growers had from three to five seasons' crops on hand, and the state of the industry had become such that in the following year permission to export generally, on payment of duty, was conceded. This duty tended to become gradually heavier, and, as it increased, so proportionably did the "owling" trade.

The price of wool therefore declined again, and in 1454 it was recorded as being not more than two-thirds of what it had been a hundred and ten years earlier. The wool-growers, on the brink of ruin, petitioned that wool, according to its various grades, might not be sold under certain fixed prices; which were accordingly fixed.

But to follow, *seriatim*, the movements in prices and the complete reversals of Government policy regarding the export, would be wearisome. We will, therefore, pass on to the Restoration of the monarchy, in 1660, when the export of wool was again entirely forbidden. Smuggling of it was in 1662 again, by the reactionary laws of the period, made a felony, punishable with death; yet the active smugglers, the rank and file of the owling trade, who performed the hard manual labour for wages, at the instigation of those financially interested, continued to risk their necks for twelvepence a day. The low price their services commanded is alone sufficient to show us that labour, in spite of the risks, was plentiful. Not only Kent and Sussex, but Essex, and Ireland as well, largely entered into this secret "stealing of wool out of the country," as the phrase ran; and "these caterpillars" had so many evasions, and commanded so many combinations and interests among those officials whose business it was to detect and punish, that few dared interfere: hence the readiness of the labourers to "risk their necks," the risk being, under the circumstances, small.

Indeed, readers of the adventures of these owling desperadoes and of the customs officers who hunted them will, perhaps, come to the conclusion

that the risks on either side were pretty evenly apportioned, and they will see that the hunters not seldom became the hunted.

The experiences of one W. Carter, who appears to have been in authority over the customs staff in the Romney Marsh district, towards the close of the seventeenth century, were at times singularly vivid. His particular “hour of crowded life” came in 1688, while he was engaged in an attempt to arrest a body of owlers who were shipping wool into some French shallops between Folkestone and New Romney.

Having procured the necessary warrants, he repaired to Romney, where he seized eight or ten men who were carrying the wool on their horses’ backs to be shipped, and desired the Mayor of Romney to commit them, but, greatly to the surprise of this zealous officer, who doubtless imagined he had at last laid some of these desperate fellows securely by the heels, the Mayor of Romney consented to the prisoners being admitted to bail. Mr. Carter, to have been so ingenuously surprised, must have been a singularly simple official, or quite new to the business; for what Mayor of Romney in those days, when every one on the Marsh smuggled, or was interested financially in the success of smuggling, would dare not deal leniently with these fellows! Nay, it was even abundantly probable that the Mayor himself was financially committed in these ventures, and perhaps even among the employers of Mr. Carter’s captives.

Romney was no safe abiding-place for Carter and his underlings when these men were enlarged; and they accordingly retired upon Lydd. But if they had fondly expected peace and shelter there they were woefully mistaken, for a Marshland cry of vengeance was raised, and a howling mob of owlers, ululating more savagely than those melancholy birds from whom they took their name, violently attacked them in that little town, under cover of night. The son of the Mayor of Lydd, well disposed to these sadly persecuted revenue men, advised them to further retire upon Rye, which they did the next morning, December 13th, pursued hotly across the dyke-intersected marshes, as far as Camber Point, by fifty furious men.



THE OWLERS CHASE THE CUSTOMS OFFICERS INTO RYE.

At Guilford Ferry the pursuers were so close upon their heels that they had to hurriedly dismount and tumble into some boats belonging to ships lying near, leaving their horses behind; and so they came safe, but breathless, into Rye town.

At this period Calais—then lost to England—alone imported within two years 40,000 packs of wool from Kent and Sussex; and the Romney Marsh men not only sold their own wool in their illicit manner, but bought other from up-country, ten or twenty miles inland, and impudently shipped it off.

In 1698, the severe laws of some thirty years earlier having been thus brought into contempt, milder penal enactments were introduced, but more stringent conditions than ever were imposed upon the collection and export of this greatly vexed commodity, and the civil deterrents of process and fine, aimed at the big men in the trade, were strengthened. A law was enacted (9 & 10 William the Third, c. 40, ss. 2 and 3) by which no person living within fifteen miles of the sea in the counties of Kent and Sussex should buy any wool before he became responsible in a legal bond, with sureties, that none of the wool he should buy should be sold by him to any persons within fifteen miles of the sea; and growers of wool in those counties, within ten miles of the coast, were obliged, within three days of shearing, to account for the number of fleeces shorn, and to state where they were stored.

The success of this new law was not at first very marked, for the means of enforcing it had not been provided. To enact repressive edicts, and not to provide the means of their being respected, was as unsatisfactory as fighting the wind. The Government, viewing England as a whole, appointed under the new Act seventeen surveyors for nineteen counties, with 299 riding-officers: a force barely sufficient for Kent and Sussex alone. It cost £20,000 a year, and never earned its keep.

Henry Baker, supervisor for Kent and Sussex, writing on April 25th, 1699, to his official chiefs, stated that there would be shorn in Romney Marsh, quite apart from the adjacent levels of Pett, Camber, Guilford, and Dunge Marsh, about 160,000 sheep, whose fleeces would amount to some three thousand packs of wool, “the greatest part whereof will immediately be sent off hot into France—it being so designed, preparations in great measure being already made for that purpose.”

In fact, the new law at first did nothing more than to give the owlers some extra trouble and expense in cartage of their packs; for, in order to legally evade the extra disabilities it imposed, it was only necessary to cart them fifteen miles inland and make fictitious sale and re-sale of them there; thence shipping them as they pleased.

By this time the exportation of wool had become not only a kingly concern—it had aroused the keen interest of the nation at large, fast becoming an industrial and cloth-weaving nation. For two centuries and more past the cloth-workers had been growing numerous, wealthy, and powerful, and they meant, as far as it was possible for them to do, to starve the continental looms out of the trade, for sheer lack of material. No one cared in the least about the actual grower of the wool, whether he made a loss or a profit on his business. It is obvious that if export of it could have been wholly stopped, the cloth-workers, in the forced absence of foreign buyers, would have held the unfortunate growers in the hollow of their hands, and would have been able to dictate the price of wool.

It is the inalienable right of every human being to fight against unjust laws; only we must be sure they are unjust. Perhaps the dividing-line, when self-interest is involved, is not easily to be fixed. But there can be no doubt that the wool-growers were labouring under injustice, and that they were

entirely justified in setting those laws at naught which menaced their existence.

However, by December 1703, Mr. Baker was able to give his superiors a more favourable report. He believed the neck of the owling trade to have been broken and the spirit of the owlers themselves to have been crushed, particularly in Romney Marsh. There were not, at that time, he observed, “many visible signs” of any quantities of wool being exported: which seems to us rather to point to the perfected organisation of the owling trade than to its being crushed out of existence.

“But for fine goods,” continued the supervisor, “as they call them (*viz.* silks, lace, etc.), I am well assured that the trade goes on through both counties, though not in such vast quantities as have been formerly brought in—I mean in those days when (as a gentleman of estate in one of the counties has within this twelve months told me) he has been att once, besides at other times, at the loading of a wagon with silks, laces, etc., till six oxen could hardly move it out of the place. I do not think that the trade is now so carried on as ’twas then.”

Things being so promising in the purview of this simple person, it seemed well to him to suggest to the Commissioners of the Board of Customs that a reduction of the annual charge of £4,500 for the preventive service along the coasts of Kent and Sussex might be effected. At that time there were fifty preventive officers patrolling over two hundred miles of seaboard, each in receipt of £60 per annum, and each provided with a servant and a horse, to help in night duty, at an estimated annual cost of £30 for each officer.

We may here legitimately pause in surprise at the small pay for which these men were ready to endure the dangers and discomforts of such a service; very real perils and most unmistakable disagreeables, in midst of an almost openly hostile country-side.

Mr. Baker, sanguine man that he was, proposed to abolish the annual allowance to each of these hard-worked men for servant and horse, thus saving £1,500 a year, and to substitute for them patrols of the Dragoon regiments at that time stationed in Kent. These regiments had been originally placed there in 1698 to overawe the owlers and other smugglers,

the soldiers being paid twopence extra a day (which certainly did not err upon the side of extravagance) and the officers in proportion: the annual cost on that head amounting to £200 per annum. This military stiffening of the civil force employed to prevent clandestine export and import appears to have been discontinued in 1701, after about two years' experiment.

These revived patrols, at a cost of £200, the supervisor calculated, would more efficiently and economically undertake the work hitherto performed by the preventive officers' horses and men, still leaving a saving of £1,300 a year. With this force, and a guard of cruisers offshore, he was quite convinced that the smuggling of these parts would still be kept under.

But alas for these calculations! The economy thus effected on this scheme, approved of and put into being, was altogether illusory. The owling trade, of which the supervisor had supposed the neck to be broken, flourished more impudently than before. The Dragoons formed a most inefficient patrol, and worked ill with the revenue officers, and, in short, the Revenue lost annually many more thousands of pounds sterling than it saved hundreds. When sheriffs and under-sheriffs could be, and were, continually bribed, it is not to be supposed that Dragoons, thoroughly disliking such an inglorious service as that of chasing smugglers along muddy lanes and across country intricately criss-crossed with broad dykes rarely to be jumped, would be superior to secret advances that gave them much more than their miserable twopence a day.

Transportation for wool-smugglers who did not pay the fines awarded against them was enacted in 1717; ineffectually, for in 1720 it was found necessary to issue a proclamation, enforcing the law; and in five successive years from 1731 the cloth-workers are found petitioning for greater vigilance against the continued clandestine exportation, alleging a great decay in the woollen manufactures owing to this illegal export; 150,000 packs being shipped yearly. "It is feared," said these petitioners, fighting for their own hand, regardless, of course, of other interests, "that some gentlemen of no mean rank, whose estates border on the sea-coast, are too much influenced by a near, but false, prospect of gain": to which the gentlemen in question, being generally brought up on the dead classic languages, might most fairly have replied, had they cared to do so, with the easy Latinity of *Tu quoque!*

This renewed daring and enterprise of the Sussex smugglers led to many encounters with the customs officers. Among these was the desperate engagement between sixty armed smugglers and customs men at Ferring, on June 21st, 1720, when William Goldsmith, of the Customs, had his horse shot under him.

A humorous touch, so far at least as the modern reader of these things is concerned, is found in the Treasury warrant issued about this time, for the sum of £200, for supplying a regiment with new boots and stockings; their usual allowance of these indispensable articles having been “worn out in the pursuit of smugglers.”

In spite of all attempts to suppress these illegal activities, it had to be acknowledged, in the preamble of an Act passed in 1739, that the export of wool was “notoriously continued.”

The old-established owling trade of Romney Marsh at length, after many centuries, gave place to the clandestine import of silks, tea, spirits, and tobacco; but it was only by slow and insensible degrees that the owlers' occupation dwindled away, in the lessening foreign demand for English wool. The last was not heard of this more than five-centuries-old question of the export of wool, that had so severely exercised the minds of some twenty generations, and had baffled the lawgivers in all that space of time, until the concluding year of the final wars with France at the beginning of the nineteenth century.

Many other articles were at the same time forbidden to be exported; among them Fuller's-earth, used in the manufacture of cloth, and so, of course, subject to the same interdict as wool. A comparatively late Exchequer trial for the offence of exporting Fuller's-earth was that of one Edmund Warren, in 1693. Fortunately for the defendant, he was able to show that what he had exported was not Fuller's-earth at all, but potter's clay.

CHAPTER II

GROWTH OF TEA AND TOBACCO SMUGGLING IN THE EIGHTEENTH CENTURY— REPRESSIVE LAWS A FAILURE

SIDE by side with the export smuggling of wool, the import smuggling of tobacco and tea grew and throve amazingly in later ages. Every one, knowingly or unsuspectingly, smoked tobacco and drank tea that had paid no duty.

“Great Anna” herself, who was among the earliest to yield to the refining influence of tea—

Great Anna, whom three realms obey,
Doth sometimes counsel take, and sometimes tay—

in all probability often drank tea which had contributed nothing to the revenue. Between them tea and tobacco, in the illegal landing of the goods, found employment for hundreds of hardy seafaring men and stalwart landmen, and led to much violence and bloodshed, beside which the long-drawn annals of the owlers seem almost barren of incident.

Early in the eighteenth century, when continental wars of vast magnitude were in progress, the list of dutiable articles began to grow quickly, and concurrently with the growth of this list the already existing tariff was continually increased. The smugglers’ trade grew with these growths, and for the first time became a highly organised and widely distributed trade, involving every class. The time had come at last when every necessary of daily use was taxed heavily, often far above its ordinary trading value; and an absurd, and indeed desperate, condition of affairs had been reached, in which people of all ranks were more or less faced with the degrading dilemma of being unable to afford many articles generally consumed by persons of their station in life, or of procuring them of the smugglers—the

“free traders,” as they rightly styled themselves—often at a mere one-third of the cost to which they would have been put had their illicit purchasers paid duty.

The Government was, as we now perceive, in the mental perspective afforded by lapse of time, in the clearly indefensible position of heavily taxing the needs of the country, and of making certain practices illegal that tended to supply those needs at much lower rates than those thus artificially created, and yet of being unable to provide adequate means by which these generally detested laws could be enforced. It was, and is, no defence to hold that the revenues thus hoped for were a sufficient excuse. To create an artificial restraint of trade, to elevate trading in spite of restraint into a crime, and yet not to provide an overmastering force that shall secure obedience, if not in one sense respect, for those unnatural laws, was in itself a course of action that any impartial historian might well hold to be in itself criminal; for it led to continual disturbances throughout the country, with appalling violence, and great loss of life, in conflict, or in the darker way of secret murder.

But no historian would, on weighing the evidence available, feel altogether sure of so sweeping an indictment of the eighteenth-century governance of England. It was corrupt, it was self-seeking, it had no breadth of view; but the times were well calculated to test the most Heaven-sent statesmanship. The country, as were all other countries, was governed for the classes; and governed, as one would conduct a business, for revenue; whether the revenue was to be applied in conducting foreign wars, or to find its way plentifully into the pockets of placemen, does not greatly matter. This misgovernment was a characteristic failing of the age; and it must, moreover, be recognised that the historian, with his comprehensive outlook upon the past, spread out, so to speak, map-like to his gaze, has the advantage of seeing these things as a whole, and of criticising them as such; while the givers and administrators of laws were under the obvious disadvantages of each planning and working for what they considered to be the needs of their own particular period, with those of the future unknown, and perhaps uncared for. That there were some few among those in authority who wrought according to their lights, however feeble might be their illumination, must be conceded even to that age.

At the opening of this era, when Marlborough's great victories were yet fresh, and when the cost of them and of other military glories was wearing the country threadbare, the most remarkable series of repressive Acts, directed against smuggling, began. Vessels of very small tonnage and light draught, being found peculiarly useful to smugglers, the use of such, even in legalised importing, was strictly forbidden, and no craft of a lesser burthen than fifteen tons was permitted. This provision, it was fondly conceived, would strike a blow at smuggling, by rendering it impossible to slip up narrow and shallow waterways; but this pious expectation was doomed to disappointment, and the limit was accordingly raised to thirty tons; and again, in 1721, to forty tons. At the same time, the severest restrictions were imposed upon boats, in order to cope with the ten, or even twelve and fourteen-oared galleys, rowed by determined "free-traders."

To quote the text of one among these drastic ordinances:

"Any boat built to row with more than four oars, found upon land or water within the counties of Middlesex, Surrey, Kent, or Sussex, or in the river Thames, or within the limits of the ports of London, Sandwich, or Ipswich, or any boat rowing with more than six oars found either upon land or water, in any other port, or within two leagues of the coast of Great Britain, shall be forfeited, and every person using or rowing in such boat shall forfeit £40."

These prohibitions were, in 1779, in respect of boats to row with more than six oars, extended to all other English counties; the port of Bristol only excepted.

As for smuggling craft captured with smuggled goods the way of the revenue authorities with such was drastic. They were sawn in three pieces, and then thoroughly broken up.

The futility of these extraordinary steps is emphasised by the report of the Commissioners of Customs to the Treasury in 1733, that immense smuggling operations were being conducted in Kent, Sussex, Essex, and Suffolk. In twelve months, this report declared, 54,000 lb. of tea and 123,000 gallons of brandy had been seized, and still, in spite of these tremendous losses, the spirit of the smugglers was unbroken, and smuggling

was increasing. An additional force of 106 Dragoons was asked for, to stiffen that of 185 already patrolling those coasts.

It was clearly required, with the utmost urgency, for such a mere handful of troops spread over this extended seaboard could scarce be considered a sufficient backing for the civil force, in view of the determined encounters continually taking place, in which the recklessness and daring of the smugglers knew no bounds. Thus, in June 1733, the officers of customs at Newhaven, attempting to seize ten horses laden with tea, at Cuckmere, were opposed by about thirty men, armed with pistols and blunderbusses, who fired on the officers, took them prisoners, and kept them under guard until the goods were safely carried off.

In August of the same year the riding-officers, observing upwards of twenty smugglers at Greenhay, most of them on horseback, pluckily essayed to do their duty and seize the goods, but the smugglers fell furiously upon them, and with clubs knocked one off his horse, severely wounded him, and confined him for an hour, while the run was completed. Of his companions no more is heard. They probably—to phrase it delicately—went for assistance.

In July 1735, customs officers of the port of Arundel, watching the coast, expecting goods to be run from a hovering smuggler craft, were discovered by a gang of more than twenty armed smugglers, anxiously waiting for the landing, and not disposed for an all-night trial of endurance in that waiting game. They accordingly seized the officers and confined them until some boatloads of contraband had been landed and conveyed away on horseback. In the same month, at Kingston-by-the-Sea, between Brighton and Shoreham, some officers, primed with information of a forthcoming run of brandy, and seeking it, found as well ten smugglers with pistols. Although the smugglers were bold and menacing, the customs men on this occasion had the better of it, for they seized and duly impounded the brandy.

A more complicated affair took place on December 6th of the same year, when some customs officers of Newhaven met a large, well-armed gang of smugglers, who surrounded them and held them prisoners for an hour and a half. The same gang then fell in with another party, consisting of three

riding-officers and six Dragoons, and were bold enough to attack them. Foolish enough, we must also add; for they got the worst of the encounter, and, fleeing in disorder, were pursued; five—armed with pistols, swords, and cutlasses, and provided with twelve horses—being captured.

A fatal encounter took place at Bulverhythe, between Hastings and Bexhill, in March 1737. It is best read of in the anonymous letter written to the Commissioners of Customs by a person who, for fear of the smuggling gangs, was afraid to disclose his real name, and subscribed himself “Goring.” The letter—whose cold-blooded informing, the work evidently of an educated, but cruel-minded person, is calculated to make any reader of generous instincts shiver—is to be found among the customs correspondence, in the Treasury Papers.

“May it please [your] Honours,—It is not unknown to your Lordships of the late battle between the Smuglers and Officers at Bulverhide; and in relation to that Business, if your Honours but please to advise in the News Papers, that this is expected off, I will send a List of the names of the Persons that were at that Business, and the places’ names where they are usually and mostly resident. Cat (Morten’s man) fired first, Morten was the second that fired; the soldiers fired and killed Collison, wounded Pigon, who is since dead; William Weston was wounded, but like to recover. Young Mr. Bowra was not there, but his men and horses were; from your Honours’

“Dutifull and Most faithfull servant,

“GORING.

“There was no foreign persons at this Business, but all were Sussex men, and may easily be spoke with.

“This [is] the seventh time Morten’s people have workt this winter, and have not lost anything but one half-hundred [of tea] they gave to a Dragoon and one officer they met with the first of this winter; and the Hoo company have lost no goods, although they constantly work, and at home too, since they lost the seventy hundred-weight. When once the Smuglers are drove from home they will soon all be taken. Note, that some say it was Gurr that fired first. You must well secure Cat, or

else your Honours will soon lose the man; the best way will be to send for him up to London, for he knows the whole Company, and hath been Morten's servant two years. There were several young Chaps with the Smuglers, whom, when taken, will soon discover the whole Company. The number was twenty-six men. Mack's horses, Morten's, and Hoak's, were killed, and they lost not half their goods. They have sent for more goods, and twenty-nine horses set out from Groombridge this day, about four in the afternoon, and all the men well armed with long guns.

"And if I hear this is received, I will send your Honours the Places names where your Honours will intercept the Smuglers as they go to Market with their Goods, but it must be done by Soldiers, for they go stronger now than ever. And as for Mr. Gabriel Tompkin, Supervisor of Dartford, there can be good reason given that Jacob Walter brought him Goods for three years last past, and it is likewise no dispute of that matter amongst almost all the Smuglers. The Bruces and Jacob fought about that matter and parted Company's, and Mr. Tompkin was allway, as most people know, a villain when a Smugler and likewise Officer. He never was concern'd with any Body but Jacob, and now Jacob has certainly done with Smugling. I shall not trouble your Honours with any more Letters if I do not hear from this, and I do assure your Honours what I now write is truth.

"There are some Smuglers with a good sum of money, and they may pay for taking; as Thomas Darby, Edward King, John Mackdanie, and others that are rich.

"The Hoo Company might have been all ruined when they lost their goods; the Officers and Soldiers knew them all, but they were not prosecuted, as [they] was not at Groombridge, when some time since a Custom House Officer took some Tea and Arms too in Bowra's house at Groombridge.

"The first of this Winter, the Groombridge Smuglers were forced to carry their goods almost all up to Rushmore Hill and Cester Mark, which some they do now, but Tea sells quick in London now, and Chaps from London come down to Groombridge almost every day, as

they used to do last Winter. When once they come to be drove from home, they will be put to great inconveniences, when they are from their friends and will lose more Goods than they do now, and be at more Charges. Do but take up some of the Servants, they will soon rout the Masters, for the Servants are all poor.

“Young Bowra’s House cost £500 building, and he will pay for looking up.

“Morten and Bowra sold, last Winter, some-ways, about 3,000 [lb.] weight a week.”

We hear nothing further of “Goring,” and there is nothing to show who was the person whose cold malignance appears horribly in every line of his communication. Any action that may have been officially taken upon it is also hidden from us. But we may at least gather from it that the master-men, the employers of the actual smugglers of the goods, were in a considerable way of business, and already making very large profits. We see, too, that the smuggling industry was even then well on towards being a powerful organisation.

Still sterner legislative methods were, accordingly, in the opinion of the authorities, called for, and the Act of Indemnity of 1736 was the first result. This was a peculiarly mean and despicable measure, even for a Revenue Act. There is this excuse—although a small one—for it; that the Government was increasingly pressed for money, and that the enormous leakage of customs dues might possibly in some degree be lessened by stern and not very high-minded laws. By this Act it was provided that smugglers who desired (whether on trial or not) to obtain a free pardon for past offences, might do so by fully disclosing them; at the same time giving the names of their fellows. The especial iniquity of this lamentable example of frantic legislation, striking as it did at the very foundations of character in the creation of the informer and the sneak, is a sad instance of the moral obliquity to which a Government under stress of circumstances can descend.

The Act further proceeded to deal with backsliders who, having purged themselves as above, again resumed their evil courses, and it made the ways of transgressors very hard indeed; for, when captured, they were charged

with not only their present offence, but also with that for which they had compounded with the Dev—that is to say, with the law. And, being so charged, and duly convicted, their case was desperate; for if the previous offence had carried with it, on conviction, a sentence of transportation (as many smuggling offences did: among them the carrying of firearms by three, or more men, while engaged in smuggling goods), the second brought a sentence of death.

With regard to the position of the pardoned smuggler who had earned his pardon by thus peaching on his fellows, it is not too much to say—certainly so far as the more ferocious smuggling gangs of Kent and Sussex were concerned—that by so doing he had already earned his capital sentence; for the temper of these men was such, and the risks they were made to run by these ferocious Acts were so great, that they would not—and, in a way of looking at these things, could not—suffer an informer to live.

Thus, even the additional inducements offered to informers by statute—including a reward of £50 each for the discovery and conviction of two or more accomplices—very generally failed to obtain results.

Many other items of unexampled severity were included in this Act, and in the yet more drastic measures of 1745 and the following year. By these it was provided that persons found loitering within five miles of the sea-coast, or any navigable river, might be considered suspicious persons; and they ran the risk of being taken before a magistrate, who was empowered, on any such person being unable to give a satisfactory account of himself, to commit him to the House of Correction, there to be whipped and kept at hard labour for any period not exceeding one month.

In 1746, assembling to run contraband goods was made a crime punishable with death as a felon, and counties were made liable for revenue losses. Smuggled goods seized and afterwards rescued entailed a fine of £200 upon the county; a revenue officer beaten by smugglers cost the county £40; or if killed, £100; with the provision that the county should be exempt if the offenders were convicted within six months.

As regards the offenders themselves, if they failed to surrender within forty days and were afterwards captured, the person who captured them was entitled to a reward of £500.

Dr. Johnson's definition of a smuggler appears on the title-page of the present volume. It is not a flattering testimonial to character; but, on the other hand, his opinion of a Commissioner of Excise—and such were the sworn enemies of smugglers—was much more unfavourable. Such an one was bracketed by the doctor with a political pamphleteer, or what he termed “a scribbler for a party,” as one of “the two lowest of human beings.” Without the context in which these judgments are now placed, it would be more than a little difficult to trace their reasoning, which sounds as little sensible as it would be to declare at one and the same time a burglar to be a dangerous pest and a policeman a useless ornament. But if smugglers can be proved from these pages wicked and reckless men, so undoubtedly shall we find the Commissioners of Excise and Customs, in their several spheres, appealing to the basest of human instincts, and thus abundantly worthy of Johnson's censure.

The shifts and expedients of the Commissioners of Customs for the suppression of smuggling were many and ingenious, and none was more calculated to perform the maximum of service to the Revenue with the minimum of cost than the commissioning of privateers, authorised to search for, to chase, and to capture if possible any smuggling craft. “Minimum of cost” is indeed not the right expression for use here, for the cost and risks to the customs establishment were *nil*. It should be said here that, although the Acts of Parliament directed against smuggling were of the utmost stringency, they were not always applied with all the severity possible to be used; and, on the other hand, customs officers and the commanders of revenue cutters were well advised to guard against any excess of zeal in carrying out their instructions. To chase and capture a vessel that every one knew perfectly well to be a smuggler, and then to find no contraband aboard, because, as a matter of fact, it had been carefully sunk at some point where it could easily be recovered at leisure, was not only not the way to promotion as a zealous officer; but was, on the contrary, in the absence of proof that contraband had been carried, a certain way to official disfavour. And it was also, as many officers found to their cost, the way into actions at law, with resultant heavy damages not infrequently awarded against them. It was, indeed, a scandal that these public servants, who assuredly rarely ever brought to, or overhauled, a vessel without reasonable and probable

cause, should have been subject to such contingencies, without remedy of any kind.

The happy idea of licensing private adventurers to build and equip vessels to make private war upon smuggling craft, and to capture them and their cargoes, was an extension of the original plan of issuing letters of marque to owners of vessels for the purpose of inflicting loss upon an enemy's commerce; but persons intending to engage upon this private warfare against smuggling had, in the first instance, to give security to the Commissioners of a diligence in the cause thus undertaken, and to enter into business details respecting the cargoes captured. It was, however, not infrequently found, in practice, that these privateers very often took to smuggling on their own account, and that, under the protective cloak of their ostensible affairs, they did a very excellent business; while, to complete this picture of failure, those privateers that really did keep to their licensed trade generally contrived to lose money and to land their owners into bankruptcy.

CHAPTER III

TERRORISING BANDS OF SMUGGLERS—THE HAWKHURST GANG—ORGANISED ATTACK ON GOUDHURST—THE “SMUGGLERS’ SONG”

BUT the smugglers of Kent and Sussex were by far the most formidable of all the “free-traders” in England, and were not easily to be suppressed. Smuggling, export and import, off those coasts was naturally heavier than elsewhere, for there the Channel was narrower, and runs more easily effected. The interests involved were consequently much greater, and the organisation of the smugglers, from the master-men to the labourers, more nearly perfect. To interfere with any of the several confederacies into which these men were banded for the furtherance of their illicit trade was therefore a matter of considerable danger, and, well knowing the terror into which they had thrown the country-side, they presumed upon it, to extend their activities into other, and even less reputable, doings. The intervals between carrying tubs, and otherwise working for the master-smugglers became filled, towards the middle of the eighteenth century, with acts of highway robbery and house-breaking, and, in the home counties, at any rate, smuggling proved often to be only the first step in a career of crime.

Among these powerful and terrorising confederacies, the Hawkhurst gang was pre-eminent. The constitution of it was, necessarily, a matter of inexact information, for the officers and the rank and file of such societies are mentioned by no minute-books or reports. But one of its principals was, without question, Arthur Gray, or Grey, who was one of those “Sea Cocks” after whom Seacox Heath, near Hawkhurst, in Kent, is supposed to be named. He was a man who did things on, for those times, a grand scale, and was said to be worth £10,000. He had built on that then lonely ridge of ground, overlooking at a great height the Weald of Kent, large store houses—a kind of illicit “bonded warehouses”—for smuggled goods, and made the spot a distributing centre. That all these facts should have been

contemporaneously known, and Gray's store not have been raided by the Revenue, points to an almost inconceivable state of lawlessness. The buildings were in after years known as "Gray's Folly"; but it was left for modern times to treat the spot in a truly sportive way: when Lord Goschen, who built the modern mansion of Seacox Heath on the site of the smuggler's place of business, became Chancellor of the Exchequer. If the unquiet ghosts of the old smugglers ever revisit their old haunts, how weird must have been the ironic laughter of Gray at finding this the home of the chief financial functionary of the Government!



GOUDHURST CHURCH.

In December 1744 the gang were responsible for the impudent abduction of a customs officer and three men who had attempted to seize a run of goods at Shoreham. They wounded the officer and carried the four off to Hawkhurst, where they tied two of them, who had formerly been smugglers and had ratted to the customs service, to trees, whipped them almost to death, and then took them down to the coast again and shipped them to France. A reward of £50 was offered, but never claimed.

To exhume yet another incident from the forgotten doings of the time: In March 1745 a band of twelve or fourteen smugglers assaulted three custom-house officers whom they found in an alehouse at Grinstead Green, wounded them in a barbarous manner, and robbed them of their watches and money.

In the same year a gang entered a farmhouse near Sheerness, in Sheppey, and stole a great quantity of wool, valued at £1,500. A week later £300 worth of wool, which may or may not have been a portion of that stolen, was seized upon a vessel engaged in smuggling it from Sheerness, and eight men were secured.

The long immunity of the Hawkhurst Gang from serious interference inevitably led to its operations being extended in every direction, and the law-abiding populace of Kent and Sussex eventually found themselves dominated by a great number of fearless marauders, whose will for a time was a greater law than the law of the land. None could take legal action against them without going hourly in personal danger, or in fear of house, crops, wheat-stacks, hay-ricks, or stock being burnt or otherwise injured.

The village of Goudhurst, a picturesque spot situated upon a hill on the borders of Kent and Sussex, was the first place to resent this ignoble subserviency. The villagers and the farmers round about were wearied of having their horses commandeered by mysterious strangers for the carrying of contraband goods that did not concern them, and were determined no longer to have their houses raided with violence for money or anything else that took the fancy of these fellows.

They had at last found themselves faced with the alternatives, almost incredible in a civilised country, of either deserting their houses and leaving their property at the mercy of these marauders, or of uniting to oppose by force their lawless inroads. The second alternative was chosen; a paper expressive of their abhorrence of the conduct of the smugglers, and of the determination to oppose them was drawn up and subscribed to by a considerable number of persons, who assumed the style of the “Goudhurst Band of Militia.” At their head was a young man named Sturt, who had recently been a soldier. He it was who had persuaded the villagers to be men, and make some spirited resistance.

News of this unexpected stand on the part of these hitherto meek-spirited people soon reached the ears of the dreaded Hawkhurst Gang, who contrived to waylay one of the “Militia,” and, by means of torture and imprisonment, extorted from him a full disclosure of the plans and intentions of his colleagues. They swore the man not to take up arms

against them, and then let him go; telling him to inform the Goudhurst people that they would, on a certain day named, attack the place, murder every one in it, and then burn it to the ground.

Sturt, on receiving this impudent message, assembled his “Militia,” and, pointing out to them the danger of the situation, employed them in earnest preparations. While some were sent to collect firearms, others were set to casting bullets and making cartridges, and to providing defences.

Punctually at the time appointed (a piece of very bad policy on their part, by which they would appear to have been fools as well as rogues) the gang appeared, headed by Thomas Kingsmill, and fired a volley into the village, over the entrenchments made. The embattled villagers replied, some from the houses and roof-tops, and others from the leads of the church-tower; when George Kingsmill, brother of the leading spirit in the attack, was shot dead. He is alluded to in contemporary accounts as the person who had killed a man at Hurst Green, a few miles distant.

In the firing that for some time continued two others of the smugglers, one Barnet Wollit and a man whose name is not mentioned, were killed and several wounded. The rest then fled, pursued by the valorous “Militia,” who took a few prisoners, afterwards handed over by them to the law, and executed.

Surprisingly little is heard of this—as we, in these more equable times, are prone to think it—extraordinary incident. A stray paragraph or so in the chronicles of the time is met with, and that is all. It was only one of the usual lawless doings of the age.

But to-day the stranger in the village may chance, if he inquires a little into the history of the place, to hear wild and whirling accounts of this famous event; and, if he be at all enterprising, will find in the parish registers of burials this one piece of documentary evidence toward the execution done that day:

“1747, Ap. 20, George Kingsmill, Dux sclerum glande plumbeo
emisso, cecidit.”

All these things, moreover, are duly enshrined, amid much fiction, in the pages of G. P. R. James's novel, "The Smuggler."

And still the story of outrage continued. On August 14th, 1747, a band of twenty swaggering smugglers rode, well-armed and reckless, into Rye and halted at the "Red Lion" inn, where they remained drinking until they grew rowdy and violent.

Coming into the street again, they discharged their pistols at random, and, as the old account of these things concludes, "observing James Marshall, a young man, too curious of their behaviour, carried him off, and he has not since been heard of."

History tells us nothing of the fate of that unfortunate young man; but, from other accounts of the bloodthirsty characters of these Kentish and Sussex malefactors, we imagine the very worst.

Others, contemporary with them—if, indeed, they were not the same men, as seems abundantly possible—captured two revenue officers near Seaford, and, securely pinning them down to the beach at low-water mark, so that they could not move, left them there, so that, when the tide rose, they were drowned.

Again, on September 14th of this same year, 1747, a smuggler named Austin, violently resisting arrest, shot a sergeant dead with a blunderbuss at Maidstone.

In "The Smugglers' Song" Mr. Rudyard Kipling has vividly reconstructed those old times of dread, when, night and day, the numerous and well-armed bodies of smugglers openly traversed the country, terrorising every one. To look too curiously at these high-handed ruffians was, as we have already seen, an offence, and the most cautious among the rustics made quite sure of not incurring their high displeasure—and incidentally of not being called upon by the revenue authorities as witnesses to the identity of any among their number—by turning their faces the other way when the free-traders passed. Mothers, too, were careful to bid their little ones on the Marshland roads, or in the very streets of New Romney, to turn their faces to the hedge-side, or to the wall, "when the gentlemen went by." And—

If you wake at midnight, and hear a horse's feet,
Don't go drawing back the blind, or looking in the street;
Them that ask no questions isn't told a lie,
Watch the wall, my darling, while the gentlemen go by.

Five and twenty ponies
Trotting through the dark—
Brandy for the parson;
'Baccy for the clerk;
Laces for a lady; letters for a spy,

And watch the wall, my darling, while the gentlemen go by.



CHAPTER IV

THE “MURDERS BY SMUGGLERS” IN HAMPSHIRE

THE most outstanding chapter in the whole history of smuggling is that of the cold-blooded “Murders by Smugglers” which stained the annals of the southern counties in the mid-eighteenth century with peculiarly revolting deeds that have in them nothing of romance; nothing but a long-drawn story of villainy and fiendish cruelty. It is a story that long made dwellers in solitary situations shiver with apprehension, especially if they owned relatives connected in any way with the hated customs officers.

This grim chapter of horrors, upon which the historian can dwell only with loathing, and with pity for himself in being brought to the telling of it, was the direct outcome of the lawless and almost unchecked doings of the Hawkhurst Gang, whose daring grew continually with their long-continued success in terrorising the countryside.

The beginnings of this affair are found in an expedition entered upon by a number of the gang in September 1747, in Guernsey, where they purchased a considerable quantity of tea, for smuggling into this country. Unfortunately for their enterprise, they fell in with a revenue cutter, commanded by one Captain Johnson, who pursued and captured their vessel, took it into the port of Poole, and lodged the tea in the custom-house there.

The smugglers were equally incensed and dismayed at this disaster, the loss being a very heavy one; and they resolved, rather than submit to it, to go in an armed force and recover the goods. Accordingly a mounted body of them, to the number of sixty, well provided with firearms and other weapons, assembled in what is described as “Charlton Forest,” probably Chalton Downs, between Petersfield and Poole, and thence proceeded on their desperate errand. Thirty of them, it was agreed, should go to the

attack, while the other thirty should take up positions as scouts along the various roads, to watch for riding-officers, or for any military force, and so alarm, or actively assist, if needs were, the attacking party.

It was in the midnight between October 6th and 7th that this advance party reached Poole, broke open the custom-house on the quay, and removed all the captured tea—thirty-seven hundredweight, valued at £500—except one bag of about five pounds weight. They returned in the morning, in leisurely fashion, through Fordingbridge; the affair apparently so public that hundreds of people were assembled in the streets of that little town to see these daring fellows pass.



A REPRESENTATION OF THE SMUGGLERS BREAKING
OPEN THE KING'S CUSTOM HOUSE AT POOLE.

Among these spectators was one Daniel Chater, a shoemaker, who recognised among this cavalcade of smugglers a certain John Diamond, with whom he had formerly worked in the harvest field. Diamond shook hands with him as he passed, and threw him a bag of tea.

It was not long before a proclamation was issued offering rewards for the identification or apprehension of any persons concerned in this impudent raid, and Diamond was in the meanwhile arrested on suspicion at Chichester. Chater, who seems to have been a foolish, gossiping fellow, saying he knew Diamond and saw him go by with the gang, became an object of considerable interest to his neighbours at Fordingbridge, who, having seen that present of a bag of tea—a very considerable present as the price of tea then ran—no doubt thought he knew more of the affair than he cared to tell. At any rate, these things came to the knowledge of the

Collector of Customs at Southampton, and the upshot of several interviews and some correspondence with him was that Chater agreed to go in company with one William Galley, an officer of excise, to Major Battin, a Justice of the Peace and a Commissioner of Customs at Chichester, to be examined as to his readiness and ability to identify Diamond, whose punishment, on conviction, would be, under the savage laws of that time, death.

Chater, in short, had offered himself as that detestable thing, a hired informer: a creature all right-minded men abhor, and whom the smugglers of that age visited, whenever found, with persecution and often with the same extremity to which the law doomed themselves.

The ill-fated pair set out on Sunday, February 14th, on horseback, and, calling on their way at Havant, were directed by a friend of Chater's at that place to go by way of Stanstead, near Rowlands Castle. They soon, however, missed their way, and calling at Leigh, at the "New Inn," to refresh and to inquire the road, met there three men, George and Thomas Austin, and their brother-in-law, one Mr. Jenkes, who accompanied them to Rowlands Castle, where they all drew rein at the "White Hart" public-house, kept by a Mrs. Elizabeth Payne, a widow, who had two sons in the village, blacksmiths, and both reputed smugglers.

Some rum was called for, and was being drank, when Mrs. Payne, taking George Austin aside, told him she was afraid these two strangers were after no good; they had come, she suspected, with intent to do some injury to the smugglers. Such was the state of the rural districts in those times that the appearance of two strangers was of itself a cause for distrust; but when, in addition, there was the damning fact that one of them wore the uniform of a riding-officer of excise, suspicion became almost a certainty.

But to her remarks George Austin replied she need not be alarmed, the strangers were only carrying a letter to Major Battin, on some ordinary official business.

This explanation, however, served only to increase her suspicions, for what more likely than that this business with a man who was, among other things, a highly placed customs official, was connected in some way with these recent notorious happenings?

To make sure, Mrs. Payne sent privately one of her sons, who was then in the house, for William Jackson and William Carter, two men deeply involved with smuggling, who lived near at hand. In the meanwhile Chater and Galley wanted to be gone upon their journey, and asked for their horses. Mrs. Payne, to keep them until Jackson and Carter should arrive, told them the man who had the key of the stables was gone for a while, but would return presently.

As the unsuspecting men waited, gossiping and drinking, the two smugglers entered. Mrs. Payne drew them aside and whispered her suspicions; at the same time advising Mr. George Austin to go away, as she respected him, and was unwilling that any harm should come to him.

It is thus sufficiently clear that, even at this early stage, some very serious mischief was contemplated.

Mr. George Austin, being a prudent, if certainly not also an honest, man, did as he was advised. Thomas Austin, his brother, who does not appear to have in the same degree commanded the landlady's respect, was not warned, and remained, together with his brother-in-law. To have won the reader's respect also, she should, at the very least of it, have warned them as well. But as this was obviously not a school of morals, we will not labour the point, and will bid Mr. George Austin, with much relief, "goodbye."

Mrs. Payne's other son then entered, bringing with him four more smugglers: William Steel, Samuel Downer, *alias* Samuel Howard, *alias* "Little Sam," Edmund Richards, and Henry Sheerman, *alias* "Little Harry."

After a while Jackson took Chater aside into the yard, and asked him after Diamond; whereupon the simple-minded man let fall the object of his and his companion's journey.

While they were talking, Galley, suspecting Chater would be in some way indiscreet, came out and asked him to rejoin them; whereupon Jackson, with a horrible oath, struck him a violent blow in the face, knocking him down.

Galley then rushed into the house, Jackson following him. "I am a King's officer," exclaimed the unfortunate Galley, "and cannot put up with such treatment."

“You a King’s officer!” replied Jackson, “I’ll make a King’s officer of you; and for a quartern of gin I’ll serve you so again!”

The others interposed, one of the Paynes exclaiming, “Don’t be such a fool; do you know what you are doing?”

Galley and Chater grew very uneasy, and again wanted to be going; but the company present, including Jackson, pressed them to stay, Jackson declaring he was sorry for what had passed. The entire party then sat down to more drink, until Galley and Chater were overcome by drunkenness and were sent to sleep in an adjoining room. Thomas Austin and Mr. Jenkes were by this time also hopelessly drunk; but as they had no concern with the smugglers, nor the smugglers with them, they drop out of this narrative.

When Galley and Chater lay in their drunken sleep the compromising letters in their pockets were found and read, and the men present formed themselves into a kind of committee to decide what should be done with their enemies, as they thought them. John Race and Richard Kelly then came in, and Jackson and Carter told them they had got the old rogue, the shoemaker of Fordingbridge, who was going to give an information against John Diamond the shepherd, then in custody at Chichester.

They then consulted what was best to be done to their two prisoners, when William Steel proposed to take them both to a well, a little way from the house, and to murder them and throw them in. Less ferocious proposals were made—to send them over to France; but when it became obvious that they would return and give the evidence after all, the thoughts of the seven men present reverted to murder. At this juncture the wives of Jackson and Carter, who had entered the house, cried, “Hang the dogs, for they came here to hang us!”

Another proposition that was made—to imprison the two in some safe place until they knew what would be Diamond’s fate, and for each of the smugglers to subscribe threepence a week for their keep—was immediately scouted; and instantly the brutal fury of these ruffians was aroused by Jackson, who, going into the room where the unfortunate men were lying, spurred them on their foreheads with the heavy spurs of his riding-boots, and, having thus effectually wakened them, whipped them into the kitchen of the inn until they were streaming with blood. Then, taking them outside,

the gang lifted them on to a horse, one behind the other, and, tying their hands and legs together, lashed them with heavy whips along the road, crying, "Whip them, cut them, slash them, damn them!" one of their number, Edmund Richards, with cocked pistol in hand, swearing he would shoot any person through the head who should mention anything of what he saw or heard.

From Rowlands Castle, past Wood Ashes, Goodthorpe Deane, and to Lady Holt Park, this scourging was continued through the night, until the wretched men were three parts dead. At two o'clock in the morning this gruesome procession reached the Portsmouth Road at Rake, where the foremost members of the party halted at what was then the "Red Lion" inn, long since that time retired into private life, and now a humble cottage. It was kept in those days by one Scardefield, who was no stranger to their kind, nor unused to the purchase and storing of smuggled spirits. Here they knocked and rattled at the door until Scardefield was obliged to get out of bed and open to them. Galley, still alive, was thrust into an outhouse, while the band, having roused the landlord and procured drink, caroused in the parlour of the inn. Chater they carried in with them; and when Scardefield stood horrified at seeing so ghastly a figure of a man, all bruised and broken, and spattered with blood, they told him a specious tale of an engagement they had had with the King's officers: that here was a comrade, wounded, and another, dead or dying, in his brew-house.



THE "RED LION," RAKE.

Chater they presently carried to an outhouse of the cottage of a man named Mills, not far off, and then returned for more drink and discussion of what was to be done with Galley, whom they decided to bury in Harting Combe. So, while it was yet dark, they carried him down from the ridge on which Rake stands, into the valley, and, digging a grave in a fox-earth by the light of a lantern, shovelled the dirt over him, without inquiring too closely whether their victim were alive or dead. That he was not dead at that time became evident when his body was discovered eight months later, hands raised to his face, as though to prevent the earth from suffocating him.

The whole of the next day this evil company sat drinking in the “Red Lion.” Richard Mills, son of the man in whose turf-shed Chater lay chained by the leg, passing by, they hailed him and told him of what they had done; whereupon he said he would, if he had had the doing of it, have flung the man down Harting Combe headlong and broken his neck.

On this Monday night they all returned home, lest their continued absence might be remarked by the neighbours; agreeing to meet again at Rake on the Wednesday evening, to consider how they might best put an end to Chater.

When Wednesday night had come this council of murderers, reinforced by others, and numbering in all fourteen, assembled accordingly. Dropping into the “Red Lion” one by one, it was late at night before they had all gathered.

They decided, after some argument, to dispatch him forthwith, and, going down to the turf-shed where he had lain all this while, suffering agonies from the cruel usage to which he had been subjected, they unchained him. Richard Mills at first had proposed to finish him there. “Let us,” said he, “load a gun with two or three bullets, lay it upon a stand with the muzzle of the piece levelled at his head, and, after having tied a long string to the trigger, we will all go off to the butt-end, and, each of us taking hold of the string, pull it all together; thus we shall be all equally guilty of his death, and it will be impossible for any one of us to charge the rest with his murder, without accusing himself of the same crime; and none can pretend to lessen or to mitigate his guilt by saying he was only an accessory, since all will be principals.”



CHATER, CHAINED IN THE TURFF HOUSE AT
OLD MILLS. COBBY, KICKING HIM & TAPNER,
CUTTING HIM ACROSS THE EYES AND NOSE,
WHILE HE IS SAYING THE LORD'S PRAYER.
SEVERAL OF THE OTHER SMUGGLERS STANDING BY.

Thus Richard Mills, according to the story of these things told in horrid detail (together with a full report of the subsequent trial) by the author of the contemporary "Genuine History." The phraseology of the man's coldly logical proposals is, of course, that of the author himself; since it is not possible that a Sussex rustic of over a hundred and sixty years ago would have spoken in literary English.

Mills's proposition was not accepted. It seemed to the others too merciful and expeditious a method of putting an end to Chater's misery. They had grown as epicurean in torture as the mediæval hell-hounds who racked and pinched and burnt for Church and State. They were resolved he should suffer as much and as long as they could eke out his life, as a warning to all other informers.

The proposal that found most favour was that they should take him to Harris's Well, in Lady Holt Park, and throw him in.

Tapner, one of the recruits to the gang, thereupon inaugurated the new series of torments by pulling out a large clasp-knife, and, with a fearful oath, exclaiming, "Down on your knees and go to prayers, for with this knife I will be your butcher."

Chater, expecting every moment to be his last, knelt down as he was ordered, and, while he was thus praying, Cobby kicked him from behind, while Tapner in front slashed his face.

The elder Mills, owner of the turf-shed, at this grew alarmed for his own safety. "Take him away," he said, "and do not murder him here. Do it somewhere else."

They then mounted him on a horse and set out for Lady Holt Park; Tapner, more cruel, if possible, than the rest, slashing him with his knife, and whipping him with his whip, all the way.

It was dead of night by the time they had come to the Park, where there was a deep dry well. A wooden fence stretched across the track leading to it, and over this, although it was in places broken and could easily have been crawled through, they made their victim climb. Tapner then pulled a rope out of his pocket and tied it round Chater's neck, and so pushed him over the opening of the well, where he hung, slowly strangling.

But by this time they were anxious to get home, and could afford no more time for these luxuries of cruelty, so they dropped him to the bottom of the well, imagining he would be quite killed by the fall. Unfortunately for Chater, he was remarkably tenacious of life, and was heard groaning there, where he had fallen.

They dared not leave him thus, lest any one passing should hear his cries, and went and roused a gardener, one William Combleach, who lived a little way off, and borrowed a ladder, telling him one of their companions had fallen into Harris's Well. With this ladder they intended to descend the well and finally dispatch Chater; but, seeing they could not manage to lower the ladder, they were reduced to finding some huge stones and two great gateposts, which they then flung down, and so ended the unhappy man's martyrdom.

The problem that next faced the murderers was, how to dispose of the two horses their victims had been riding. It was first proposed to put them aboard the next smuggling vessel returning to France, but that idea was abandoned, on account of the risk of discovery. It was finally decided to slaughter them and remove their skins, and this was accordingly done to the grey that Galley had ridden, and his hide cut up into small pieces and buried; but, when they came to look for the bay that Chater had used, they could not find him.

CHAPTER V

THE “MURDERS BY SMUGGLERS” *continued*—TRIAL AND EXECUTION OF THE MURDERERS—FURTHER CRIMES BY THE HAWKHURST GANG

EVEN in those times two men, and especially men who had set out upon official business, could not disappear so utterly as Chater and Galley had done without comment being aroused, and presently the whole country was ringing with the news of this mysterious disappearance. The condition of the country can at once be guessed when it is stated that no one doubted the hands of the smugglers in this business. The only question was, in what manner had they spirited these two men away? Some thought they had been carried over to France, while others thought, shrewdly enough, they had been murdered.

But no tidings nor any trace of either Galley or Chater came to satisfy public curiosity, or to allay official apprehensions, until some seven months later, when an anonymous letter sent to “a person of distinction,” and probably inspired by the hope of ultimately earning the large reward offered by the Government for information, hinted that “the body of one of the unfortunate men mentioned in his Majesty’s proclamation was buried in the sands in a certain place near Rake.” And, sure enough, when search was made, the body of Galley was found “standing almost upright, with his hands covering his eyes.”

Another letter followed upon this discovery, implicating William Steel in these doings, and he was immediately arrested. To save himself, the prisoner turned King’s evidence, and revealed the whole dreadful story. John Race, among the others concerned, voluntarily surrendered, and was also admitted as evidence.

One after another, seven of the murderers were arrested in different parts of the counties of Hants and Surrey, and were committed to the gaols of

Horsham and Newgate, afterwards being sent to Chichester, where a special Assize was held for the purpose of overawing the smugglers of the district, and of impressing them with the majesty and the power of the law, which, it was desired to show them, would eventually overtake all evil-doers.

We need not enter into the details of that trial, held on January 18th, 1749, and reported with painful elaboration by the author of the “Genuine History,” together with the sermon preached in Chichester Cathedral by Dean Ashburnham, who held forth in the obvious and conventional way of comfortably beneficed clergy, then and now.

Let it be sufficient to say that all were found guilty, and all sentenced to be hanged on the following day.

Six of them were duly executed, William Jackson, the seventh, dying in gaol. He had been for a considerable time in ill health. He was a Roman Catholic and the greatest villain of the gang, and, like all such, steeped in superstition. Carefully sewed up in a linen purse in his waistcoat pocket was found an amulet in French, which, translated, ran as follows:

Ye three Holy Kings,
Gaspar, Melchior, Balthasar,
Pray for us now, and in the hour of death.

These papers have touched the three heads of the Holy Kings at Cologne.

They are to preserve travellers from accidents on the road, headaches, falling sickness, fevers, witchcraft, all kinds of mischief, and sudden death.

His body was thrown into a pit on the Broyle, at Chichester, together with those of Richard Mills, the elder, and younger. The body of William Carter was hanged in chains upon the Portsmouth road, near Rake; that of Benjamin Tapner on Rook’s Hill, near Chichester, and those of John Cobby and John Hammond upon the sea-coast near Selsea Bill, so that they might be seen for great distances by any contrabandists engaged in running goods.

Another accomplice, Henry Shurman, or Sheerman, *alias* “Little Harry,” was indicted and tried at East Grinstead, and, being sentenced to death, was conveyed to Horsham Gaol by a strong guard of soldiers and hanged at Rake, and afterwards gibbeted.

In January 1749, a brutal murder was committed at the “Dog and Partridge” inn, on Slindon Common, near Arundel, where Richard Hawkins was whipped and kicked to death on suspicion of being concerned in stealing two bags of tea, belonging to one Jerry Curtis. Hawkins was enticed away from his work at Walberton, on some specious pretext, by Curtis and John Mills, known as “Smoker,” and went on horseback behind Mills to the “Dog and Partridge,” where they joined a man named Robb: all these men being well-known smugglers in that district. Having safely got Hawkins thus far, they informed him that he was their prisoner, and proceeded to put him under examination in the parlour of the inn. There were also present Thomas Winter (afterwards a witness for the prosecution), and James Reynolds, the innkeeper.

Hawkins denied having stolen the tea, and said he knew nothing of the matter, whereupon Curtis replied, “Damn you; you do know, and if you do not confess I will whip you till you do; for, damn you, I have whipped many a rogue and washed my hands in his blood.”

Reynolds said, “Dick, you had better confess; it will be better for you.” But his answer still was, “I know nothing of it.”

Reynolds then went out, and Mills and Robb thereupon beat and kicked Hawkins so ferociously that he cried out that the Cockrels, his father-in-law, and brother-in-law, who kept an inn at Yapton, were concerned in it. Curtis and Mills then took their horses and said they would go and fetch them. Going to the younger Cockrel, Mills entered the house first and called for some ale. Then Curtis came in and demanded his two bags of tea, which he said Hawkins had accused him of having. Cockrel denied having them, and then Curtis beat him with an oak stick until he was tired. Curtis and Mills then forcibly took him to where his father was, at Walberton, and thence, with his father, behind them on their horses, towards Slindon.

Meanwhile, at the “Dog and Partridge,” Robb and Winter placed the terribly injured man, Hawkins, in a chair by the fire, where he died.

Robb and Winter then took their own horses and rode out towards Yapton, meeting Curtis and Mills on the way, each with a man behind him. The men, who were the Cockrels, were told to get off, which they did, and the four others held a whispered conversation, when Winter told them that Hawkins was dead, and desired them to do no more mischief.

“By God!” exclaimed Curtis, “we will go through it now.” Winter again urged them to be content with what had already been done; and Curtis then bade the two Cockrels return home.

Then they all four rode back to the “Dog and Partridge,” where Reynolds was in despair, saying to Curtis, “You have ruined me.”



JOHN MILLS ALIAS SMOAKER AND RICHARD ROWLAND ALIAS ROBB, WHIPPING RICHARD HAWKINS TO DEATH AT THE DOG AND PARTRIDGE ON SLINDON COMMON, AND JEREMIAH CURTIS AND THOMAS WINTER, ALIAS COACHMAN STANDING BY AIDING AND ABETTING THE MURDER OF THE SAID RICHARD HAWKINS.

Curtis replied that he would make him amends; and they all then consulted how to dispose of the body. The first proposition was to bury it in a park

close at hand, and to give out that the smugglers had deported Hawkins to France. But Reynolds objected. The spot, he said, was too near, and would soon be found. In the end, they laid the body on a horse and carried it to Parham Park, twelve miles away, where they tied large stones to it, and sunk it in a pond.

This crime was in due course discovered, and a proclamation issued, offering a pardon to any one, not himself concerned in the murder, nor in the breaking open of the custom-house at Poole, who should give information that would lead to the capture and conviction of the offenders.

William Pring, an outlawed smuggler, who had heard some gossip of this affair among his smuggling acquaintance, and was apparently wishful of beginning a new life, determined to make a bid for his pardon for past offences, and, we are told, “applied to a great man in power,” informing him that he knew Mills, and that if he could be assured of his pardon he would endeavour to take him, for he was pretty certain to find him either at Bristol or Bath, whither he knew he was gone, to sell some run goods.

Being assured of his pardon, he set out accordingly, and found not only Mills, but two brothers, Lawrence and Thomas Kemp, themselves smugglers and highway robbers, and wanted for various offences; Thomas Kemp being additionally in request for having broken out of Newgate.

The informer, Pring, artfully talking matters over with these three, and observing that the cases of all of them were desperate, offered the advice that they should all accompany him towards London, to his house at Beckenham, where they would decide upon some plan for taking to highway robbery and house-breaking, in the same manner as Gregory’s Gang [\[66\]](#) used to do.

This they all heartily agreed to, and confidentially, on the journey up to Beckenham, spoke and bragged of their various crimes.

Arrived at Beckenham, Pring made a plausible excuse to leave them awhile at his house, while he fetched his mare, in exchange for the very indifferent horse he had ridden. It would never do, he said, when on their highway business, for one of the company to be badly horsed.

He left the house and rode hurriedly to Horsham, whence he returned with eight or nine mounted officers of excise. They arrived at midnight, and found his three guests sitting down to supper.

The two Kemps were easily secured, and tied by the arms; but Mills would not so readily submit, and was slashed with a sword before he would give in.



THE "DOG AND PARTRIDGE," SLINDON COMMON.

John Mills was a son of Richard Mills, and a brother of Richard Mills the younger, executed at Chichester for the murder of Chater and Galley, as already detailed, and he also had taken part in that business. Brought to trial at East Grinstead, he said he had indeed been a very wicked liver, but he bitterly complained of such of the witnesses against him as had been smugglers and had turned King's evidence. They had, he declared, acted contrary from the solemn oaths and engagements they had made and sworn to among themselves, and he therefore wished they might all come to the same end, and be hanged like him and damned afterwards.

He was found guilty and duly sentenced to death, and was hanged and afterwards hung in chains on a gibbet erected for the purpose on Slindon Common, near the "Dog and Partridge."

Curtis, an active partner in the same murder, fled the country, and was said to have enlisted in the Irish Brigade of the French Army. Robb was not taken, and Reynolds was acquitted of the murder. He and his wife were tried at the next Assizes, as accessories after the fact.

The “Dog and Partridge” has long ceased to be an inn, but the house survives, a good deal altered, as a cottage. In the garden may be seen a very capacious cellar, excavated out of the soil and sandstone, and very much larger than a small country inn could have ever required for ordinary business purposes. It is known as the “Smugglers’ Cellar.”

At the same sessions at which these bloodstained scoundrels were convicted a further body of five men, Lawrence and Thomas Kemp, John Brown, Robert Fuller, and Richard Savage, were all tried on charges of highway robbery, of housebreaking, and of stealing goods from a wagon. They were all members of the notorious Hawkhurst Gang, and had been smugglers for many years. All were found guilty and sentenced to death, except Savage, who was awarded transportation for life. The rest were executed at Horsham on April 1st, 1749. One of them had at least once already come near to being capitally convicted, but had been rescued from Newgate by a party of fellow-smugglers before justice could complete her processes.

These rescuers were in their turn arrested on other charges, and brought to trial at Rochester Assizes, with other malefactors, in March 1750. They were four notorious smugglers, Stephen Diprose, James Bartlett, Thomas Potter, and William Priggs, who were all executed on Penenden Heath, on March 30th.

Bartlett, pressed to declare, after sentence, if he had been concerned in any murders, particularly in that of Mr. Castle, an excise officer who had been shot on Selhurst Common by a gang of smugglers, would not give a positive answer, and it was therefore supposed he was concerned in it.

Potter described some of the doings of the gang, and told how, fully armed, they would roam the country districts at night, disguised, with blackened faces, and appear at lonely houses, where they would seize and bind the people they found, and then proceed to plunder at their leisure.

In the short interval that in those days was allowed between sentence and execution Potter was very communicative, and disclosed a long career of crime; but he declared that murder had never been committed by him. He had, it was true, proposed to murder the turnkey at Newgate at the time when he and his companions rescued their friends languishing in that doleful hold: but it had not, after all, been found necessary.

This, it will be conceded, was sufficiently frank and open. The official account of that rescue was that Thomas Potter and three other smugglers came into the press-yard at Newgate to visit two prisoners, Thomas Kemp and William Grey, also of the Hawkhurst Gang, when they agreed at all hazards to assist in getting them out. Accordingly the time was fixed (Kemp having no irons, and Grey having his so managed as to be able to let them fall off when he pleased), and Potter and the other three went again to the press-yard and rang the bell for the turnkey to come and let them in. When he came and unlocked the door Potter immediately knocked him down with a horse-pistol, and cut him terribly; and Kemp and Grey made their escape, while Potter and his companions got clear away without being discovered. Three other prisoners at the same time broke loose, but were immediately recaptured, having irons on.

All these men were, in fact, originally smugglers, and had, from being marked down as criminals for that offence, and from being “wanted” by the law, found themselves obliged to keep in hiding from their homes. In default of being able to take part in other runs of smuggled goods, and finding themselves unable to get employment, they were driven to other, and more serious, crimes.

On April 4th of the same year four other members of the terrible Hawkhurst Gang—Kingsmill, Fairall, Perrin, and Glover by name—were together brought to trial at the Old Bailey, charged with being concerned in the Poole affair, the breaking open of the custom-house, and the stealing of goods therefrom. They had been betrayed to the Government by the same two ex-smugglers who had turned King’s evidence at the Chichester trial, and their evidence again secured a conviction. Glover, recommended by the jury to the royal mercy, was eventually pardoned; but the remaining three were hanged. Fairall behaved most insolently at the trial, and even threatened one of the witnesses. Glover displayed penitence; and Kingsmill and Perrin insisted that they had not been guilty of any robbery, because the goods they had taken were their own.

Kingsmill had been leader in the ferocious attack on Goudhurst in April 1747, and was an extremely dangerous ruffian, ready for any extremity.

Fairall was proved to be a particularly desperate fellow. Two years earlier he had been apprehended, as a smuggler, in Sussex, and, being brought before Mr. Butler, a magistrate, at Lewes, was remitted by him for trial in London.

Brought under escort overnight to the New Prison in the Borough, Fairall found means to make a dash from the custody of his guards, and, leaping upon a horse that was standing in Blackman Street, rode away and escaped, within sight of numerous people.

Returning to the gang, who were reasonably surprised at his safe return from the jaws of death, he was filled with an unreasoning hatred of Mr. Butler, the justice who, in the ordinary course of his duty, had committed him. He proposed a complete and terrible revenge: firstly, by destroying all the deer in his park, and all his trees, which was readily agreed to by the gang; and then, since those measures were not extreme enough for them, the idea was discussed of setting fire to his house and burning him alive in it. Some of the conspirators, however, thought this too extreme a step, and they parted without coming to any decision. Fairall, Kingsmill, and others, however, determined not to be balked, then each procured a brace of pistols, and waited for the magistrate, near his own park wall, to shoot him when he returned home that night from a journey to Horsham.

Fortunately for him, some accident kept him from returning, and the party of would-be assassins, tired of waiting, at last said to one another, "Damn him, he will not come home to-night! Let us be gone about our business." They then dispersed, swearing they would watch for a month together, but they would have him; and that they would make an example of all who should dare to obstruct them.

Perrin's body was directed to be given to his friends, instead of being hanged in chains, and he was pitying the misfortunes of his two companions, who were not only, like himself, to be hanged, but whose bodies were afterwards to be gibbeted, when Fairall said, "We shall be hanging up in the sweet air when *you* are rotting in your grave."

Fairall kept a bold front to the very last. The night before the execution, he smoked continually with his friends, until ordered by the warder to go to his cell; when he exclaimed, "Why in such a hurry? Cannot you let me stay a

little longer with my friends? I shall not be able to drink with them to-morrow night.”

But perhaps there was more self-pity in those apparently careless words and in that indifferent demeanour than those thought who heard them.

Kingsmill was but twenty-eight years of age, and Fairall twenty-five, at the time of their execution, which took place at Tyburn on April 26th, 1749. Fairall's body was hanged in chains on Horsenden Green, and that of Kingsmill on Goudhurst Gore, appropriately near the frightened village whose inhabitants he had promised the vengeance of himself and his reckless band.

When G. P. R. James wrote his romance, “The Smuggler,” about the middle of the nineteenth century, reminiscences of the smuggling age were yet fresh, and many an one who had passed his youth and middle age in the art was still in a hale and hearty eld, ready to tell wonderful stories of bygone years. James therefore heard at first hand all the ins and outs of this shy business; and although his story deals with the exploits of the Ransley Gang (whom he styles “Ramley”) of a much earlier period, the circumstances of smuggling, and the conditions prevailing in Kent and Sussex, remained much the same in the experiences of the elderly ex-smugglers he met. What he has to say is therefore of more than common value.

Scarcely any one of the maritime counties, he tells us, was without its gang of smugglers; for if France was not opposite, Holland was not far off; and if brandy was not the object, nor silk, nor wine, yet tea and cinnamon, and hollands, and various East India goods, were duly estimated by the British public, especially when they could be obtained without the payment of custom-house dues.

As there are land-sharks and water-sharks, so there were land-smugglers and water-smugglers. The latter brought the objects of their commerce either from foreign countries or from foreign vessels, and landed them on the coast—and a bold, daring, reckless body of men they were; the former, in gangs, consisting frequently of many hundreds, generally well-mounted and armed, conveyed the commodities so landed into the interior and distributed them to others, who retailed them as occasion required. Nor

were these gentry one whit less fearless, enterprising, and lawless than their brethren of the sea.

The ramifications of this vast and magnificent league extended themselves to almost every class of society. Each tradesman smuggled, or dealt in smuggled goods; each public-house was supported by smugglers, and gave them in return every facility possible; each country gentleman on the coast dabbled a little in the interesting traffic; almost every magistrate shared in the proceeds, or partook of the commodities. Scarcely a house but had its place of concealment, which would accommodate either kegs or bales, or human beings, as the case might be; and many streets in seaport towns had private passages from one house to another, so that the gentleman inquired for by the officers at No. 1 was often walking quietly out of No. 20, while they were searching for him in vain. The back of one street had always excellent means of communication with the front of another, and the gardens gave exit to the country with as little delay as possible.

Of all counties, however, the most favoured by nature and art for the very pleasant and exciting sport of smuggling was the county of Kent. Its geographical position, its local features, its variety of coast, all afforded it the greatest advantages, and the daring character of the natives on the shores of the Channel was sure to turn those advantages to the purposes in question. Sussex, indeed, was not without its share of facilities, nor did the Sussex men fail to improve them; but they were so much farther off from the opposite coast that the chief commerce—the regular trade—was not in any degree at Hastings, Rye, or Winchelsea to be compared with that carried on from the North Foreland to Romney Hoy. At one time the fine level of the Marsh, a dark night, and a fair wind, afforded a delightful opportunity for landing a cargo and carrying it rapidly into the interior; at another, Sandwich Flats and Pevensey Bay presented harbours of refuge and places of repose for kegs innumerable and bales of great value; at another, the cliffs round Folkestone and near the South Foreland saw spirits travelling up by paths which seemed inaccessible to mortal foot; and at another, the wild and broken ground at the back of Sandgate was traversed by long trains of horses, escorting or carrying every description of contraband articles.

The interior of the county was not less favourable to the traffic than the coast: large masses of wood, numerous gentlemen's parks, hills and dales tossed about in wild confusion; roads such as nothing but horses could travel, or men on foot, often constructed with felled trees or broad stones laid side by side; wide tracts of ground, partly copse and partly moor, called in that county "minnises," and a long extent of the Weald of Kent, through which no highway existed, and where such a thing as coach or carriage was never seen, offered the land-smugglers opportunities of carrying on their transactions with a degree of secrecy and safety no other county afforded. Their numbers, too, were so great, their boldness and violence so notorious, their powers of injuring or annoying so various, that even those who took no part in their operations were glad to connive at their proceedings, and at times to aid in concealing their persons or their goods. Not a park, not a wood, not a barn, that did not at some period afford them a refuge when pursued, or become a depository for their commodities, and many a man, on visiting his stables or his cart-shed early in the morning, found it tenanted by anything but horses or wagons. The churchyards were frequently crowded at night by other spirits than those of the dead, and not even the church was exempted from such visitations.

None of the people of the county took notice of, or opposed these proceedings. The peasantry laughed at, or aided, and very often got a good day's work, or, at all events, a jug of genuine hollands, from the friendly smugglers; the clerk and the sexton willingly aided and abetted, and opened the door of vault, or vestry, or church for the reception of the passing goods; the clergyman shut his eyes if he saw tubs or jars in his way; and it is remarkable what good brandy-punch was generally to be found at the house of the village pastor. The magistrates of the county, when called upon to aid in pursuit of the smugglers, looked grave and swore in constables very slowly, dispatched servants on horseback to see what was going on, and ordered the steward or the butler to "send the sheep to the wood": an intimation not lost upon those for whom it was intended. The magistrates and officers of seaport towns were in general so deeply implicated in the trade themselves that smuggling had a fairer chance than the law, in any case that came before them; and never was a more hopeless enterprise undertaken, in ordinary circumstances, than that of convicting a smuggler, unless captured *in flagrante delicto*.



CHAPTER VI

OUTRAGE AT HASTINGS BY THE RUXLEY GANG—BATTLE ON THE
WHITSTABLE-CANTERBURY ROAD—CHURCH-TOWERS AS SMUGGLERS’
CELLARS—THE DRUMMER OF HERSTMONCEUX—EPITAPH AT TANDRIDGE—
DEPLORABLE AFFAIR AT HASTINGS—THE INCIDENT OF “THE FOUR
BROTHERS”

SUSSEX was again the scene of a barbarous incident, in 1768; and on this occasion seafaring men were the malefactors.

It is still an article of faith with the writers of guide-books who do not make their own inquiries, and thus perpetuate obsolete things, that to call a Hastings fisherman a “Chop-back” will rouse him to fury. But when a modern visitor, primed with such romance as this, timidly approaches one of these broad-shouldered and amply-paunched fisherfolk and suggests “Chop-backs” as a subject of inquiry, I give you my word they only look upon you with a puzzled expression, and don’t understand in the least your meaning.

But in an earlier generation this was a term of great offence to the Hastingsers. It arose, according to tradition, from the supposed descent of these fisherfolk from the Norse rovers who used the axe, and cleaved their enemies with them from skull to chine. But the true facts of the case are laid to the account of some of the notorious Ruxley Gang, who in 1768 boarded a Dutch hoy, the *Three Sisters*, in mid-channel, on pretence of trading, and chopped the master, Peter Bootes, down the back with a hatchet. This horrid deed might never have come to light had not these ruffians betrayed themselves by bragging to one another of their cleverness, and dwelling upon the way in which the Dutchman wriggled when they had slashed him on the backbone.



THE CHOP-BACKS.

The Government in November of that year sent a detachment of two hundred Inniskilling Dragoons to Hastings, to arrest the men implicated, and a man-o'-war and cutter lay off shore to receive them when they had been taken prisoners. The soldiers had strict orders to keep their mission secret, but the day after their arrival they were called out to arrest rioters who had violently assaulted the Mayor, whom they suspected of laying information against the murderers. The secret of the reason for the soldiers' coming had evidently in some manner leaked out. Several arrests of rioters were made, and the men implicated in the outrage on the Dutch boat were duly taken into custody.

The whole affair was so closely interwoven with smuggling that it was by many suspected that the men who had been seized were held for that offence as well; and persons in the higher walks of the smuggling business, namely, those who financed it, and those others who largely purchased the

goods, grew seriously alarmed for their own liberty. In the panic that thus laid hold of the town a well-to-do shopkeeper absconded altogether.

Thirteen men were indicted in the Admiralty Court on October 30th, 1769, for piracy and murder on the high seas; namely, Thomas Phillips, elder and younger, William and George Phillips, Mark Chatfield, Robert Webb, Thomas and Samuel Ailsbury, James and Richard Hyde, William Geary, *alias* Justice, *alias* George Wood, Thomas Knight, and William Wenham, and were capitally convicted. Of these, four, Thomas Ailsbury, William Geary, William Wenham, and Richard Hyde, were hanged at Execution Dock, November 27th.

The next most outstanding incident, a bloody affray which occurred on February 26th, 1780, belongs to Kent.

As Mr. Joseph Nicholson, supervisor of excise, was removing to Canterbury a large seizure of geneva he had made at Whitstable, a numerous body of smugglers followed him and his escort of a corporal and eight troopers of the 4th Dragoons. Fifty of the smugglers had firearms, and, coming up with the escort, opened fire without warning or demanding their goods. Two Dragoons were killed on the spot, and two others dangerously wounded. The smugglers then loaded up the goods and disappeared. A reward of £100 was at once offered by the Commissioners of Excise, with a pardon, for informers; and Lieutenant-Colonel Hugonin, of the 4th Dragoons, offered another £50. John Knight, of Whitstable, was shortly afterwards arrested, on information received, and was tried and convicted at Maidstone Assizes. He was hanged on Penenden Heath and his body afterwards gibbeted on Borstal Hill, the spot where the attack had been made.

The south held unquestioned pre-eminence, as long as smuggling activities lasted, and the records of bloodshed and hard-fought encounters are fullest along the coasts of Kent and Sussex. Sometimes, but not often, they are varied by a touch of humour.

The convenience afforded by churches for the storing of smuggled goods is a commonplace of the history of smuggling; and there is scarce a seaboard church of which some like tale is not told, while not a few inland church-towers and churchyards enjoy the same reputation. Asked to account for this almost universal choice of a hiding-place by the smugglers, a parish

clerk of that age supposed, truly enough, that it was because no one was ever likely to go near a church, except on Sundays. This casts an instructive side-light upon the Church of England and religion at any time from two hundred to seventy or eighty years ago.

But a tale of more than common humour was told of the old church at Hove, near Brighton, many years ago. It seems that this ancient building had been greatly injured by fire in the middle of the seventeenth century, but that the population was so small and so little disposed to increase that a mere patching up of the ruins was sufficient for local needs. Moreover, the spiritual needs of the place were considered to be so small that Hove and Preston parishes were ecclesiastically united, and were served by one clergyman, who conducted service at each parish church on alternate Sundays. At a later period, indeed, Hove church was used only once in six weeks.

But in the alternate Sunday period the smugglers of this then lonely shore found the half-ruined church of Hove peculiarly useful for their trade; hence the following story.

One "Hove Sunday" the vicar, duly robed, appeared here to take the duty, and found, greatly to his surprise, that no bell was ringing to call the faithful to worship. "Why is the bell not ringing?" demanded the vicar.

"Preston Sunday, sir," returned the sexton shortly.

"No, no," replied the vicar.

"Indeed, then, sir, 'tis."

But the vicar was not to be argued out of his own plain conviction that he had taken Preston last Sunday, and desired the sexton to start the bell-ringing at once.

"'Taint no good, then, sir," said the sexton, beaten back into his last ditch of defence; "you can't preach to-day."



THE DRUMMER OF HERSTMONCEUX.

“*Can’t*, fellow?” angrily responded the vicar; “what do you mean by ‘*can’t*’?”

“Well, then, sir,” said the sexton, “if you must know, the church is full of tubs, and the pulpit’s full of tea.”

An especially impudent smuggling incident was reported from Hove on Sunday, October 16th, 1819, in the following words:

“A suspected smuggling boat being seen off Hove by some of the custom-house officers, they, with two of the crew of the *Hound* revenue cutter, gave chase in a galley. On coming up with the boat their suspicions were confirmed, and they at once boarded her; but while intent on securing their prize, nine of the smugglers leapt into the *Hound*’s galley and escaped. Landing at Hove, seven of them got away at once, two being taken prisoners by some officers who were waiting for them. Upon this a large company of smugglers assembled, at once commenced a desperate attack upon the officers, and, having overpowered them, assaulted them with

stones and large sticks, knocked them down, and cut the belts of the chief officer's arms, which they took away, and thereby enabled the two prisoners to escape."

A reward of £200 was offered, but without result. The cargo of the smugglers consisted of 225 tubs of gin, 52 tubs of brandy, and one bag of tobacco.

Many of the ghost-stories of a hundred years and more ago originated in the smugglers' midnight escapades. It was, of course, entirely to their advantage that superstitious people who heard unaccountable sounds and saw indescribable sights should go off with the notion that supernatural beings were about, and resolve thenceforward to go those haunted ways no more. The mysterious "ghostly drummer" of Herstmonceux, who was often heard and seen by terrified rustics whose way led them past the ruined castle at night, was a confederate of the Hastings and Eastbourne smugglers, to whom those roofless walls and the hoary tombs of the adjoining churchyard were valuable storehouses. Rubbed with a little phosphorus, and parading those spots once in a way with his drum, they soon became shunned. The tombstones in Herstmonceux churchyard, mostly of the kind known as "altar-tombs," had slabs which the smugglers easily made to turn on swivels; and from them issued at times spirits indeed, but not such as would frighten many men. The haunted character of Herstmonceux ceased with the establishment of the coastguard in 1831, and the drummer was heard to drum no more.

The churchyards of the Sussex coast and its neighbourhood still bear witness to the fatal affrays between excisemen and smugglers that marked those times; and even far inland may be found epitaphs on those who fell, breathing curses and Divine vengeance on the persons who brought them to an untimely end. Thus at Tandridge, Surrey, near Godstone, may be seen a tall tombstone beside the south porch of the church, to one Thomas Todman, aged thirty-one years, who was shot dead in a smuggling affray in 1781. Here follow the lamentable verses, oddities of grammar, spelling, and punctuation duly preserved:

Thou Shall do no Murder, nor Shalt thou Steal
are the Commands Jehovah did Reveal

but thou O Wretch, Without fear or dread
of Thy Tremendous Maker Shot me dead
Amidst my strength my sins forgive
As I through Boundless Mercy
hope to live.

The prudery of some conscientious objector to the word “wretch” has caused it to be almost obliterated.



TANDRIDGE CHURCH.

At Patcham, near Brighton, the weatherworn epitaph on the north side of the church to Daniel Scales may still with difficulty be deciphered:

Sacred to the memory of DANIEL SCALES
who was unfortunately shot on Thursday evening,
November 7th 1796

Alas! swift flew the fatal lead,
Which piercèd through the young man's head
He instant fell, resigned his breath,
And closed his languid eyes in death.
All you who do this stone draw near,
Oh! pray let fall the pitying tear.

From this sad instance may we all,
Prepare to meet Jehovah's call.

Daniel Scales was one of a desperate smuggling gang, who had had many narrow escapes, but was at last shot through the head.

Again, at Westfield, Sussex, not far from Rye, may be found an old stone, rapidly going to decay, bearing some lines to the memory of a smuggler named Moon:

“In Memory of John Moon, who was deprived of life by a base man,
on the 20th of June 1809, in the 28th year of his age.

’Tis mine to-day to moulder in the earth. . . .”

The rest is not now readable.

Among the many tragical incidents of the smuggling era was the affray aboard a fishing-smack off Hastings in March 1821, in which a fisherman named Joseph Swain, supposed by the blockading officers of the preventive force to be a smuggler, was killed. Fishing-boats and their crews were, as a matter of course, searched by these officials; but the boat boarded by them on this occasion belonged to Swain, who denied having any contraband goods aboard and refused to permit the search. So strenuous a refusal as Swain offered would seem, in those times, of itself sufficient evidence of the presence of smuggled articles, and the boarders persisted. A sailor among them, George England by name, pressed forward to the attack, and Swain seized his cutlass and tore it out of his hand; whereupon England drew a pistol and fired at Swain, who instantly fell dead.

An epitaph in the churchyard of All Saints, Hastings, bears witness to this incident:



This Stone
Sacred to the memory of
JOSEPH SWAIN, Fisherman
was erected at the expence of
the members of the friendly
Society of Hastings

in commiseration of his cruel and untimely death and as a record of the public indignation at the need-
less and sanguinary violence of which he was the unoffending Victim
He was shot by Geo. England, one of the Sailors employ'd in the Coast blockade service in open day on the 13th March 1821 and almost instantly

expir'd, in the twenty ninth Year of
his age, leaving a Widow and five
small children to lament his lofs.

England was subsequently put on his trial for wilful murder at Horsham,
and was sentenced to death, but afterwards pardoned.

In short, in one way and another, much good blood and a great quantity of
the most excellent spirits were spilt and let run to waste, along the coasts.

The affair of the *Badger* revenue cutter and the *Vre Brodiers*, or *Four Brothers*, smuggling lugger was the next exciting event. It happened on January 13th, 1823, and attracted a great deal of attention at the time, not only on account of the severe encounter at sea, but from the subsequent trial of the crew of the smuggler. The *Four Brothers* was a Folkestone boat, and her crew of twenty-six were chiefly Folkestone men. She was a considerable vessel, having once been a French privateer, and was, as a privateer had need to be, a smart, easily handled craft, capable of giving the go-by to most other vessels. She carried four six-pound carronades. In constant commission, her crew pouched a pound a week wages, with an additional ten guineas for each successful run.

On January 12th, of this momentous voyage, she sailed from Flushing with over one hundred tons of leaf-tobacco aboard, snugly packed for convenience of carriage in bales of 60 lb., and carried also a small consignment of brandy and gin, contained in 50 half-ankers, and 13 chests of tea—all destined for the south of Ireland. Ship and cargo were worth some £11,000; so it is sufficiently evident that her owners were in a considerable way of business of the contraband kind.

At daybreak on the morning of January 13th, when off Dieppe and sailing very slowly, in a light wind, the crew of the *Four Brothers* found themselves almost upon what they at first took to be French fishing-boats, and held unsuspectingly on her course. Suddenly, however, one of them ran a flag smartly up her halliards and fired a gun across the bows of the *Four Brothers*, as a signal to bring her to. It was the revenue cutter *Badger*.

Unfortunately for the smuggler, she was carrying a newly stepped mainmast, and under small sail only, and accordingly, in disobeying the

summons and attempting to get away, she was speedily outsailed.

The smuggler, unable to get away, hoisted the Dutch colours and opened the fight that took place by firing upon the *Badger*, which immediately returned it. For two hours this exchange of shots was maintained. Early in the encounter William Cullum, seaman, was killed aboard the *Badger*, and Lieutenant Nazer, in command, received a shot from a musket in the left shoulder. One man of the *Four Brothers* was killed outright, and nine wounded, but the fight would have continued had not the *Badger* sailed into the starboard quarter of the smuggler, driving her bowsprit clean through her adversary's mainsail. Even then the smuggler's crew endeavoured to fire one of her guns, but failed.

The commander of the *Badger* thereupon called upon the *Four Brothers* to surrender; or, according to his own version, the smugglers themselves called for quarter; and the mate and some of the cutter's men went in a boat and received their submission, and sent them prisoners aboard the *Badger*. The smugglers claimed that they had surrendered only on condition that they should have their boats and personal belongings and be allowed to go ashore; but it seems scarce likely the Lieutenant could have promised so much. The *Four Brothers* was then taken into Dover Harbour and her crew sent aboard the *Severn* man-o'-war and kept in irons in the cockpit. Three of her wounded died there. The others, after a short interval, were again put aboard the *Badger* and taken up the Thames to imprisonment on the Tower tender for a further three or four days. Thence they were removed, all handcuffed and chained, in a barge and committed to the King's Bench Prison. At Bow Street, on the following day, they were all formally committed for trial, and then remitted to the King's Bench Prison for eleven weeks, before the case came on.

On Friday, April 25th, 1823, the twenty-two prisoners were arraigned in the High Court of Admiralty; Marinel Krans, master of the *Four Brothers*, and his crew, nearly all of whom bore Dutch names, being charged with wilfully and feloniously firing on the revenue cutter *Badger*, on January 13th, 1823, on the high seas, about eight miles off Dungeness, within the jurisdiction of the High Court of Admiralty of England.

Mr. Brougham, afterwards Lord Brougham, defended, the defence being that the *Four Brothers* was a Dutch vessel, owned at Flushing, and her crew Dutchmen. A great deal of very hard swearing went towards this ingenious defence, for the crew, it is hardly necessary to say, were almost all English. At least one witness for the prosecution was afraid to appear in consequence of threats made by prisoners' friends, and an affidavit was put in to that effect. It appeared, in the evidence given by the commander of the *Badger* and other witnesses for the prosecution, that the prisoners all spoke excellent English at the time of the capture, and afterwards; but they, singularly enough, understood little or none when in court, and had to be communicated with through the agency of an interpreter.

In summing up, Mr. Justice Parke said the crime for which the prisoners were tried was not murder, but was a capital offence. Two things, if found by the jury, would suffice to acquit the prisoners. The first was that no part of the vessel which they navigated belonged to any subject of His Majesty; the other that one half of the crew were not His Majesty's subjects. For if neither of these facts existed, His Majesty's ship had no right to fire at their vessel. But if the jury believed that any part of the vessel was British property, or that one half of her crew were British subjects, then His Majesty's ship *Badger*, under the circumstances that had been proved, being on her duty, and having her proper colours flying, was justified in boarding their vessel; and their making resistance by firing at the *Badger* was a capital offence. The reason for the evidence respecting the distance of the vessels from the French coast being given was that, by the law of nations, ships of war were not, in time of peace, permitted to molest any vessel within one league of the coast of any other power.

The jury, after deliberating for two hours, returned a verdict of "Not Guilty" for all the prisoners, finding that the ship and cargo were wholly foreign property, and that more than one half the crew were foreigners. They were, accordingly, at once liberated, and returned to Folkestone in midst of great popular rejoicings. The *Four Brothers* was also released, and the commander of the *Badger* had the mortification of being obliged to escort her out of Dover harbour.

Dover town was, about this time, the scene of stirring events. One Lieutenant Lilburn, in command of a revenue cutter, had captured a

smuggler, and had placed the crew in Dover gaol. As they had not offered armed resistance to the capture, their offence was not capital, but they were liable to service on board a man-o'-war—a fate they were most anxious to avoid. These imprisoned men were largely natives of Folkestone and Sandgate, and their relatives determined to march over the ten miles between those places and Dover, and, if possible, liberate them. When they arrived in Dover, and their intention became known, a crowd of fisherfolk and longshore people swarmed out of the Dover alley-ways and reinforced them. Prominent among them were the women, who, as ever in cases of popular tumult, proved themselves the most violent and destructive among the mob. Nothing less than the destruction of the gaol was decided upon, and the more active spirits, leaving others to batter in the walls, doors, and windows, climbed upon the roof, and from that vantage-point showered bricks and tiles upon the Mayor and the soldiers who had been called out. The Mayor, beset with tooth and claw by screeching women, who tore the Riot Act out of his hand, fled, and Lieutenant Lilburn exhorted the officer in charge of the military to fire upon the crowd, but he declined; and meanwhile the tradespeople and respectable inhabitants busied themselves in barricading their shops and houses.



"RUN THE RASCAL THROUGH!"

The prisoners were triumphantly liberated, taken to a blacksmith's, where their irons were knocked off, and then driven off in post chaises to Folkestone, whence they dispersed to their several hiding-places.

Romney was, about this time, the scene of another desperate affair, when an attempted seizure of contraband brought all the smugglers' friends and relations out, in violent contest with the excise and a small party of marines in command of which was one Lieutenant Peat. A magistrate was sent for, who, amid a shower of stones, read the Riot Act. The Lieutenant hesitated to resort to extreme force, but one of the smugglers was eventually killed by him, in response to the magistrate's order, in respect of one of the most violent of the crowd: Secure your prisoner, sir. Run the rascal through!

CHAPTER VII

FATAL AFFRAYS AND DARING ENCOUNTERS AT RYE, DYMCHURCH,
EASTBOURNE, BO-PEEP, AND FAIRLIGHT—THE SMUGGLERS' ROUTE FROM
SHOREHAM AND WORTHING INTO SURREY—THE MILLER'S TOMB—LANGSTON
HARBOUR—BEDHAMPTON MILL

THE 'twenties of the nineteenth century formed a period especially rich in smuggling incidents, or perhaps seem so to do, because, with the growth of country newspapers, they were more fully reported, instead of being left merely the subject of local legend.

A desperate affray took place in Rye Harbour so late as May 1826, when a ten-oared smuggling galley, chased by a revenue guard-boat, ran ashore. The smugglers, abandoning their oars, opened fire upon the guard, but the blockade-men from the watch-house at Camber then arrived upon the scene and seized one of the smugglers; whereupon a gang of not fewer than two hundred armed smugglers, who had until that moment been acting as a concealed reserve, rushed violently from behind the sandhills, and commenced firing on the blockade-men, killing one and wounding another. They were, however, ultimately driven off, with the capture of their galley, but managed to carry off their wounded.

On another occasion, four or five smugglers were drowned whilst swimming the Military Canal, with tubs slung on their backs, at a point on Pett Level called "Pett Horse-race." They had, in the dark, missed the spot where it was fordable. Romney Marsh, and the wide-spreading levels of Pett, Camber, Guilford, and Dunge Marsh had—as we have already seen, in the account of the owlers given in earlier pages—ever been the smugglers' Alsatia.

The Rev. Richard Harris Barham, author of the "Ingoldsby Legends," has placed upon record some of his meetings with smugglers in "this recondite

region,” as he was pleased to style it; and his son, in the life he wrote of his father, adds to them. Barham, ordained in 1813, and given the curacy of Westwell, near Ashford, had not long to wait before being brought into touch with the lawless doings here. One of the desperate smugglers of the Marsh had been shot through the body in an encounter with the riding-officers, and fatally wounded. As he lay dying, Barham was brought to convey to him the last consolations of religion, and was startled when the smuggler declared there was no crime of which he had not been guilty.

“Murder is not to be reckoned among them, I hope,” exclaimed the not easily shocked clergyman.

“Too many of them!” was the startling response of the dying man.

In 1817 Barham was collated by the Archbishop of Canterbury to the adjoining livings of Warehorne and Snargate, the first-named situated on the verge of the marsh; the second situated, moist and forbidding, in the marsh itself. The winding road between these two villages crossed the then newly made Royal Military Canal by a bridge. Often, as the clergyman was returning, late at night, to his comfortable parsonage at Warehorne, he was met and stopped by some mysterious horsemen; but when he mentioned his name he was invariably allowed to proceed, and, as he did so, a long and silent company of mounted smugglers defiled past, each man with his led horse laden with tubs. The grey tower of Snargate church he frequently found, by the aroma of tobacco it often exhaled, instead of its customary and natural mustiness, to have been recently used as a store for smuggled bales of that highly taxed article.

The *Cinque Ports Herald* of 1826 records the landing on a night in May, or in the early hours of the morning, of a considerable cargo of contraband hereabouts:

“A large party of smugglers had assembled in the neighbourhood of Dymchurch, and a boat laden (as is supposed) with tubs of spirits, being observed to approach the shore nearly opposite to Dymchurch, the smugglers instantly commenced cheering, and rushed upon the coast, threatening defiance to the sentinels of the blockade; who, perceiving such an overwhelming force, gave the alarm, when a party of marines, coming to their assistance, a general firing took place. The

smugglers retreated into the marshes, followed by the blockade-men, and, from their knowledge of the ground, were indebted for their ultimate escape. We regret to state two of the blockade seamen were wounded; one severely in the arm, which must cause amputation, and the other in the face, by slug shots. There can be no doubt but that some of the smugglers must have been wounded, if not killed. One of their muskets was picked up loaded—abandoned, no doubt, by the bearer of it, on account of wounds. The boat, with her cargo, was obliged to put to sea again, without effecting a landing, and, notwithstanding the vigilance of Lieutenants Westbrook, Mudge, and McLeod, who were afloat in their galleys on the spot, from the darkness of the night, effected its escape. We have also heard that a run of five hundred tubs took place on the Sussex coast last week, not far from Hastings, the smugglers losing only eleven tubs. This was also effected by force, and with such a superiority in number that they completely overpowered the blockade force.”



BARHAM MEETS THE SMUGGLERS.

The *Brighton Gazette*, of a few days later, contained the following:

“We have been favoured with some particulars of another recent attempt to work contraband goods a few miles eastward of Eastbourne, when it appears the coast blockade succeeded in taking a large boat and upwards of two hundred tubs. We are sorry to add much mischief has occurred, as on the following morning blood was observed near the spot. Two men, it is said, belonging to the boat are taken prisoners, and two of the blockade are reported to be much bruised and beaten, and it is also suspected some of the smugglers are seriously, if not mortally, wounded. The blockade in this instance behaved in the most humane manner, having received a regular volley from their opponents before their officers gave directions for them to fire. We have just heard that five smugglers were killed in the affray.”

On a Sunday night towards the end of July 1826, during a run of smuggled goods at Dover, the smugglers shot dead a seaman of the preventive force named Morgan, for which no one was ever convicted.

A determined and blood-stained struggle took place at Bo-Peep at midnight of January 3rd, 1828. Bo-Peep was the name of a desolate spot situated midway between Hastings and Bexhill. The place is the same as that westernmost extension of St. Leonards now known by the eminently respectable—not to say imposing—name of “West Marina”; but in those times it was a shore, not indeed lonely (better for its reputation had it been so) but marked by an evil-looking inn, to which were attached still more evil-looking “Pleasure Gardens.” If throats were not, in fact, commonly cut in those times at Bo-Beep, the inn and its deplorable “Pleasure Gardens” certainly looked no fit, or safe, resort for any innocent young man with a pocketful of money jingling as he walked.



On this occasion a lugger came in view off shore, when a party of smugglers armed, as usual, with “bats,” *i.e.* stout ash-poles, some six feet in length, rushed to the beach, landed the cargo, and made off with it, by various means, inland a distance of some three miles to Sidley Green. Here the coast blockade-men, some forty in number, came up with them.

The smugglers drew up in regular line-formation, and a desperate fight resulted. The smugglers fought with such determination and courage that the blockade-men were repulsed and one, Quartermaster Collins, killed. In the first volley fired by the blockade an old smuggler named Smithurst was killed; his body was found next morning, with his “bat” still grasped in his hands, the stout staff almost hacked to pieces by the cutlasses and bayonets of the blockade-men.

At the Spring Assizes held at Horsham, Spencer Whiteman, of Udimore, Thomas Miller, Henry Miller, John Spray, Edward Shoesmith, William Bennett, John Ford, and Stephen Stubberfield were indicted for assembling, armed, for purposes of smuggling, and were removed for trial to the Old Bailey, where, on April 10th, they all pleaded guilty; as did Whiteman,

Thomas Miller, Spray, Bennett, and Ford, together with Thomas Maynard and William Plumb, for a like offence on January 23rd, 1828, at Eastbourne. Sentence of death was passed on all, but was commuted to transportation. With three exceptions, they were young men, under thirty years of age.

Again, in broad daylight, in 1828, a lugger landed a heavy cargo of kegs on the open beach at Bo-Peep. No fewer than three hundred rustic labourers, who had been hired by the job, in the usual course, by the smugglers bold, assembled on the beach, and formed up two lines of guards while the landing of the tubs, and their loading into carts, on horses, or on men's shoulders, was proceeding. If the preventive officers knew anything of what was toward that busy day they did not, at any rate, interfere; and small blame to them for the very elementary discretion they displayed. They had, as already shown, been too seriously mauled at an earlier date for them to push matters again to extremity.

On January 3rd, 1831, in Fairlight Glen, two miles east of Hastings, two smugglers, William Cruttenden and Joseph Harrod, were shot dead, and on February 22nd, 1832, at Worthing, when between two and three hundred smugglers had assembled on the beach, William Cowardson was shot dead, and several others were carried away wounded.

Still the tale was continued, for during a landing on January 23rd, 1833, at Eastbourne, the smugglers, who had assembled in large numbers, killed George Pett, chief boatman of the local preventive station, and ran their cargo safely. Several of both sides were wounded on this occasion, but no one among the smugglers was ever arrested.

The last fatal happening in this way along the Sussex coast appears to have been in the marshes at Camber Castle, on April 1st, 1838, when a poor fiddler of Winchelsea, named Thomas Monk, was shot in the course of a dispute over run goods, by the coastguard.

But we may quite easily have a surfeit of these brutal affrays, and it is better to dwell on a lighter note, to contemplate the audacity, and to admire the ingenuity and the resource often displayed by the smugglers in concealing their movements.

To especially single out any particular line of coast for pre-eminence in smuggling would be impossible. When every one smuggled, and every one else—owing to that well-understood human foible of buying in the cheapest market—supported smuggling by purchasing smuggled goods, every foreshore that did not actually present physical difficulties, or that was not exceptionally under excise and customs surveillance, was a free port, in a very special signification. The thickly peopled coast-line of Kent, Sussex, and Hampshire of our own time was then sparsely populated, and those shores that are now but thinly settled were in that age the merest aching wildernesses, where not only towns, but even villages and hamlets, were few and far apart. A coast-line such as that at Brighton would seem to us to present certain obvious difficulties to the smuggler, but close at hand was the low-lying land of Shoreham, with its lagoon-like harbour, a very shy, secretive kind of place, to this day; while away to Worthing, and beyond it, stretched a waste of shingle-beach, running up to solitary pasture-lands that reached to the foot of the noble rampart of the South Downs. On these shores the free-traders landed their illegal imports with little interference, and their shore-going allies received the goods and took them inland, to London or to their intermediate storehouses in the country-side, very much at their leisure. Avoiding the much-travelled high-roads, and traversing the chalk-downs by unfrequented bridle-tracks, they went across the level Weald and past the Surrey border into that still lonely district running east and west for many miles, on the line of Leith Hill, Ewhurst, and Hindhead. There, along those wooded heights, whose solitary ways still astonish, with their remote aspect, the Londoner who by any chance comes to them, although but from thirty to thirty-five miles from the Bank of England in the City of London, you may still track, amid the pine-trees on the shoulders of the gorsy hills, or among the oaks that grow so luxuriantly in the Wealden clay, the “soft roads,” as the country folk call them, along which the smugglers, unmolested, carried their merchandise. On Ewhurst Hill stands a windmill, to which in those times the smugglers’ ways converged; and near by, boldly perched on a height, along the sylvan road that leads from Shere to Ewhurst village, stood the “Windmill,” once the “New” inn, which had a double roof, utilised as a storehouse for clandestine kegs. A “Windmill” inn stands on the spot to-day, but it is a new building, the old house having unfortunately been burned down some two years since. Surveying the country from this spot, you have, on the one hand,

almost precipitous hill-peaks, gorsy to their summits, and on the other a lovely dale, deeply embosomed in woods. The sub-soil here is a soft yellow sandstone, streaked with white sand, breaking out along the often hollow paths into miniature cliffs, in which the smugglers and their allies were not slow to scoop caverns and store part of their stock. We have already learnt how terrible these men could be to those who informed against them or made away with any of their property, and by direct consequence the goods thus stored were generally safe, either from the authorities or from the rustics, who had a very wholesome and well-founded dread of the smuggling bands. But they had a way of their own of letting these justly dreaded folk see that their stores were evident to some, and that silence was supposed to have a certain market value. Their way was just a delicate hint, which consisted in marking a tub or two with a chalk cross; and, sure enough, when the stock was removed, those chalk-marked tubs were left behind, with possibly, if the country-folk had been modest and the smugglers were generous, a few others to keep them company.



SMUGGLER'S TRACKS NEAR EWHURST.

An old brick-and-tile-hung farm, down below Ewhurst Hill, older than it looks, known as Barhatch, was in those times in possession of the Ticknor family; and still, in what was the old living-room, may be seen the inglenook, with its iron crane, marked "John Ticknor, 1755." The Barhatch woods were often used by smugglers, and the Ticknors never had any

occasion to purchase spirits, because, at not infrequent intervals, when the household arose, and the front door was opened in the morning, a keg would be found deposited on the steps: a complimentary keg, for the use of the Ticknor property and the discretion of the Ticknor tongue.

One of the choicest landing-places along the Sussex coast must undoubtedly have been just westward of Worthing, by Goring, where the shore is yet secluded, and is even now not readily come at by good roads. In a line with it is Highdown Hill, a rounded hump of the Downs, rising to a height of two hundred and ninety-nine feet, two miles inland; a spot famed in all guidebook lore of this neighbourhood as the site of the “Miller’s Tomb.” This miller, whose real business of grinding corn seems to have been supplemented by participation in the stern joys of illegal importation, was one John Olliver. His mill was situated on this hill-top: a very remote spot, even now, arrived at only along lanes in which mud and water plentifully await the explorer’s cautious foot, and where brambles and intrudant twigs, currycomb his whiskers, if he have such.



THE MILLER'S TOMB.

John Olliver, miller, was an eighteenth-century eccentric, whose morbid fancy for having his coffin made early in life, and wheeled under his bed every night, was not satisfied until he had also built himself a tomb on the hill-top, on a twelve-foot square plot of ground granted him by the landowner, one W. W. Richardson, in 1766: a tomb on which he could with satisfaction look every day. Yet he was not the dull, dispirited man one

might for these things suppose; and Pennant, in his *Tour in Sussex*, is found saying, “I am told he is a stout, active, cheerful man.” And then comes this significant passage. “Besides his proper trade he carries on a very considerable one in smuggled goods.” Let us pause a moment to reflect upon the impudent public manner in which John Olliver must have carried on his smuggling activities. To this impudence he added also figures on his house-top, representing a miller filling a sack and a smuggler chased by an exciseman with a drawn sword; after the exciseman coming a woman with a broom, belabouring him about the head. The tomb the miller had built for eventual occupation by his body was in the meanwhile generally occupied by spirits—not the spirits of the dead, but such *eaux de vie* as hollands and cognac; and he himself was not laid here for many years, for he lived to be eighty-four years of age, and died in 1793. He had long been widely known as an eccentric, and thousands came to his funeral on the unconsecrated spot. Here the tomb, of the altar-tomb type, stands to this day, kept in excellent repair, and the lengthy inscriptions repainted; at whose costs and charges I know not. A small grove of trees almost entirely encircles it. At one end is a gruesome little sculpture representing Death, as a skeleton, laying a hand upon an affrighted person, and asking him, “Whither away so fast?” and at the other end are the following lines:

Why fhould my fancy anyone offend
Whofe good or ill does not on it depend
(A generous gift) on which my Tomb doth ftand
This is the only fpot that I have chofe
Wherein to take my lafting long repofe
Here in the drift my body lieth down
You’ll fay it is not confecrated ground,
I grant y^e fame; but where shall we e’er find
The fpot that e’er can purify the mind?
Nor to the body any luftre give.
This more depends on what a life we live
For when y^e trumpet fhall begin to found
’Twill not avail where’er y^e Body’s found.
Blefed are they and all who in the Lord the Saviour die
Their bodief wait Redemption day,
And fleep in peace where’er they lay.

On the upper slab are a number of texts and highly moral reflections.

As for the Selsey Peninsula, and the district of flat lands and oozy creeks south of Chichester and on to Portsmouth, Nature would seem almost to have constructed the entire surroundings with the especial objects of securing the smugglers and confounding the customs. Here Sussex merges into Hampshire.



Among the many smuggling nooks along the Hampshire coast, Langston Harbour was prominent, forming, as it does, an almost landlocked lagoon, with creeks ramifying toward Portsea Island on one side and Hayling Island on the other. There still stands on a quay by the waterside at Langston the old “Royal Oak” inn, which was a favourite gathering-place of the “free-traders” of these parts, neighboured by a ruined windmill of romantic aspect, to which no stories particularly attach, but whose lowering, secretive appearance aptly accentuates the queer reputation of the spot.

The reputation of Langston Harbour was such that an ancient disused brig, the *Griper*, was permanently stationed here, with the coastguard housed aboard, to keep watch upon the very questionable goings and comings of the sailor-folk and fishermen of the locality. And not only these watery folk needed watching, but also the people of Havant and the oyster-fishers of Emsworth. Here, too, just outside Havant, at the village of Bedhampton, upon the very margin of the mud, stands an eighteenth-century mill. It would have been profitable for the coastguard to keep an eye upon this huge old corn-milling establishment, if the legends be at all true that are told of

it. A little stream, issuant from the Forest of Bere, at this point runs briskly into the creek, after having been penned up and made to form a mill-leat. It runs firstly, moat-like, in front of a charming old house, formerly the miller's residence, and then to the great waterwheel, and the mill itself, a tall, four-square building of red brick, not at all beautiful, but with a certain air of reserve all the more apparent, of course, because it is now deserted, bolted, and barred: steam flour-mills of more modern construction having, it may be supposed, successfully competed with its antiquated ways. But at no time, if we are to believe local legend, did Bedhampton Mill depend greatly upon its milling for prosperity. It was rather a smugglers' storehouse, and the grinding of corn was, if not altogether an affectation, something of a by-product. You may readily understand the working of the contraband business, under these specious pretences, beneath the very noses of coastguard and excise; how goods brought up the creek and stored in this capacious hold could, without suspicion incurred, be taken out of store, loaded in among the flour-sacks in the miller's wagons, and delivered wherever desired. Of course, that being the mill's staple business, it is quite readily understood that when the business of smuggling declined such milling as went forward here did by no means suffice to keep the great building going.

The house, which appears now to be let as a country residence for the summer to persons who neither know nor care anything about the story of the place, has an odd inscription on its gable:

The gift of Mr. George
Judge at Stubbington
Farm at Portsea Hard, in
Memory of his very good Friend,
Mr. George Champ,
Senr. 1742.

That sporadic cases of smuggling long continued in these districts, as elsewhere, after the smuggling era was really ended, we may see from one of the annual reports issued by the Commissioners of Customs. The following incident occurred in 1873, and is thus officially described:

“On the top of a bank rising directly from highwater-mark in one of the muddy creeks of Southampton Water stands a wooden hut commanding a full view of it, and surrounded by an ill-cultivated garden. There are houses near, but the hut does not belong to them, and appears to have been built for no obvious purpose. An old smuggler was traced to this hut, and from that time, for nearly two months, the place was watched with great precaution, until at midnight, on May 28th, two men employed by us being on watch, a boat was observed coming from a small vessel about a mile from the shore. The boat, containing four men, stopped opposite the hut, landed one man and some bags, while the remainder of the crew took her some two hundred yards off, hauled her up, and then proceeded to the hut. One of our men was instantly despatched for assistance, while the other remained, watching. On his return with three policemen, the whole party went to the hut, where they found two men on watch outside and four inside, asleep. A horse and cart were also found in waiting, the cart having a false bottom. The six men were secured and sent to the police-station; a boat was then procured, the vessel whence the men had come was boarded, and found to be laden with tobacco and spirits. The result was that the vessel, a smack of about fifteen tons, with eighty-five bales of leaf-tobacco, six boxes of Cavendish, with some cigars and spirits, was seized, and four of the persons concerned in the transaction convicted of the offence.”



BEDHAMPTON MILL

CHAPTER VIII

EAST COAST SMUGGLING—OUTRAGE AT BECCLES—A COLCHESTER RAID—
CANVEY ISLAND—BRADWELL QUAY—THE EAST ANGLIAN “CART GAPS”—
A BLAKENEY STORY—TRAGICAL EPITAPH AT HUNSTANTON—THE PEDDAR’S
WAY

THE doings of the Kentish and Sussex gangs entirely overshadow the annals of smuggling in other counties; and altogether, to the general reader, those two seaboard and the coasts of Devon and Cornwall stand out as typical scenes. But no part of our shores was immune; although the longer sea-passages to be made elsewhere of course stood greatly in the way of the “free-traders” of those less favoured regions. After Kent and Sussex, the east coast was probably the most favourable for smuggling. The distance across the North Sea might be greater and the passage often rough, but the low muddy shores and ramifying creeks of Essex and the sandy coastwise warrens of Suffolk, Norfolk, and Lincolnshire, very sparsely inhabited, offered their own peculiar facilities for the shy and secretive trade.

Nor did the East Anglian smugglers display much less ferocity when their interests were threatened, or their goods seized, than was shown by the yokels of those other counties. The stolid, ox-like rustics of the countryside there, as along the margin of the English Channel, were roused to almost incredible acts of brutality which do not seem to have been repeated in the West.

We do not find the hardy seafaring smugglers often behaving with the cold-blooded cruelty displayed, as a usual phenomenon, by the generally unemotional men of ploughed fields and rustic communities who took up the running and carried the goods inland from the water’s edge whither those sea-dogs had brought them. In the being of the men who dared tempestuous winds and waves there existed, as a rule, a more sportsmanlike

and generous spirit. Something of the traditional heartiness inseparable from sea-life impelled them to give and take without the black blood that seethed evilly in the veins of the landmen. The seamen, it seemed, realised that smuggling was a risk; something in the nature of any game of skill, into which they entered, with the various officers of the law naturally opposed to them; and when either side won, that was incidental to the game, and no enmity followed as the matter of course it was with their shore-going partners.

Perhaps these considerations, as greatly as the difference in racial characters, show us why the land-smugglers of the Home Counties should have been so criminal, while from the Devon and Cornish contrabandists we hear mostly of humorous passages.



THE "GREEN MAN," BRADWELL QUAY.

At Beccles, in Suffolk, for example, we find the record, in 1744, of an incident that smacks rather of the Hawkhurst type of outrage. Smugglers there pulled a man out of bed, whipped him, tied him naked on a horse, and rode away with their prisoner, who was never again heard of, although a reward of £50 was offered.

Colchester was the scene, on April 16th, 1847, of as bold an act as the breaking open of the custom-house at Poole. At two o'clock in the morning two men arrived at the quay at Hythe, by Colchester, and, with the story that they were revenue officers come to lodge a seizure of captured goods, asked to be shown the way to the custom-house. They had no sooner been shown

it than there followed thirty smugglers, well armed with blunderbusses and pistols, who, with a heavy blacksmith's hammer and a crowbar, broke open the warehouse, in which a large quantity of dutiable goods was stored. They were not molested in their raid, and went off with sixty oil-bags, containing 1514 lb. of tea that had been seized near Woodbridge Haven. No one dared interfere with them, and by six o'clock that morning they had proceeded as far as Hadleigh, from which point all trace of them was lost.

Canvey Island, in the estuary of the Thames, off Benfleet, with its quaint old Dutch houses, relics of the seventeenth and eighteenth-century Hollanders who settled there and carried on a more than questionable business, was reputedly a nest of smugglers. The "Lobster Smack," a quaint old weatherboarded inn built just within the old earthen sea-wall for which those Dutchmen were responsible, and standing somewhat below the level of high water, has legends of smuggling that naturally do not lose by age or repetition.

The Blackwater estuary, running up from the Essex coast to Maldon, offered peculiar facilities for smuggling; and that, perhaps, is why a coastguard vessel is still stationed at Stansgate, half way along its length, opposite Osea Island. At the mouth of the Blackwater there branch other creeks and estuaries leading past Mersea Island to Colchester; and here, looking out upon a melancholy sea, and greatly resembling a barn, stands the ancient chapel of St. Peter-upon-the-Wall, situated in one of the most lonely spots conceivable, on what were, ages ago, the ramparts of the Roman station of *Othona*. It has long been used as a barn, and was in smuggling times a frequent rendezvous of the night-birds who waged ceaseless war with the Customs.

Two miles onward, along sea and river-bank, Bradwell Quay is reached, where the "Green Man" inn in these times turns a hospitable face to the wayfarer, but was in the "once upon a time" apt to distrust the casual stranger, for it was a house "ower sib" with the free-traders, and Pewit Island, just off the quay, a desolate islet almost awash, formed an admirable emergency store. The old stone-floored kitchen of the "Green Man," nowadays a cool and refreshing place in which to take a modest quencher on a summer's day, still remains very much what it was of old; and the quaint fireplace round which the sly longshore men of these Essex creeks

foregathered on those winter nights when work was before them keeps its old-time pot-racks and hooks.



Among the very numerous accounts of smuggling affrays we may exhume from the musty files of old newspapers, we read of the desperate encounter in which Mr. Toby, Supervisor of Excise, lost an eye in contending with a gang of smugglers at Caister, near Yarmouth, in April 1816; which shows—if we had occasion to show—that the East Anglian could on occasion be as ferocious as the rustics of the south.

The shores of East Anglia we have already noted to be largely composed of wide-spreading sandy flats, in whose wastes the tracks of wild birds and animals—to say nothing of the deeply indented footmarks of heavily-laden men—are easily distinguished; and the chief problem of the free-traders of those parts was therefore often how to cover up the tracks they left so numerous in their passage across to the hard roads. In this resort the shepherds were their mainstay, and for the usual consideration, *i.e.* a keg of the “right stuff,” would presently, after the gang had passed, come driving their flocks along in the sandy trail they had left: completely obliterating all evidences of a run of contraband goods having been successfully brought off.

Blakeney, on the Norfolk coast, is associated with one of the best, and most convincing, tales ever told of smuggling. This coast is rich in what are known as “cart gaps”: dips in the low cliffs, where horses and carts may readily gain access to the sea. These places were, of course, especially well watched by the preventive men, who often made a rich haul out of the innocent-looking farm-carts, laden with seaweed for manure, that were often to be observed being driven landwards at untimely hours of night and early morn. Beneath the seaweed were, of course, numerous kegs. Sometimes the preventive men confiscated horses and carts, as well as their loads, and all were put up for sale. On one of these painful occasions the local custom-house officer, who knew a great deal more of the sea and its ways than he did of horses, was completely taken in by a farmer-confederate of the smugglers whose horses had been seized. The farmer went to make an offer for the animals, and was taken to see them. The season of the year was the spring, when, as the poet observes, “a young man’s fancy lightly turns to thoughts of love”—and when horses shed their coats. Up went the farmer to the nearest horse, and easily, of course, pulled out a handful of hair. “Why,” said he, in the East Anglian way, “th’ poor brute hey gotten t’ mange, and all tudderuns ’ull ketch it, of yow baint keerful.” And then he examined “tudderuns,” and behold! each *had* caught it: and so he bought the lot for five pounds. That same night every horse was back in its own stable.

Searching in graveyards is not perhaps the most exhilarating of pastimes or employments, but it, at any rate, is likely to bring, on occasion, curious local history to light. Not infrequently, in the old churchyards of seaboard parishes, epitaphs bearing upon the story of smuggling may be found.

Among these often quaint and curious, as well as tragical, relics, that in Hunstanton churchyard, on the coast of Norfolk, is pre-eminent, both for its grotesquely ungrammatical character and for the history that attaches to the affair:

In Memory of William Webb, late of the 15th Lt. D’ns,
who was shot from his Horse by a party of Smugglers
on the 26 of Sepr. 1784.

I am not dead, but sleepeth here,
And when the Trumpet Sound I will appear.
Four balls thro' me Pearced there way:
Hard it was. I'd no time to pray

This stone that here you Do see
My Comerades erected for the sake of me.

Two smugglers, William Kemble and Andrew Gunton, were arraigned for the murder of this dragoon and an excise officer. The jury, much to the surprise of every one, for the guilt of the prisoners was undoubted, brought in a verdict of "Not guilty"; whereupon Mr. Murphy, counsel for the prosecution, moved for a new trial, observing that if a Norfolk jury were determined not to convict persons guilty of the most obvious crimes, simply because, as smugglers, they commanded the sympathy of the country people, there was an end of all justice.

A second jury was forthwith empanelled and the evidence repeated, and after three hours' deliberation the prisoners were again found "Not guilty," and were, in accordance with that finding, acquitted and liberated.

It is abundantly possible that the foregoing incident had some connection with that locally favourite smugglers' route from the Norfolk coast inland, the Peddar's Way, which runs a long and lonely course from Holme, near Hunstanton, right through Norfolk into Suffolk, and is for the greater part of its length a broad, grassy track, romantically lined and overhung with fine trees. Such ancient ways, including the many old drove-roads in the north, never turnpiked, made capital soft going, and, rarely touching villages or hamlets, were of a highly desirable, secretive nature. The origin of the Peddar's, or Padder's, Way is still in dispute among antiquaries, some seeing in it a Roman road, others conceiving it to be a prehistoric track; but the broad, straight character of it seems to point to this long route having been Romanised. Its great age is evident on many accounts, not least among them being that the little town of Watton, near but not on it, is named from this prehistoric road, "Way-town," while that county division, the hundred, is the Hundred of Wayland.

CHAPTER IX

THE DORSET AND DEVON COASTS—EPITAPHS AT KINSON AND WYKE—THE
“WILTSHIRE MOON-RAKERS”—EPITAPH AT BRANSCOMBE—THE WARREN
AND “MOUNT PLEASANT” INN

NOT so much smuggling incident as might be expected is found along the coasts of Dorset and Devon, but that is less on account of any lack of smuggling encounters in those parts than because less careful record has been kept of them. An early epitaph on a smuggler, to be seen in the churchyard of Kinson, just within the Dorset boundary, in an out-of-the-way situation at the back of Bournemouth, in a district formerly of almost trackless heaths, will sufficiently show that smuggling was active here:

To the memory of Robert Trotman, late of Rowd, in
the county of Wilts, who was barbarously murdered
on the shore near Poole, the 24th March, 1765.

A little tea, one leaf I did not steal,
For guiltless bloodshed I to God appeal;
Put tea in one scale, human blood in t'other
And think what 'tis to slay a harmless brother.

This man was shot in an encounter with the revenue officers. He was one of a gang that used the church here as a hiding-place. The upper stage of the tower and an old altar-tomb were the favourite receptacles for their “free-trade” merchandise.

Trotman, it will be observed, was of Rowd, or Rowde, in Wiltshire, two miles from Devizes, and was thus one of the “Wiltshire Moonrakers,” whose descriptive title is due to smuggling history. Among the nicknames conferred upon the natives of our various shires and counties none is complimentary. They figure forth undesirable physical attributes, as when

the Lincolnshire folk, dwellers among the fens, are styled “Yellow-bellies,” *i.e.* frogs; or stupidity, *e.g.* “Silly Suffolk”; or humbug—for example, “Devonshire Crawlers.” “Wiltshire Moonrakers” is generally considered to be a term of contempt for Wilts rustic stupidity; but, rightly considered, it is nothing of the kind. It all depends how you take the story which gave rise to it. The usual version tells us how a party of travellers, crossing a bridge in Wiltshire by night when the harvest moon was shining, observed a group of rustics raking in the stream, in which the great yellow disc of the moon was reflected. The travellers had the curiosity to ask them what it was they raked for in such a place and at so untimely an hour; and were told they were trying to get “that cheese”—the moon—out of the water. The travellers went on their way amused with the simplicity of these “naturals,” and spread the story far and wide.

But these apparently idiotic clod-hoppers were wiser in their generation than commonly supposed, and were, in fact, smugglers surprised in the act of raking up a number of spirit-kegs that had been sunk in the bed of the stream until the arrival of a convenient season when they could with safety be removed. The travellers, properly considered, were really revenue officers, scouring the neighbourhood. This version of the story fairly throws the accusation of innocence and dunderheadedness back upon them, and clears the Wiltshire rural character from contempt. It should, however, be said that the first version of the story is generally told at the expense of the villagers of Bishop’s Cannings, near Devizes, who have long writhed under a load of ancient satirical narratives, reflecting upon a lack of common sense alleged to be their chief characteristic.

Many of the western smuggling stories are of a humorous cast, rather than of the dreadful blood-boltered kind that disgraces the history of the home counties. Here is a case in point. On the evening of Sunday, July 10th, 1825, as two preventive men were on the look-out for smugglers, near Lulworth in Dorset, the smugglers, to the number of sixty or seventy, curiously enough, found them instead, and immediately taking away their swords and pistols, carried them to the edge of the cliff and placed them with their heads hanging over the precipice; with the comfortable assurance that if they made the least noise, or gave alarm, they should be immediately thrown over. In the interval a smuggling vessel landed a “crop” of one hundred casks, which the shore-gang placed on their horses and

triumphantly carried away. The prisoners were then removed from their perilous position, and taken into an adjoining field, where they were bound hand and foot, and left overnight. They were found the next morning by their comrades, searching for them.

There are several points in this true tale that suggest it to have been the original whence Mr. Thomas Hardy obtained the chief motive of his short story, *The Distracted Preacher*.

We do not find consecutive accounts of smuggling on this wild coast of Dorset; but when the veil is occasionally lifted and we obtain a passing glimpse, it is a picturesque scene that is disclosed. Thus, a furious encounter took place under St. Aldhelm's Head, in 1827, between an armed band of some seventy or eighty smugglers and the local preventive men, who numbered only ten, but gave a good account of themselves, two smugglers being reported killed on the spot, and many others wounded, while some of the preventive force, during the progress of the fight, quietly slipped to where the smugglers' boats had been left and made off with the goods stored in them.

"The smugglers are armed," says a report of this affair, "with swingels, like flails, with which they can knock people's brains out"; and proceeds to say that weapons of this kind, often delivering blows from unexpected quarters, are extremely difficult to fight against.

The captain of this gang was a man named Lucas, who kept an inn called the "Ship," at Woolbridge; and, information being laid, Captain Jackson, the local inspector of customs, went with an assistant and a police officer from London to his house at two o'clock in the morning and roused him.

"Who's there?" asked Lucas.

"Only I, Mrs. Smith's little girl. I want a drop of brandy for mother," returned the inspector, in a piping voice.

"Very well, my dear," said the landlord, and opened the door; to find himself in the grasp of the police-officer. Henry Fooks, of Knowle, and three others of the gang, were then arrested; and the whole five committed to Dorchester gaol.

The wild coast of Dorset, if we except Poole Harbour and the cliffs of Purbeck, yields little to the inquirer in this sort, although there can be no doubt of smuggling having been in full operation here. Jack Rattenbury, whose story is told on another page, could doubtless have rubricated this shore of many cliffs and remote hamlets with striking instances; and not a cliff-top but must have frequently exhibited lights to “flash the lugger off,” what time the preventive men were on the prow; and no lonely strand but must have witnessed the smugglers, when the coast was again clear, rowing out and “creeping for the crop” that had been sunk and buoyed, or “put in the collar,” as the saying went.

A relic of these for the most part unrecorded and forgotten incidents is found in the epitaph at Wyke, near Weymouth, on one William Lewis:

Sacred to the memory
of
WILLIAM LEWIS,
who was killed by a shot
from the *Pigmy* Schooner
21st April 1822, aged 53 years.

Of life bereft (by fell design),
I mingle with my fellow clay,
On God's protection I recline
To save me on the Judgment-day.
There shall each blood-stain'd soul appear,
Repent, all, ere it be too late,
Or Else a dreadful doom you'll hear,
For God will sure avenge my fate.

This Stone is Erected by his Wife
as the last mark of respect to an
Affectionate Husband.

The inscription is surmounted by a representation, carved in low relief, of the *Pigmy* schooner chasing the smuggling vessel.

Old folk, now gone from the scene of their reminiscences, used to tell of this tragedy, and of the landing of the body of the unfortunate Lewis on the rocks of Sandsfoot Castle, where the ragged, roofless walls of that old seaward fortress impend over the waves, and the great bulk of Portland isle glooms in mid distance upon the bay. They tell, too, how the inscription was long kept gilded by his relatives; but the last trace of it has long since vanished.

Many miles intervene, and another county must be entered, before another tragical epitaph bearing upon smuggling is found. If you go to Seaton, in South Devon, and walk inland from the modern developments of that now rapidly growing town to the old church, you may see there a tablet recording the sad fate of William Henry Paulson, midshipman of H.M.S. *Queen Charlotte*, and eight seamen, who all perished in a gale of wind off Sidmouth, while cruising in a galley after smugglers, in the year 1816.

A few miles westward, through Beer to Branscombe, the country is of a very wild and lonely kind. In the weird, eerie churchyard of Branscombe, in which astonishing epitaphs of all kinds abound, is a variant upon the smugglers' violent ends, in the inscription to one "Mr. John Harley, Custom House Officer of this parish." It proceeds to narrate how, "as he was endeavouring to extinguish some Fire made between Beer and Seaton as a signal to a Smuggling Boat then off at sea, he fell by some means or other from the top of the cliff to the bottom, by which he was unfortunately killed. This unhappy accident happened the 9th day of August in the year of our Lord 1755, *ætatis suæ* 45. He was an active and diligent officer and very inoffensive in his life and conversation."

So here was another martyr to the conditions created by bad government.

The estuary of the Exe, between Exmouth and Starcross, was for many years greatly favoured by smugglers, for, as may readily be perceived to this day, there lay in the two-miles-broad channel, where sea and river mingle, a wide, wild stretch of sand, almost awash at high water, heaped up in towans overgrown with tussocks of coarse, sour grasses, or sinking into hollows full of brackish water: pleasant in daytime, but a dangerous place at

night. Here, in this islanded waste, there were no roads nor tracks at all, and few were those who ever came to disturb the curlews or the seabirds that nested, unafraid. In these twentieth-century times of ours the Warren—for such is the name of this curiously amphibious place—has become a place of picnic parties on summer afternoons, largely by favour of the Great Western Railway having provided, midway between the stations of Starcross and Dawlish, a little platform called the “Warren Halt.” But in those times before railways, when the Warren was not easily come at, the smugglers found it a highly convenient place for their business. Beside it, under the lee of Langston Point, there is a sheltered strand, and, at such times when it was considered quite safe, the sturdy free-traders quietly ran their boats ashore here, on the yellow sands, and conveyed their contents to the “Mount Pleasant” inn, which is an unassuming—and was in those times a still more unassuming—house, perched picturesquely on the crest of a red sandstone bluff which rises inland, sheer from the marshy meadows. It was a very convenient receiving-house and signal-station for all of this trade, for it owned caverns hollowed out of the red sandstone in places inaccessible to the authorities, and from its isolated height, overlooking the flats, could easily communicate encouragement or warning to friends anxiously riding at anchor out at sea. The lights that flashed on dark and tempestuous nights from its high-hung rustic balcony were significant. The only man who could have told much of the smugglers’ secrets here was the unfortunate Lieutenant Palk, who lay wait one such night upon the Warren. But dead men tell no tales; and that ill-starred officer was found in the morning, drowned, face downwards, in a shallow pool, whether by accident or design there was nothing to show. As already remarked, the Warren was a dangerous place to wander in after dark.

It is quite vain nowadays to seek for the smugglers’ caves at Mount Pleasant. They were long ago filled up.

In these times the holiday-maker, searching for shells, is the only feature of the sands that fringe the seaward edge of the Warren. It is a fruitful hunting-ground for such, especially after rough weather. But the day following a storm was, in those times, the opportunity of the local revenue men, who, forming a strong party, were used to take boat and pull down here and thoroughly search the foreshore; for at such times any spirit-tubs that might have been sunk out at sea and carefully buoyed by the

smugglers, awaiting a favourable time for landing, were apt to break loose and drift in-shore. There was always, at such times, a sporting chance of a good haul. But, on the other hand, some of the many tubs that had been sunk months before, and lost, would on these occasions come to hand, and they were worth just nothing at all: long immersion in salt water having spoiled their contents, with the result that what had been right good hollands or cognac had become a peculiarly ill-savoured liquid, which smelt to heaven when it was broached. The revenue people called this abominable stuff, which, as Shakespeare might say, had “suffered a sea-change into something new and strange,” by the appropriate name of “stinkibus.”

CHAPTER X

CORNWALL IN SMUGGLING STORY—CRUEL COPPINGER—HAWKER'S SKETCH
—THE FOWEY SMUGGLERS—TOM POTTER, OF POLPERRO—THE DEVILS OF
TALLAND—SMUGGLERS' EPITAPHS—CAVE AT WENDRON—ST. IVES

CORNWALL is the region of romance: the last corner of England in which legend and imagination had full play, while matter-of-fact already sat enthroned over the rest of the land. At a time when newspapers almost everywhere had already long been busily recording facts, legends were still in the making throughout this westernmost part of the island. We may, in our innocence, style Cornwall a part of England; but the Cornish do not think of it as such, and when they cross the Tamar into Devonshire will still often speak of "going into England." They are historically correct in doing so, for this is the unconquered land of the Cornu-Welsh, never assimilated by the Saxon kingdoms. Historically and ethnologically, the Cornish are a people apart.

The Coppinger legend is a case in point, illustrating the growth of wild stories out of meagre facts. "Cruel Coppinger" is a half-satanic, semi-viking character in the tales of North Cornwall and North Devon, of whom no visitor is likely to remain ignorant, for not only was he a dread figure of local folklore from about the first quarter of the nineteenth century, but he was written up in 1866 by the Reverend R. S. Hawker, Vicar of Morwenstow, who not only collated those floating stories, but added very much of his own, for Hawker was a man—and a not very scrupulous man—of imagination. Hawker's presentment of "Cruel Coppinger" was published in a popular magazine, and then the legend became full-blown.

The advent of Coppinger upon the coast at Welcombe Mouth, near where Devon and Cornwall join, was dramatic. The story tells how a strange vessel went to pieces on the reefs and how only one person escaped with his

life, in the midst of a howling tempest. This was the skipper, a Dane named Coppinger. On the beach, on foot and on horseback, was a crowd, waiting, in the usual Cornish way, for any wreck of the sea that might be thrown up. Into the midst of them, like some sea-monster, dashed this sole survivor, and bounded suddenly upon the crupper of a young damsel who had ridden to the shore to see the sight. He grasped her bridle, and, shouting in a foreign tongue, urged the doubly-laden animal to full speed, and the horse naturally took his usual way home. The damsel was Miss Dinah Hamlyn. The stranger descended at her father's door and lifted her off her saddle. He then announced himself as a Dane, named Coppinger, and took his place at the family board and there remained until he had secured the affections and hand of Dinah. The father died, and Coppinger succeeded to the management and control of the house, which thenceforward became the refuge of every lawless character along the coast. All kinds of wild uproar and reckless revelry appalled the neighbourhood, night and day. It was discovered that an organised band of smugglers, wreckers, and poachers made this house their rendezvous, and that "Cruel Coppinger" was their captain. In those times no revenue officer durst exercise vigilance west of the Tamar, and, to put an end at once to all such surveillance, the head of a gauger was chopped off by one of Coppinger's gang, on the gunwale of a boat.

Strange vessels began to appear at regular intervals on the coast, and signals were flashed from the headlands, to lead them into the safest creek or cove. Amongst these, one, a full-rigged schooner, soon became ominously conspicuous. She was for long the terror of those shores, and her name was the *Black Prince*. Once, with Coppinger aboard, she led a revenue cutter into an intricate channel near the Bull Rock, where, from knowledge of the bearings, the *Black Prince* escaped scathless, while the King's vessel perished with all on board. In those times, if any landsman became obnoxious to Coppinger's men, he was seized and carried aboard the *Black Prince*, and obliged to save his life by enrolling himself as one of the crew.

Amid such practices, ill-gotten gold began to accrue to Coppinger. At one time he had enough money to purchase a freehold farm bordering on the sea. When the day of transfer came, he and one of his followers appeared before the lawyer and paid the money in dollars, ducats, doubloons, and

pistoles. The lawyer objected, but Coppinger, with an oath, bade him take that or none.

Long impunity increased Coppinger's daring. Over certain bridle-paths along the fields he exercised exclusive control, and issued orders that no man was to pass over them by night. They were known as "Coppinger's Tracks," and all converged at a cliff called "Steeple Brink." Here the precipice fell sheer to the sea, 300 feet, with overhanging eaves a hundred feet from the summit. Under this part was a cave, only to be reached by a rope-ladder from above. This was "Coppinger's Cave." Here sheep were tethered to the rock and fed on stolen hay and corn until slaughtered. Kegs of brandy and hollands were piled around; chests of tea, and iron-bound sea-chests contained the chattels and revenues of the Coppinger royalty of the sea.

The terror linked with Coppinger's name throughout the north coasts of Cornwall and Devon was so extreme that the people themselves, wild and lawless though they were, submitted to his sway as though he had been lord of the soil, and they his vassals. Such a household as his was, of course, far from happy or calm. Although, when his father-in-law died, he had insensibly acquired possession of the stock and farm, there remained in the hands of the widow a considerable amount of money. This he obtained from the helpless woman by instalments, and by force. He would fasten his wife to the pillar of her oak bedstead, and call her mother into the room, and assure her he would flog Dinah with a cat-o'-nine-tails till her mother had transferred to him what he wanted. This act of brutal cruelty he repeated until he had utterly exhausted the widow's store.

There was but one child of Coppinger's marriage. It was a boy, and deaf and dumb, but mischievous and ungovernable, delighting in cruelty to other children, animals, or birds. When he was but six years of age, he was found one day, hugging himself with delight, and pointing down from the brink of a cliff to the beach, where the body of a neighbour's child was found and it was believed that little Coppinger had flung him over. It was a saying in the district that, as a judgment on his father's cruelty, the child had been born without a human soul.

But the end arrived. Money became scarce, and more than one armed King's cutter was seen, day and night, hovering off the land. And at last Coppinger, "who came with the water, went with the wind." A wrecker, watching the shore, saw, as the sun went down, a full-rigged vessel standing off and on. Coppinger came to the beach, put off in a boat to the vessel, and jumped aboard. She spread canvas, and was seen no more. That night was one of storm, and whether the vessel rode it out or not, none ever knew.

It is hardly necessary to add that the Coppinger of these and other rumbustious stories is a strictly unhistorical Coppinger; and that, in short, they are mainly efforts of Hawker's own imagination, built upon very slight folklore traditions.

Who and what, however, was the real Coppinger? Very little exact information is available, but what we have entirely demolishes the legendary half-man, half-monster of those remarkable exploits.

Daniel Herbert Copinger, or Coppinger, was wrecked at Welcombe Mouth on December 23rd, 1792, and was given shelter beneath the roof of Mr. William Arthur, yeoman farmer, at Golden Park, Hartland, where for many years afterwards his name might have been seen, scratched on a window-pane:

D. H. Coppinger, shipwrecked December 23 1792, kindly received by Mr. Wm. Arthur.

There is not the slightest authority for the story of his sensational leap on to the saddle of Miss Dinah Hamlyn; but it is true enough that the next year he married a Miss Hamlyn—her Christian name was Ann—elder of the two daughters of Ackland Hamlyn, of Galsham, in Hartland, and in the registers of Hartland church may be found this entry: "Daniel Herbert Coppinger, of the King's Royal Navy, and Ann Hamlyn mard. (by licence) 3 Aug." The "damsel" of the story also turns out, by the cold, calm evidence of this entry, to have been of the mature age of forty-two.

Mrs. Hamlyn, Coppinger's mother-in-law, died in 1800, and was buried in the chancel of Hartland church. It is, of course, quite possible that his married life was stormy and that he, more or less by force, extracted money from Mrs. Hamlyn, and he was certainly more or less involved in

smuggling. But that he, or any of his associates, chopped off the head of an excise officer is not to be credited. Tales are told of revenue officers searching at Galsham for contraband, and of Mrs. Coppinger hurriedly hiding a quantity of valuable silks in the kitchen oven, while her husband engaged their attention in permitting them to find a number of spirit-kegs, which they presently found, much to their disgust, to be empty; and, moreover, empty so long that scarce the ghost of even a smell of the departed spirit could be traced. But the flurried Mrs. Coppinger had in her haste done a disastrous thing, for the oven was in baking trim, and the valuable silks were baked to a cinder.

Little else is known of Coppinger, and nothing whatever of his alleged connection with the Navy. He became bankrupt in 1802, and was then a prisoner in the King's Bench Prison. With him was one Richard Copinger, said to have been a merchant in Martinique. Nothing is known of him after this date, but rumour told how he was living apart from his wife, at Barnstaple, and subsisting on an allowance from her.

Mrs. Coppinger herself, in after years, resided at Barnstaple, and died there on August 31st, 1833. She lies buried in the chancel of Hartland church beside her mother.

According to the Rev. S. Baring-Gould, Coppinger was not really a Dane, but an Irishman, and had a wife at Trewhiddle near St. Austell. He, on the same authority, is said to have done extremely well as a smuggler, and had not only a farm at Trewhiddle, but another at Roscoff, in Brittany. A daughter, says Mr. Baring-Gould, married a Trefusis, son of Lord Clinton, and Coppinger gave her £40,000 as a dowry. A son married the daughter of Sir John Murray, Bart., of Stanhope. The source of this interesting information is not stated. It appears wildly improbable.

Hawker very cleverly embodied the smuggling sentiment of Cornwall in a sketch he wrote, styled "The Light of Other Days."

"It was full six in the evening of an autumn day when a traveller arrived where the road ran along by a sandy beach just above high-water mark. The stranger, who was a native of some inland town, and utterly unacquainted with Cornwall and its ways, had reached the brink of the tide just as a 'landing' was coming off. It was a scene not only to instruct a

townsman, but to dazzle and surprise. At sea, just beyond the billows, lay the vessel, well moored with anchors at stem and stern. Between the ship and the shore, boats, laden to the gunwale, passed to and fro. Crowds assembled on the beach to help the cargo ashore. On one hand a boisterous group surrounded a keg with the head knocked in, for simplicity of access to the good cognac, into which they dipped whatsoever vessel came first to hand; one man had filled his shoe. On the other side they fought and wrestled, cursed and swore. Horrified at what he saw, the stranger lost all self-command, and, oblivious of personal danger, he began to shout, 'What a horrible sight! Have you no shame? Is there no magistrate at hand? Cannot any justice of the peace be found in this fearful country?'

"'No; thanks be to God,' answered a gruff, hoarse voice. 'None within eight miles.'

"'Well, then,' screamed the stranger, 'is there no clergyman hereabout? Does no minister of the parish live among you on this coast?'

"'Aye, to be sure there is,' said the same deep voice.

"'Well, how far off does he live? Where is he?'

"'That's he, yonder, sir, with the lantern.'

"'And, sure enough, there he stood on a rock, and poured, with pastoral diligence, 'the light of other days' on a busy congregation."



"THE LIGHT OF OTHER DAYS."

The complete, true story of smuggling along the Cornish coast will never be told. Those who could have contributed illuminating chapters to it, and would not, are dead, and those who now would are reduced to seeking details and finding only scraps. But some of these scraps are not unpalatable.

Thus we have the story of that Vicar of Maker whose church was used as a smugglers' store. The Vicar was not a party to these proceedings, as may well be judged by his inviting his rural dean to ascend to the roof of the church-tower with him, for sake of the view: the view disclosing not only a lovely expanse of sea and wooded foreshore, but also a heap of twenty-three spirit-kegs, reposing in the gutters between the roofs of nave and aisle.

The "Fowey Gallants," as the townsfolk of that little seaport delighted to call themselves,—the title having descended from Elizabethan and even earlier times, when the "Gallants" in question were, in plain speech, nothing less than turbulent seafaring rowdies and pirates—were not behind other Cornish folk in their smuggling enterprises. That prime authority on this

part of the Cornish coast, Jonathan Couch, historian of Polperro, tells us of an exciting incident at Fowey, in the smuggling way. On one occasion, the custom-house officers heard of an important run that had taken place overnight, and accordingly sent out scouts in every direction to locate the stuff, if possible. At Landaviddy one of these parties met a farm-labourer whom they suspected of having taken part in the run. They taxed him with it, and tried him all ways; without effect, until they threatened to impress him for service in the Navy unless he revealed the hiding-place of the cognac. His resolution broke down at that, and he told how the kegs had been hidden in a large cave at Yellow Rock, which the officers then instructed him to mark with a chalk cross.

The revenue men then went off for reinforcements, and, returning, met an armed band of smugglers, who had taken up a strong position at New Quay Head. They were armed with sticks, cutlasses, and muskets, and had brought a loaded gun upon the scene, which they trained upon the cave; while a man with flaring portfire stood by and dared the officers to remove the goods. Official prudence counselled the revenue men to retire for further support; but when they had again returned the smugglers had disappeared, and the kegs with them.

Fowey's trade in "moonshine," *i.e.* contraband spirits, was, like that of the Cornish coast in general, with Roscoff, in Brittany; and a regular service was maintained for years. As late as 1832 the luggers *Eagle*, thirty-five tons; *Rose*, eleven tons; and *Dove*, of the same burthen, were well known in the trade. Among the smuggling craft belonging to Polperro, the *Unity* was said to have made upwards of five hundred entirely successful trips.

The story of Tom Potter is even yet told by oldsters at Polperro, who, not themselves old enough to recollect the circumstances, have it from their parents and grandparents. Jonathan Couch tells the story, but he forgot the exact year.

It seems, then, that one morning a lugger was observed by a revenue cutter lying becalmed in Whitesand Bay. Through their glasses the revenue men made it out to be the *Lottery*, of Polperro, well known for her fast-sailing qualities, as well as for the hardihood of her crew. With the springing up of the breeze, there was little doubt but that she would put to sea, and thus add

yet another opportunity to the many already existing for sneering at the stupidity of the local preventive force.

Accordingly, the chief officer, with all despatch, manned two or three boats and put off, before a breeze could spring up, making sure of an easy capture. The smugglers, however, observed these movements of their watchful enemies, and commenced to make preparations for resistance, whereupon the revenue boats opened fire; but it was not until they had approached closely that the smugglers returned their volleys, and then the firing grew very heavy, and when within a few yards of the expected prize, Ambrose Bowden, who pulled bow-oar in one of the attacking boats, fell mortally wounded.

It was plain that the Polperro men had come to a determination not to surrender their fine craft, or the valuable cargo it carried; and the commander of the revenue men thought it, under the circumstances, the wisest thing to withdraw and to allow the *Lottery* to proceed to sea, which she did, at the earliest opportunity. But the names of those who formed the crew were sufficiently well known to the authorities, and the smugglers accordingly found themselves in a very difficult position; not indeed on account of smuggling, but for the resistance they had offered to authority, resulting in what was technically murder. They all scattered and went into hiding, and, secreted by friends, relatives, and sympathisers in out-of-the-way places, long baffled the efforts of the revenue officers, aided by searching parties of dragoons, to find them. The authorities no sooner had learnt, on reliable information, where they lay hidden, than they were found to have been spirited away elsewhere.

But all this skulking about, with its enforced idleness and waste of time, grew wearisome to the skulkers, and at length one of the crew of the *Lottery*, Roger Toms by name, more weary than his fellows of hiding, and perhaps also thinking that his services would be handsomely rewarded, offered himself as King's evidence.

According to his showing, it was a man named Tom Potter who fired the shot that killed Bowden. The search then concentrated upon Potter. The fury of Toms's fellow-smugglers, and the entire population of Polperro, against the informer, Toms, may readily be imagined. To in any way aid

these natural enemies of the people was of itself the unforgiveable sin, and to further go and offer evidence that would result in the forfeit of the life of one of his own comrades disclosed an even deeper depth of infamy.

Toms was therefore obliged to go into hiding again, and, this time, from his old associates. It was some considerable time before they captured him, and they did it, even then, only by stratagem. His wife, and others, knowing the intense feeling aroused, not unnaturally supposed his life to be in danger; but the smugglers assured her that they only wanted to secure him and hold him prisoner until after the trial of Bowden, and would not otherwise harm him. They added, mysteriously, that things might go worse with Toms if he continued to hide away; for they would be certain sooner or later to find him. The greatly alarmed woman at last arranged that they should capture him when accompanying her across the moors in the direction of Polruan, and they accordingly seized the informer when in her company, on Lantock Downs. They hid him for awhile close by, and then smuggled him, a close prisoner, over to that then noted smugglers' Alsatia, Guernsey, with the idea of eventually shipping him to America. But while at Guernsey he escaped and made his way to London.

The evidence he gave was to the effect that, during the firing, he went down into the cabin of the *Lottery*, and there saw Potter with a gun. Potter said "Damn them! I have just done for one of them."

Potter was convicted and hanged. Toms, of course, never dared to again return to Polperro, and was given a small post as under-turnkey at Newgate, where he lived the remainder of his life.

Talland, midway between Polperro and Looe, was a favourite spot with these daring Polperro fellows. It offered better opportunities than those given by Polperro itself for unobserved landings; for it was—and it still is—a weird, lonely place, overhanging the sea, with a solitary ancient church well within sound of the waves that beat heavily upon the little sands. It was an easy matter to store kegs in the churchyard itself, and to take them inland, or into Polperro by the country roads, when opportunity offered, hidden in carts taking seaweed for manure to the fields.

At one time Talland owned a shuddery reputation in all this country-side, and people in the farmhouses told, with many a fearful glance over their

shoulders, of the uncanny creatures that nightly haunted the churchyard. Devils, wraiths, and fearful apparitions made the spot a kind of satanic parliament; and we may be amply sure that these horrid stories lost no accent or detail of terror by constant repetition in those inglenooks on winter evenings. This is not to say that other places round about were innocent of things supernatural; for those were times when every Cornish glen, moor, stream, and hill had their bukkadhus, their piskies, and gnomes of sorts, good and evil; but the infernal company that consorted together in Talland churchyard was entirely beside these old-established creatures. They were *hors concours*, as the French would say: they formed a class by themselves; and, in the expressive slang of to-day, they were “the Limit,” the *ne plus ultra* of militant ghostdom. People rash enough to take the church-path through Talland after night had fallen were sure to hear and see strange semi-luminous figures; and they bethought them then of the at once evil and beneficent reputation owned and really enjoyed by Parson Dodge, the eccentric clergyman of Talland, who was reputed an exorcist of the first quality. He it was who, doughty wrestler with the most obstinate spectres, found himself greatly in demand in a wide geographical area for the banishing of troublesome ghosts for a long term of years to the Red Sea; but it was whispered, on the other hand, that he kept a numerous band of diabolic familiars believed by the simple folk of that age to resort nightly to the vicarage for their orders, and then to do his bidding. These were the spiteful creatures, thought the country people, who, to revenge themselves for this servitude, lurked in the churchyard, and got even with mankind by pinching and smacking and playing all manner of scurvy tricks upon those who dared pass this way under cover of night. Uncle Zack Chowne even got a black eye by favour of these inimical agencies, one exceptionally dark night when, coming home-along this way, under the influence of spirits not of supernatural origin, he met a posse of fiends, and, in the amiable manner of the completely intoxicated, insisted upon their adjourning with him to the nearest inn, “jush for shake of ole timesh.” In fact, he made the sad mistake of taking the fiends in question for friends, and addressed them by name: with the result that he got a sledge-hammer blow in what the prize-fighting brotherhood used to call “the peeper.”



THE DEVILS OF TALLAND.

If he had adopted the proper method to be observed when meeting spirits, *i.e.* if he had stood up and “said his Nummy Dummy,” all would doubtless have been well; this form of exorcism being in Cornwall of great repute and never known to fail: being nothing less, indeed, than the Latin *In Nomine Domine* in disguise.

But the real truth of the matter, as the readers of these lines who can see further through a brick wall than others may readily perceive, was that those savage spooks and mischievous, Puck-like shapes, were really youthful local smugglers in disguise, engaged at one and the same time in a highly profitable nocturnal business, and in taking the welcome opportunity thus offered in an otherwise dull circle of establishing a glorious “rag.”

Parson Dodge himself was something more than suspected of being “ower sib” to these at once commercial and rollicking dogs, and Talland was in fact the scene of many a successful run that could scarce have been successful had not this easy-going cleric amiably permitted.

It is thus peculiarly appropriate that we find to-day in this lonely churchyard an epitaph upon a smuggler of those times. It is a tragical enough epitaph, its tragedy perhaps disguised at the first glance by the grotesquely comic little cherubs carved upon the tombstone, and representing the local high-water mark of mortuary sculpture a hundred years or so ago. They are pursy cherubs, of oleaginous appearance and of this-worldly, rather than of other-worldly paunch and deportment. In general, Talland churchyard is rich in such carvings; death's-heads of appalling ugliness to be seen in company with middle-aged, double-chinned angels wearing what look suspiciously like chest-protectors and pyjamas, and they decorate, with weirdly humorous aspect, the monuments and ledger stones, and grin familiarly from the pavement with the half-obliterated grins of many generations back. One of them points with a claw, intended for a hand, to an object somewhat resembling a crumpled dress-tie set up on end, probably designed to represent an hour-glass.

Such is the mortuary art of these lonesome parishes in far Cornwall: naïve, uninstructed, home-made. It sufficed the simple folk for whom it was wrought; and now that more conventional and pretentious memorials have taken its place, to serve the turn of folk less simple, there are those who would abolish its uncouth manifestations. But that way—with the urbanities of the world—goes old Cornwall, never to be replaced.

Here is the epitaph to the smuggler, one—

ROBERT MARK;

late of Polperro, who Unfortunately
was *shot at Sea* the 24th day of Jan^y.
in the year of our Lord GOD
1802, in the 40th Year of His AGE

In prime of Life most suddenly,
Sad tidings to relate;
Here view My utter destiny,
And pity, My sad state:
I by a shot, which Rapid flew,

Was instantly struck dead;
LORD pardon the Offender who
My precious blood did shed.
Grant Him to rest, and forgive Me,
All I have done amiss;
And that I may Rewarded be
With Everlasting Bliss.

Robert Mark was at the helm of a boat which had been obliged to run before a revenue cutter. It was at the point of escaping when the cutter's crew opened fire upon the fugitive, killing the helmsman on the spot. Let us trust he has duly won to that everlasting bliss that not even smugglers are denied. The mild and forgiving terms of the epitaph are to be noted with astonishment; the usual run of sentiment to be observed on the very considerable number of these memorials to smugglers cut off suddenly in the plenitude of their youth and beauty, being particularly revengeful and bloodthirsty, or at the best, bitterly reproachful.

Among these many epitaphs on smugglers to be met with in the churchyards of seaboard parishes is the following, to be found in the waterside parish of Mylor, near Falmouth. Details of the incident in which this "Cus-toms house officer" (spelled here exactly as the old lettering on the tombstone has it) shot and mortally wounded Thomas James appear to have been altogether lost:

We have not a moment we can call our own.

In Memory of Thomas James, aged 35 years, who
on the evening of the 7th Dec. 1814, on his returning
to Flushing from St. Mawes in a boat was shot by a
Cus-toms house officer and expired a few days after.

Officious zeal in luckless hour laid wait
And wilful sent the murderous ball of fate:
James to his home, which late in health he left,
Wounded returned—of life is soon bereft.

This is quite a mild and academic example, and obviously the work of some passionless hireling, paid for his verses. He would have written not less affectingly for poor dog Tray.

Prussia Cove, the most famous smuggling centre in Cornwall, finds mention in another chapter. Little else remains to be said, authentically at any rate. Invention, however, could readily people every cove with desperate men and hair-raising encounters, and there could nowadays be none who should be able to deny the truth of them. But we will leave all that to the novelists, merely pointing out that facts continually prove themselves at least as strange as fiction. Thus at Wendron, five miles inland from Helston, two caves, or underground chambers, were discovered in 1905 during some alterations and rebuildings, close to the churchyard. Local opinion declared them to be smugglers' hiding-holes.

There stands in St. Ives town a ruined old mansion in one of the narrow alley-ways. It is known as Hicks' Court, and must have been a considerable place, in its day. Also the owners of it must have been uncommonly fond of good liquors, for it has a "secret" cellar, so called no doubt because, like the "secret" drawers of bureaus, its existence was perfectly obvious. Locally it is known as a "smugglers' store."

In such a place as St. Ives, on a coast of old so notorious for smuggling, we naturally look for much history in this sort, but research fails to reward even the most diligent; and we have to be content with the meagre suspicions (for they were nothing more) of the honesty of John Knill, a famous native and resident of the town in the second half of the eighteenth century, who was Collector of Customs in that port, and in 1767 was chosen Mayor. His action in equipping some small craft to serve as privateers against smugglers was wilfully misconstrued; and, at any rate, it does not seem at all fitting that he, as an official of the customs service, should have been concerned in such private ventures. These "privateers," it was said locally, were themselves actively employed in smuggling.

He was also, according to rumour, responsible, together with one Praed, of Trevetho, for a ship which was driven ashore in St. Ives Bay, and, when boarded by Roger Wearne, customs officer, was found to be deserted by captain and crew, who had been careful to remove all the ship's papers, so

that her owners remained unknown. The vessel was found to be full of contraband goods, including a great quantity of china, some of it of excellent quality. Wearne conceived the brilliant idea of taking some samples of the best for his own personal use, and filled out the baggy breeches he was wearing with them, before he made to rejoin the boat that had put him aboard. This uncovenanted cargo made his movements, as he came over the side, so slow that one of his impatient boatmen smartly whacked him with the flat of his oar, calling, "Look sharp, Wearne," and was dismayed when, in place of the thud that might have been expected, there came a crash like the falling of a trayful of crockery, followed by a cry of dismay and anguish.

CHAPTER XI

TESTIMONY TO THE QUALITIES OF THE SEAFARING SMUGGLERS—ADAM SMITH
ON SMUGGLING—A CLERICAL COUNTERBLAST—BIOGRAPHICAL SKETCHES OF
SMUGGLERS—ROBERT JOHNSON, HARRY PAULET—WILLIAM GIBSON, A
CONVERTED SMUGGLER

CARE has already been taken to discriminate between the hardy, hearty, and daring fellows who brought their duty-free goods across the sea and those others who, daring also, but often cruel and criminal, handled the goods ashore. We now come to close quarters with the seafaring smugglers, in a few biographical sketches: premising them with some striking testimony to their qualities as seamen.

Captain Brenton, in his “History of the Royal Navy,” pays a very high, but not extravagant, compliment to these daring fellows: “These men,” he says, “are as remarkable for their skill in seamanship as for their audacity in the hour of danger; their local knowledge has been highly advantageous to the Navy, into which, however, they never enter, unless sent on board ships of war as a punishment for some crime committed against the revenue laws. They are hardy, sober, and faithful to each other, beyond the generality of seamen; and, when shipwreck occurs, have been known to perform deeds not exceeded in any country in the world; probably unequalled in the annals of other maritime powers.”

Such men as these, besides being, in the rustic opinion, very much of heroes, engaged in an unequal warfare, against heavy odds, with a hateful, ogreish abstraction called “the Government,” which existed only for the purpose of taxing and suppressing the poor, for the benefit of the rich, were regarded as benefactors; for they supplied the downtrodden, overtaxed people with better articles, at lower prices, than could be obtained in the legitimate way of traders who had paid excise duties.

There was probably a considerable basis of truth to support this view, for there is no doubt that duty-paid goods were largely adulterated. To adulterate his spirits, his tea, and his tobacco was the nearest road to any considerable profit that the tradesman could then make.

Things being of this complexion, it would have been the sheerest pedantry to refuse to purchase the goods the free-traders supplied at such alluringly low prices, and of such indubitably excellent quality; and to give retail publicans and shopkeepers and private consumers their due, as sensible folk, untroubled by supersensitive consciences, they rarely did refuse.

Adam Smith, in the course of his writings on political economy, nearly a century and a half ago, stated the popular view about smuggling and the purchase of smuggled goods:

“To pretend to have any scruple about buying smuggled goods, though a manifest encouragement to the violation of the revenue laws, and to the perjury which almost always attends it, would in most countries be regarded as one of those pedantic pieces of hypocrisy which, instead of gaining credit with anybody, seems only to expose the person who affects to practise it to the suspicion of being a greater knave than most of his neighbours.”

From even the most charitable point of view, that person who was so eccentric as to refuse to take advantage of any favourable opportunity of purchasing cheaply such good stuff as might be offered to him, and had not paid toll to the Revenue, was a prig.

Smith himself looked upon the smuggler with a great deal of sympathy, and regarded him as “a person who, though no doubt blamable for violating the laws of his country, is frequently incapable of violating those of natural justice, and would have been in every respect an excellent citizen had not the laws of his country made that a crime which nature never meant to be so.”

Very few, indeed, were those voices raised against the practice of smuggling. Among them, however, was that of John Wesley, perhaps the most influential of all, especially in the West of England. The clergy in general might rail against the smugglers, but there were few among them

who did not enjoy the right sort of spirits which, singularly enough, could only commonly be obtained from these shy sources; and there was a certain malignant satisfaction to any properly constituted smuggler in using the tower, or perhaps even the pulpit, of a parish church as temporary spirit-cellar, and in undermining the parson's honesty by the present of a tub. Few were those reverend persons who repudiated this sly suggestion of co-partnery, and those few who felt inclined so to do were generally silenced by the worldly wisdom of their parish clerks, who, forming as it were a connecting link between things sacred and profane, could on occasion inform a clergyman that his most respected churchwarden was financially interested in the success of some famous run of goods just notoriously brought off.

Among those few clergy who actively disapproved of these things we must include the Rev. Robert Hardy, somewhat multitudinously beneficed in Sussex and elsewhere in the beginning of the nineteenth century. He published in 1818 a solemn pamphlet entitled: "Serious Cautions and Advice to all concerned in Smuggling; setting forth the Mischiefs attendant upon that Traffic; together with some exhortations to Patience and Contentment under the Difficulties and Trials of Life. By Robert Hardy, A.M., Vicar of the united parishes of Walberton and Yapton, and of Stoughton, in Sussex; and Chaplain to H.R.H. the Prince Regent."

The author did not by any means blink the difficulties or dangers, but was, it will be conceded, far too sanguine when he wrote the following passage, in the hope of his words suppressing the trade:

"The calamities with which the Smuggler is now perpetually visited, by Informations and Fines, and Seizures, and Imprisonments, will, I trust, if properly considered, prevail upon the rich to discountenance, and upon the poor to forbear from, a traffic which, *in addition to the sin of it*, carries in its train so many evils, and mischiefs, and sorrows."

His voice we may easily learn, in perusing the history of smuggling at and after the date of his pamphlet, was as that of one crying in the wilderness. Its sound may have pleased himself, but it was absolutely wasted upon those who smuggled, and those who purchased smuggled goods.

"Smugglers," he said, "are of three descriptions:

- “1. Those who employ their capital in the trade;
- “2. Those who do the work;
- “3. Those who deal in Smuggled Articles, either as Sellers or as Buyers.

“All these are involved *in the guilt* of this unlawful traffic; but its *moral injuries* fall principally upon the *second* class.

“Smuggling,” he then proceeds to say, “has not been confined to the lower orders of people; but, from what I have heard, I apprehend that it has very generally been encouraged by their superiors, for whom no manner of excuse, that I know of, can be offered. I was once asked by an inhabitant of a village near the sea whether I thought there was any harm in smuggling. Upon my replying that I not only thought there was a *great deal of harm* in it, but a *great deal of sin*, he exclaimed, ‘Then the Lord have mercy upon the county of Sussex, for who is there that has not had a tub?’”

Among the ascertained careers of notable smugglers, that of Thomas Johnson affords some exciting episodes. This worthy, who appears to have been born in 1772 and to have died in 1839, doubled the parts of smuggler and pilot. He was known pretty generally as “the famous Hampshire smuggler.”

As a captured and convicted smuggler he was imprisoned in the New Prison in the Borough, in 1798, but made his escape, not without suspicion of connivance on the part of the warders. That the possession of him was ardently desired by the authorities seems sufficiently evident by the fact of their offering a reward of £500 for his apprehension; but he countered this by offering his services the following year as pilot to the British forces sent to Holland. This offer was duly accepted, and Johnson acquitted himself so greatly to the satisfaction of Sir Ralph Abercromby, commanding, that he was fully pardoned.



ESCAPE OF JOHNSON.

He then plunged into extravagant living, and finally found himself involved in heavy debts, stated (but not altogether credibly) to have totalled £11,000. Resuming his old occupation of smuggling, he was sufficiently wary not to be captured again by the revenue officers; but what they found it impossible to achieve was with little difficulty accomplished by the bailiffs, who arrested him for debt and flung him into the debtors' prison of the Fleet, in 1802. Once there, the Inland Revenue were upon him with smuggling charges, and the situation seemed so black that he determined on again making a venture for freedom. Waiting an exceptionally dark night, he, on November 29th, stealthily crossed the yard and climbed the tall enclosing wall that separated the prison from the outer world. Sitting on the summit of this wall, he let himself down slowly by the full length of his arms, just over the place where a lamp was bracketed out over the pathway, far beneath. He then let himself drop so that he would fall on to the bracket, which he calculated would admirably break the too deep drop from the summit of the wall to the ground. Unfortunately for him, an unexpected piece of projecting ironwork caught him and ripped up the entire length of

his thigh. At that moment the slowly approaching footsteps of the watchman were heard, and Johnson, with agonised apprehension, saw him coming along, swinging his lantern. There was nothing for it but to lie along the bracket, bleeding profusely the while, until the watchman should have passed.

He did so, and, as soon as seemed safe, dropped to the ground and crawled to a hackney-coach, hired by his friends, that had been waiting that night and several nights earlier, near by.

Safely away from the neighbourhood of the prison, his friends procured him a post-chaise and four; and thus he travelled post-haste to the Sussex coast at Brighton. On the beach a small sailing-vessel was waiting to convey him across Channel. He landed at Calais and thence made for Flushing, where he was promptly flung into prison by the agents of Napoleon, who was at that time seriously menacing our shores with invasion from Boulogne, where his flotilla for the transport of troops then lay.

Johnson and others were, in the opening years of the nineteenth century, very busily employed in smuggling gold out of the country into France. Ever since the troubles of the Revolution in that country, and all through the wars that had been waged with the rise of Napoleon, gold had been dwindling. People, terrified at the unrest of the times, and nervous of fresh troubles to come, secreted coin, and consequently the premium on gold rose to an extraordinary height, not only on the Continent but in England as well. A guinea would then fetch as much as twenty-seven shillings, and was worth a good deal more on the other side of the Channel. Patriotism was not proof against the prospects of profits to be earned by the export of gold, and not a few otherwise respectable banking-houses embarked in the trade. Finance has no conscience.



JOHNSON PUTTING OFF FROM BRIGHTON BEACH.

It is obvious that only thoroughly dependable and responsible men could be employed on this business, for shipments of gold varied from £20,000 to £50,000.

Eight and ten-oared galleys were as a rule used for the traffic; the money slung in long leather purses around the oarsmen's bodies.

Napoleon is said to have offered Johnson a very large reward if he would consent, as pilot, to aid his scheme of invasion, and we are told that Johnson hotly refused.

"I am a smuggler," said he, "but a true lover of my country, and no traitor."

Napoleon was no sportsman. He kept Johnson closely confined in a noisome dungeon for nine months. How much longer he proposed to hold him does not appear, for the smuggler, long watching a suitable opportunity, at last broke away, and, ignorant that a pardon was awaiting him in England, escaped to America.

Returning from that “land of the brave and the free,” we find him in 1806 with the fleet commanded by Lord St. Vincent, off Brest. Precisely what services, beside the obvious one of acting as pilot, he was then rendering our Navy cannot be said, for the materials toward a life of this somewhat heroic and picturesque figure are very scanty. But that he had some plan for the destruction of the French fleet seems obvious from the correspondence of Lord St. Vincent, who, writing on August 8th, 1806, to Viscount Howick, remarks, “The vigilance of the enemy alone prevented Tom Johnstone [sic] from doing what he professed.” What he professed is, unfortunately, hidden from us.

After this mysterious incident we lose sight for a while of our evasive hero, and may readily enough assume that he returned again to his smuggling enterprises; for it is on record that in 1809, when the unhappy Walcheren expedition was about to be despatched, at enormous cost, from England to the malarial shores of Holland, he once more offered his services as pilot, and they were again accepted, with the promise of another pardon for lately-accrued offences.

He duly piloted the expedition, to the entire satisfaction of the Government, and received his pardon and a pension of £100 a year. He fully deserved both, for he signally distinguished himself in the course of the operations by swimming to the ramparts of a fort, with a rope, by which in some unexplained manner a tremendous and disastrous explosion was effected.

He was further appointed to the command of the revenue cruiser *Fox*, at the conclusion of the war, and thus set to prey upon his ancient allies; who, in their turn, made things so uncomfortable for the “scurvy rat,” as they were pleased picturesquely to style him, that he rarely dared venture out of port. So it would appear that he did not for any great length of time hold that command.

But the reputation for daring and resourcefulness that he enjoyed did not seem to be clouded by this incident, for he was approached by the powerful friends of Napoleon, exiled at St. Helena, to aid them in a desperate attempt to rescue the fallen Emperor. It was said that they offered him the sum of £40,000 down, and a further very large sum, if the attempt were successful. The patriotic hero of some years earlier seems to have been successfully

tempted. “Every man,” says the cynic, “has his price”; and £40,000 and a generous refresher formed his. For personal gain he was prepared to let loose once more the scourge of Europe.

Plans were actively afoot for the construction of a submarine boat (there is nothing new under the sun!) for the purpose of secretly conveying the distinguished exile away, when he inconsiderately died; and thus vanished Johnson’s dreams of wealth.

Some years later Johnson built a submarine boat to the order of the Spanish Government, and ran trials with it in the Thames, between London Bridge and Blackwall. On one occasion it became entangled in a cable of one of the vessels lying in the Pool, and for a time it seemed scarce possible the boat could easily be freed.

“We have but two and a half minutes to live,” said he, consulting his watch calmly, “unless we get clear of that cable.”

“Captain” Johnson, as he was generally styled, lived in quiet for many years, finally dying at the age of sixty-seven, in March 1839, in the unromantic surroundings of the Vauxhall Bridge Road.

Another smuggler of considerable reputation, of whom, however, we know all too little, was Harry Paulet. This person, who appears in some manner to have become a prisoner aboard a French man-o’-war, made his escape and took with him a bag of the enemy’s despatches, which he handed over to the English naval authorities.

A greater deed was that when, sailing with a cargo of smuggled brandy, he came in view of the French fleet (we being then, as usual, at war with France), Paulet immediately went on a new tack and carried the news of the enemy’s whereabouts to Lord Hawke, who promised to hang him if the news were not true.

A somewhat interesting and curious account of the conversion of a youthful smuggler may be found in an old volume of *The Bible Christian Magazine*. The incident belongs to the Scilly Isles.

William Gibson, the smuggler in question, was a bold, daring young man, and he, with others, had crossed over to France more than once in a small

open boat, a distance of 150 miles, rowing there and back, running great risks to bring home a cargo of brandy.

In 1820, the time when William was at his best in these smuggling enterprises, St. Mary's was visited by a pious, simple-minded young woman, Mary Ann Werry by name, the first representative of the Bible Christian connexion to land on the island. The congregation were in the throes of a revival, and eager for more and more preaching, but the minister upon whom they principally relied was commercially minded, and demanded £2 for his services. The members refused to give it. "There is a woman here," said they, "we will have her to preach to us"; and, being asked, she consented, and preached from 1 Tim. iv. 8, "For bodily exercise profiteth little; but godliness is profitable unto all things, having promise of the life that now is, and of that which is to come."

We have the well-known ruling of Dr. Johnson upon the preaching of women, that it in a manner resembles a dog walking on its hind-legs: it is not done well; you only marvel that it is done at all. [N.B.—Dr. Johnson would not have favoured, or been favoured by, modern Women's Leagues.] But, at any rate, Miss Werry seems to have been a notable exception. She was eloquent and persuasive, and played upon the sensibilities of those rugged Scillonians what tune she would.

Tears of penitence rolled down the cheeks of many a stalwart man (to say nothing of the hoary sinners) that day. Among the number thus affected was William Gibson, of St. Martin's, who from that hour became a changed person. No longer did he refuse to render unto Cæsar (otherwise King George) that which was Cæsar's (or King George's). He gave up the contraband trade, and, forswearing his old companions' ways, turned to those of the righteous and the law-abiding, and became a burning and a shining light, and, as "Brother Gibson," a painful preacher in the Bible Christian communion. And thus, and in lawful fishing, with some little piloting, he continued steadfast, until his death in 1877, in his eighty-third year.

CHAPTER XII

THE CARTER FAMILY, OF PRUSSIA COVE

IN the west of Cornwall, on the south coast of the narrow neck of land which forms the beginning of that final westerly region known as “Penwithstart,” is situated Prussia Cove, originally named Porth Leah, or King’s Cove. It lies just eastwardly of the low dark promontory known as Cuddan Point, and is even at this day a secluded place, lying remote from the dull high-road that runs between Helston, Marazion, and Penzance. In the days of the smugglers Porth Leah, or Prussia Cove, was something more than secluded, and those who had any business at all with the place came to it much more easily by sea than by land. This disability was, however, not so serious as at first sight it would seem to be, for the inhabitants of Prussia Cove were few, and were all, without exception, fishermen and smugglers, who were much more at home upon the sea than on land, and desired nothing so little as good roads and easy communication with the world. An interesting and authoritative sidelight upon the then condition of this district of West Cornwall is afforded by *The Gentleman’s Magazine* of 1754, in which the entire absence of roads of any kind is commented upon. Bridle-paths there were, worn doubtless in the first instance by the remote original inhabitants of this region, trodden by the Phoenician traders of hoary antiquity, and unaltered in all the intervening ages. They then remained, says *The Gentleman’s Magazine*, “as the Deluge left them, and dangerous to travel over.” That time of writing was the era when these conditions were coming to an end, for the road from Penryn to Marazion was shortly afterwards constructed, much to the alarm and disgust of the people of West Cornwall in general, and of those of Penzance in particular. Penzance required no roads, and in 1760 its Corporation petitioned, but unsuccessfully, against the extension of the turnpike road then proposed, from Marazion. That was the time when there was but one cart in the town, and when wheeled traffic was impossible outside it: pack-horses and the

sledge-like contrivances known as “truckamucks” being the only methods of conveying such few goods as were required.

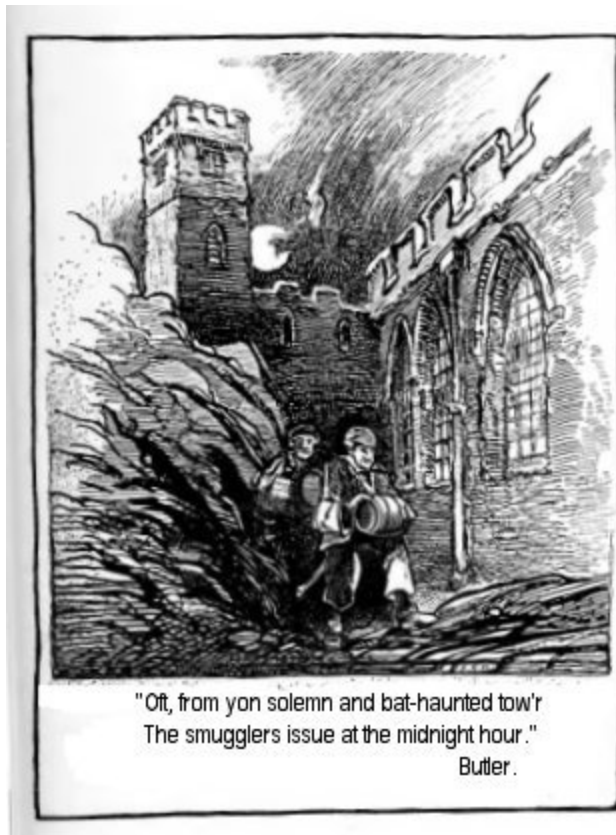
Under these interesting social conditions the ancient semi-independence of Western Cornwall remained, little impaired. Many still spoke the older Cornish language; the majority of folk referred to Devonshire and the country in general beyond the Tamar as “England”—the inference being, of course, that Cornwall itself was *not* England—and smuggling was as usual an industry as tin and copper-mining, fishing, or farming. Indeed the distances in Western Cornwall between sea and sea are so narrow that any man was commonly as excellent at farming as he was at fishing, and as expert at smuggling as at either of those more legitimate occupations. This amphibious race, wholly Celtic, adventurous, and enthusiastic, was not readily amenable to the restrictions upon trade imposed by that shadowy, distant, and impersonal abstraction called “the Government,” supported by visible forces, in the way of occasional soldiers or infrequent revenue cruisers, wherewith to make the collectors of customs at Penzance, Falmouth, or St. Ives, respected.

“The coasts here swarm with smugglers,” wrote George Borlase, of Penzance, agent to Lieut.-General Onslow, in 1750. Many letters by the same hand, printed in the publications of the Royal Institution of Cornwall, under the title of the “Lanisley Letters,” reiterate this statement, the writer of them urging the establishment of a military force at Helston, for “just on that neighbourhood lye the smugglers and wreckers, more than about us (at Penzance), tho’ there are too many in all parts of the country.”

The Cornish of that time were an unregenerate race, in the fullest sense of that term, and indulged in all the evil excesses to which the Celtic nature, untouched by religion, and wallowing in ancient superstitions, is prone. They drank to excess, fought brutally, and were shameless wreckers, who did not hesitate to lure ships upon the rocks and so bring about their destruction and incidentally their own enrichment by the cargo and other valuables washed ashore. Murder was a not unusual corollary of the wreckers’ fearful trade, partly because of the olden superstition that, if you saved the life of a castaway, that person whom you had preserved would afterwards bring about your own destruction. Therefore it was merely the instinct of self-preservation, and not sheer ferocity, that prompted the

knocking on the head of such waifs and strays. If, at the same time, the wrecker went over the pockets of the deceased, or cut off his or her fingers, for the sake of any rings, that must not, of course, be accounted mere vulgar robbery: it was simply the frugal nature of the people, unwilling to waste anything.

Upon these simple children of nature, imbued with many of the fearful beliefs current among the savages of the South Sea islands, the Reverend John Wesley descended, in 1743. They were then, he says, a people “who neither feared God nor regarded man.” Yet, so impressionable is the Celtic nature, so childlike and easily led for good or for evil, that his preaching within a marvellously short space of time entirely changed the habits of these folk. In every village and hamlet there sprang up, as by magic, Wesleyan Methodist meeting-houses; and these and other chapels of dissent from the Church of England are to this day the most outstanding features of the Cornish landscape. They are, architecturally speaking, without exception, hideous eyesores, but morally they are things of beauty. It is one of the bitterest indictments possible to be framed against the Church of England in the west that, in all its existence, it has never commanded the affections, nor exercised the spiritual influence, won by Wesley in a few short years.



It was about this period of Wesley's first visits to Cornwall that the Carter family of Prussia Cove were born. Their father, Francis Carter, who was a miner, and had, in addition, a small farm at Pengersick, traditionally came of a Shropshire family, and died in 1784. He had eight sons and two daughters, John Carter, the "King of Prussia," being the eldest. Among the others, Francis, born 1745, Henry, born 1749, and Charles, 1757, were also actively engaged in smuggling; but John, both in respect of being the eldest, and by force of character, was chief of them. He and his brethren were all, to outward seeming, small farmers and fisherfolk, tilling the ungrateful land in the neighbourhood of Porth Leah, but in reality busily employed in bringing over cargoes of spirits from Roscoff, Cherbourg, and St. Malo. The origin of the nickname, "King of Prussia," borne by John Carter, is said to lie in the boyish games of the "king of the castle" kind, of himself and his brothers, in which he was always the "King of Prussia"—*i.e.* Frederick the Great, the popular hero of that age. Overlooking the cove of Porth Leah, at that time still bearing that name, he built about 1770 a large and substantial stone house, which stood a prominent feature in the scene, until it was demolished in 1906. This he appears to have kept partly as an inn, licensed

or unlicensed, which became known by his own nickname, the “King of Prussia,” and in it he lived until 1807.

“Prussia Cove” is, in fact, two coves, formed by the interposition of a rocky ledge, at whose extremity is a rock-islet called the “Eneys”—*i.e.* “ynys,” ancient Cornish for island. The western portion of these inlets is “Bessie’s Cove,” which takes its name from one Bessie Burrow, who kept an inn on the cliff-top, known as the “Kidleywink.” The easterly inlet was the site of the “King of Prussia’s” house. Both these rocky channels had the advantage of being tucked away by nature in recesses of the coast, and so overhung by the low cliffs that no stranger could in the least perceive what harboured there until he was actually come to the cliff’s edge, and peering over them; while no passing vessel out in the Channel could detect the presence of any craft, which could not be located from the sea until the cove itself was approached.

Thus snugly seated, the Carter family thrived. Of John Carter, although chief of the clan, we have few details, always excepting the one great incident of his career; and of that the account is but meagre. It seems that he had actually been impudent enough to construct a battery, mounted with some small cannon, beside his house, and had the temerity to unmask it and open fire upon the *Fairy* revenue sloop, which one day chased a smuggling craft into this lair, and had sent in a boat party. The boat withdrew before this unexpected reception, and, notice having been sent round to Penzance, a party of mounted soldiers appeared the following morning and let loose their muskets upon the smugglers, who were still holding the fort, but soon vacated it upon thus being taken in the rear, retreating to the “Kidleywink.” What would next have happened had the soldiers pursued their advantage we can only surmise; but they appear to have been content with this demonstration, and to have returned whence they came, while of the revenue sloop we hear no more. Nor does Carter ever appear to have been called to account for his defiance. But if a guess may be hazarded where information does not exist, it may be assumed that Carter’s line of defence would be that his fort was constructed and armed against French raids, and that he mistook the revenue vessel for a foreign privateer.



PRUSSIA COVE.

John Carter, and indeed all his brothers with him, was highly respected, as the following story will show. The excise officers of Penzance, hearing on one occasion that he was away from home, descended upon the cove with a party, and searched the place. They found a quantity of spirits lately landed, and, securing all the kegs, carried them off to Penzance and duly locked them up in the custom-house. The anger of the “King of Prussia” upon his return was great; not so great, it seems, on account of the actual loss of the goods as for the breaking of faith with his customers it involved. The spirits had been ordered by some of the gentlefolk around, and a good deal of them had been paid for. Should he be disgraced by failing to keep his engagements as an honest tradesman? Never! And so he and his set off to Penzance overnight, and, raiding the custom-house, brought away all his tubs, from among a number of others. When morning came, and the custom-house was unlocked, the excisemen knew whose handiwork this had been, because Carter was such an honourable man, and none other than himself would have been so scrupulous as to take back only his own. Yet he was also the hero of the next incident. The revenue officers once paid him a surprise visit, and overhauled his outhouses, in search of contraband. The search, on this occasion, was fruitless. But there yet remained one other shed, and this, suspiciously enough, was locked. He refused to hand over the key, whereupon the door was burst open, revealing only domestic

articles. The broken door remained open throughout the night, and by morning all the contents of the shed had vanished. Carter successfully sued for the value of the property he had “lost,” but he had removed it himself!

We learn something of the Carter family business from the autobiography written by Henry Carter, an account of his life from 1749 until 1795. Much else is found in a memoir printed in *The Wesleyan Methodist Magazine*, 1831. “Captain Harry” lived until 1829, farming in a small way at the neighbouring hamlet of Rinsey. He had long relinquished smuggling, having been converted in 1789, and living as a burning and a shining light in the Wesleyan communion thereafter, preaching with fervour and unction. He tells us, in his rough, unvarnished autobiography ^[173] that he first went smuggling and fishing with his brothers when seventeen years of age, having already worked in the mines. At twenty-five years of age he went regularly smuggling in a ten-ton sloop, with two men to help him; and was so successful that he soon had a sloop, nearly twice as large, especially built for him. Successful again, “rather beyond common,” he (or “we,” as he says) bought a cutter of some thirty tons, and employed a crew of ten men. “I sailed in her one year, and I suppose made more safe voyages than have been ever made, since or before, with any single person.” All this while, he tells us, he was under conviction of sin, but went on, nevertheless, for years, sinning and repenting. “Well, then,” he continues, “in the course of these few years, as we card a large trade with other vessels allso, we gained a large sum of money, and being a speculating family, was not satisfied with small things.” A new cutter was accordingly built, of about sixty tons burthen, and Captain Harry took her to sea in December 1777. Putting into St. Malo, to repair a sprung bowsprit, his fine new cutter, with its sixteen guns, was taken by the French, and himself and his crew of thirty-six men flung into prison, difficulties having again sprung up between England and France, and an embargo being laid upon all English shipping in French ports. In prison he was presently joined by his brother John; both being shortly afterwards sent on parole to Josselin. In November 1779 they were liberated, in exchange for two French gentlemen, prisoners of war. The family, Captain Harry remarks, they found alive and well on their return home after this two years’ absence, but in a low state, the “business” not having been managed well in their enforced absence.

It is impossible to resist the strong suspicion, in all this and other talk in the autobiography, of buying and building newer and larger vessels, that the Carters were financed by some wealthy and influential person, or persons, as undoubtedly many smugglers were, the profits of the smuggling trade, when conducted on a large scale and attended by a run of luck, being very large and amply recouping the partners for the incidental losses. But the loss of the fine new cutter, on her first voyage, at St. Malo, must have been a very serious business.

After another interval of success with the smaller cutter they had earlier used, with spells ashore, “riding about the country getting freights, collecting money for the company, etc., etc.,” another fifty-ton cutter was purchased, mounting nineteen guns. That venture, too, was highly successful, and “the company accordingly had a new lugger built, mounting twenty guns.” Horrible to relate, Captain Harry, “being exposed to more company and sailors of all descriptions, larned to swear at times.” This is bad hearing.



IN A FRENCH PRISON.

Obviously in those times there was a good deal of give and take going on between the Customs and those smugglers who smuggled on a large scale, and the Carters' vessels must in some unofficial way have ranked as privateers. Hence, possibly, the considerable armament they carried. The Customs, and the Admiralty too, were prepared to wink at smuggling when services against the foreign foe could be invoked. Thus we find Captain Harry, in his autobiography, narrating how the Collector of Customs at Penzance sent him a message to the effect that the *Black Prince* privateer, from Dunkirk, was off the coast, near St. Ives, and desiring him to pursue her. "It was not," frankly says Captain Harry, "a very agreeable business"; but, being afraid of offending the Collector, he obeyed, and went in pursuit, with two vessels. Coming up with the enemy, after a running fight of three or four hours, the lugger received a shot that obliged her to bear up, in a sinking condition; and so her consort stood by her, and the chase was of necessity abandoned. Presently the lugger sank, fourteen of her crew of thirty-one being drowned.

In January 1788 he went with a cargo of contraband in a forty-five-ton lugger to Cawsand Bay, near Plymouth, and there met with the most serious reverse of his smuggling career, two man-o'-war's boats boarding the vessel and seizing it and its contents. He was so knocked about over the head with cutlasses that he was felled to the deck, and left there for dead.

"I suppose I might have been there about a quarter of an hour, until they had secured my people below, and after found me lying on the deck. One of them said, 'Here is one of the poor fellows dead.' Another made answer, 'Put the man below.' He answered again, saying, 'What use is it to put a dead man below?' and so past on. About this time the vessel struck aground, the wind being about east-south-east, very hard, right on the shore. So their I laid very quiet for near the space of two hours, hearing their discourse as they walked by me, the night being very dark on the 30 Jany. 1788. When some of them saw me lying there, said, 'Here lays one of the fellows dead,' one of them answered as before, 'Put him below.' Another said, 'The man is dead.' The commanding officer gave orders for a lantern and candle to be brought, so they took up one of my legs, as I was lying upon my belly; he let it go, and it fell as dead down on the deck. He likewise put his hand up under my clothes, between my shirt and my skin, and then examined my head, saying, 'This man is so warm now as he was

two hours back, but his head is all to atoms.' I have thought hundreds of times since what a miracle it was I neither sneezed, coughed, nor drew breath that they perceived in all this time, I suppose not less than ten or fifteen minutes. The water being ebbing, the vessel making a great heel towards the shore, so that in the course of a very little time after, as their two boats were made fast alongside, one of them broke adrift. Immediately there was orders given to man the other boat, in order to fetch her; so that when I saw them in the state of confusion, their gard broken, I thought it was my time to make my escape; so I crept on my belly on the deck, and got over a large raft just before the mainmast, close by one of the men's heels, as he was standing there handing the trysail. When I got over the lee-side I thought I should be able to swim on shore in a stroke or two. I took hold of the burtons of the mast, and, as I was lifting myself over the side, I was taken with the cramp in one of my thighs. So then I thought I should be drowned, but still willing to risk it, so that I let myself over the side very easily by a rope into the water, fearing my enemies would hear me, and then let go. As I was very near the shore, I thought to swim on shore in the course of a stroke or two, as I used to swim so well, but soon found out my mistake. I was sinking almost like a stone, and hauling astarn in deeper water, when I gave up all hopes of life, and began to swallow some water. I found a rope under my breast, so that I had not lost all my senses. I hauled upon it, and soon found one end fast to the side, just where I went overboard, which gave me a little hope of life. So that when I got there, could not tell which was best, to call to the man-of-war's men to take me in, or to stay there and die, for my life and strength were allmoste exhausted; but whilst I was thinking of this, touched bottom with my feet. Hope then sprung up, and I soon found another rope, leading towards the head of the vessel in shoaler water, so that I veered upon one and hauled upon the other that brought me under the bowsprit, and then at times upon the send of the sea, my feete were allmoste dry. I thought then I would soon be out of their way. Left go the rope, but as soon as I attempted to run, fell down, and as I fell, looking round aboute me, saw three men standing close by me. I knew they were the man-of-war's men seeing for the boat, so I lyed there quiet for some little time, and then creeped upon my belly I suppose aboute the distance of fifty yards; and as the ground was scuddy, some flat rock mixt with channels of sand, I saw before me a channel of white sand, and for fear to be seen creeping over it, which would take some time, not knowing there

was anything the matter with me, made the second attempt to run, and fell in the same manner as before. My brother Charles being there, looking out for the vessel, desired some Cawsand men to go down to see if they could pick up any of the men, dead or alive, not expecting to see me ever any more, allmoste sure I was ither shot or drowned. One of them saw me fall, ran to my assistance, and, taking hold of me under the arm, says, ‘Who are you?’ So as I thought him to be an enemy, made no answer. He said, ‘Fear not, I am a friend; come with me.’ And by that time, forth was two more come, which took me under both arms, and the other pushed me in the back, and so dragged me up to the town. I suppose it might have been about the distance of the fifth part of a mile. My strength was allmoste exhausted; my breath, nay, my life, was allmoste gone. They took me into a room where there were seven or eight of Cawsand men and my brother Charles, and when he saw me, knew me by my great coat, and cryed with joy, ‘This is my brother!’ So then they immediately slipt off my wet clothes, and one of them pulled off his shirt from off him and put on me, sent for a doctor, and put me to bed. Well, then, I have thought many a time since what a wonder it was. The bone of my nose cut right in two, nothing but a bit of skin holding it, and two very large cuts on my head, that two or three pieces of my skull worked out afterwards.”

The difficulty before Captain Harry’s friends was how to hide him away, for they were convinced that a reward would be offered for his apprehension. He was, in the first instance, taken to the house of his brother Charles, and stayed there six or seven days, until an advertisement appeared in the newspapers, offering a reward of three hundred pounds for him, within three months. He was then taken to the house of a gentleman at Marazion, and there remained close upon three weeks, removing thence to the mansion called Acton Castle, near Cuddan Point, then quite newly built by one Mr. John Stackhouse. He was moved to and fro, between Acton Castle and Marazion, and so great did his brothers think the need of precaution that the doctor who attended to his hurts was blindfolded on the way. And so matters progressed until October, when he was shipped from Mount’s Bay to Leghorn, and thence, in 1789, sailed for New York. It was in New York that the Lord strove mightily with him, and he was converted and became a member of the Wesleyan Methodist communion. After some considerable trials, he sailed for England, and finally reached home again in

October 1790, to his brother Charles's house at Kenneggey. His reception was enthusiastic, and he became in great request as a preacher in all that countryside. But in April 1791 he tells us he was sent for "by a great man of this neighbourhood" (probably one of those whom we have already suspected of being sleeping-partners in the Carters' business), and warned that three gentlemen had been in his company one day at Helston, when one said, looking out of window, "There goes a Methodist preacher"; whereupon another answered, "I wonder how Harry Carter goes about so publicly, preaching, and the law against him. I wonder he is not apprehended." The great man warned him that it might be a wise course to return to America. "And," continues Captain Harry, "as the gent was well acquainted with our family, I dined with him, and he brought me about a mile in my way home; so I parted with him, fully determining in my own mind to soon see my dear friends in New York again. So I told my brothers what the news was, and that I was meaning to take the gent's advice. They answered, 'If you go to America, we never shall see you no more. We are meaning to car on a little trade in Roscoff, in the brandy and gin way, and if you go there you'll be as safe there as in America; likewise we shal pay you for your comision, and you car on a little business for yourself, if you please.' So," continues this simple soul, "with prayer and supplication I made my request known unto God." And as there appeared no divine interdict upon smuggling, he accepted the agency and went to reside at Roscoff, sending over many a consignment of ardent liquors that were never intended to—and never did—pay tribute to the Revenue. All went well until, in the troubles that attended the French Revolution, he was, in company with other English, arrested and flung into prison in 1793. And in prison he remained during that Reign of Terror in which English prisoners were declared by the Convention to rank with the "aristocrats" and the "suspects," and were therefore in hourly danger of the guillotine. This immediate terror passed when Robespierre was executed, July 28th, 1794, but it was not until August 1795 that Harry Carter was released. He reached home on August 22nd, and appears ever after to have settled down to tilling a modest farm and leaving smuggling to brothers John and Charles.

CHAPTER XIII

JACK RATTENBURY

WE do not expect of smugglers that they should be either literary or devout. The doings of the Hawkhurst Gang, and of other desperate and bloody-minded associations of free-traders, seem more in key with the business than either the sitting at a desk, nibbling a pen and rolling a frenzied eye, in search of a telling phrase, or the singing of Methodist psalms. Yet we have, in the "Memoirs of a Smuggler," published at Sidmouth in 1837, the career of Jack Rattenbury, smuggler, of Beer, in Devonshire, told by himself; and in the diary of Henry Carter, of Prussia Cove, and later of Rinsey, we have learned how he found peace and walked with the saints, after a not uneventful career in robbing the King's Revenue of a goodly portion of its dues as by law enacted. With the eminent Mr. Henry Carter and his interesting brothers we have already dealt, reserving this chapter for the still more eminent Rattenbury, "commonly called," as he says on his own title-page (in the manner of one who knows his own worth), "The Rob Roy of the West."

We need not be so simple as to suppose that Rattenbury himself actually wrote, with his own hand, this interesting account of his adventures. The son of a village cobbler in South Devon, born in 1778, and taking to a seafaring life when nine years of age, would scarce be capable, in years of eld, of writing the conventionally "elegant" English of which his "Autobiography" is composed. But nothing "transpires" (as the actual writer of the book might say) as to whom Rattenbury recounted his moving tale, or by whose hand it was really set down. Bating, however, the conventional language, the book has the unmistakable forthright first-hand character of a personal narrative.

Before the future smuggler was born, as he tells us, his shoemaker, or cobbler, father disappeared from Beer in a manner in those days not unusual. He went on board a man-o'-war, and was never again heard of. Whether he actually "went," or was taken by a press-gang, we are left to conjecture. But they were sturdy, self-reliant people in those days, and Mrs. Rattenbury earned a livelihood in this bereavement by selling fish, "without receiving the least assistance from the parish, or any of her friends."

When Jack Rattenbury was nine years of age he was introduced to the sea by means of his uncle's fishing-boat, but dropped the family connection upon being lustily rope's-ended by the uncle, as a reward for losing the boat's rudder. He then went apprentice to a Brixham fisherman, but, being the younger among several apprentices, was accordingly bullied, and left; returning to Beer, where he found his uncle busily engaging a privateer's crew, war having again broken out between England and France, and merchantmen being a likely prey.



JACK RATTENBURY.

From an old Print.

So behold our bold privateer setting forth, keen for loot and distinction; the hearts of men and boys alike beating high in hope of such glory as might attach to capturing some defenceless trader, and in anticipation of the prize-money to be obtained by robbing him. But see the irony of the gods in their high heavens! After seven weeks' fruitless and expensive cruising at sea, they espied a likely vessel, and bore down upon her, with the horrible result that she proved to be an armed Frenchman of twenty-six guns, who promptly captured the privateer, without even the pretence of a fight: the privateering crew being sent, ironed, down below hatches aboard the Frenchman, which then set sail for Bordeaux. There those more or less gallant souls were flung into prison, whence Rattenbury managed to escape to an American ship lying in the harbour. It continued to lie there, in consequence of an embargo upon all shipping, for twelve months: an anxious time for the boy. At last, the interdict being removed, they sailed, and Rattenbury landed at New York. From that port he returned to France in another American ship, landing at Havre; and at last, after a variety of transhipments, came home again to Beer, by way of Guernsey.

He was by this time about sixteen years of age. For six months he remained at home engaged in fishing; but this he found a very dull occupation after his late roving life, and, as smuggling was then very active in the neighbourhood, and promised both profit and excitement, he accordingly engaged in a small vessel that plied between Lyme Regis and the Channel Islands, chiefly in the cognac-smuggling business. This interlude likewise soon came to an end, and he then joined a small vessel called *The Friends*, lying at Bridport. On his first voyage, in the entirely honest business of sailing to Tenby for a cargo of culm, this ship was unlucky enough to be captured by a French privateer; but Rattenbury escaped by a clever ruse, off Swanage, and, swimming ashore, secured the intervention of the *Nancy*, revenue cutter, which recaptured *The Friends*, and brought her into Cowes that same night: a very smart piece of work, as will be readily conceded. Those were times of quick and surprising changes, and Rattenbury had not been again aboard *The Friends* more than two days when he was forcibly enlisted in the Navy, by the press-gang. Escaping from the more or less glorious service of his country at the end of a fortnight, he then prudently went on a long cod-fishing cruise off Newfoundland; but on the return voyage the ship was captured by a Spanish privateer and taken to Vigo.

Escaping thence, he again reached home, to be captured by the bright eyes of one of the buxom maids of Beer, where he was married, April 17th, 1801, proceeding then to live at Lyme Regis. Privateering to the west coast of Africa then occupied his activities for a time, but that business was never a profitable one, as far as Rattenbury was concerned, and they caught nothing; but, on the other hand, were nearly impressed, ship and ship's company too, by the *Alert*, King's cutter. Piloting, rather than privateering, then engaged his attention, and it was while occupied in that trade that he was again impressed and again escaped.

He then returned to Beer, and embarked upon a series of smuggling ventures, varied by attempts on the part of the press-gang to lay hold of him, and by some other (and always barren) privateering voyages. Ostensibly engaged in fishing, he landed many boat-loads of contraband at Beer, bringing them from quiet spots on the coasts of Dorset and Hampshire, where the goods had been hidden. Christchurch was one of these smugglers' warehouses, and from the creeks of that flat shore he and his fellows brought many a load, in open boats. On one of these occasions he fell in with the *Roebuck* revenue tender, which chased and fired upon him: the man who fired doing the damage to himself, for the gun burst and blew off his arm. But Rattenbury and his companions were captured, and their boat-load of gin was impounded. Rattenbury surely was a very Puck among smugglers: a tricky sprite, at once impudent and astonishingly fortunate. He hid himself in the bottom of the enemy's own boat, and by some magical dexterity escaped when it touched shore: while his companions were held prisoners. Nay, more. When night was come, he was impudent enough, and successful enough, to go and release his friends, and at the same time to bring away three of the captured gin-kegs. In that same winter of 1805 he made seven trips in a new-built smuggling vessel. Five of these were successful ventures, and two were failures. In the spring of 1806 his crew and cargo of spirit-tubs were captured, on returning from Alderney, by the *Duke of York* cutter. He was taken to Dartmouth, and, with his companions, fined and given the alternative of imprisonment or serving aboard a man-o'-war. After a very short experience of gaol, they chose to serve their country, chiefly because it was much easier to desert that service than to break prison; and they were then shipped in Dartmouth roads, whence Rattenbury escaped from the navy tender while the officers were all

drunk; coming ashore in a fisherman's boat, and thence making his way home by walking and riding horseback to Brixham, and from that port by fishing-smack.

Soon after this adventure he purchased a share in a galley, and, with some companions, made several successful trips in the cognac-smuggling between Beer and Alderney. At last the galley was lost in a storm, and in rowing an open boat across Channel Rattenbury and another were captured by the *Humber* sloop, and taken for trial to Falmouth and committed to Bodmin gaol, to which they were consigned in two post-chaises, in company with two constables. Travellers were thirsty folk in those days, and at every inn between Falmouth and Bodmin the chaises were halted, so that the constables could refresh themselves. Evening was come before they had reached Bodmin, and while the now half-seas-over constables were taking another dram at the lonely wayside inn called the "Indian Queens," Rattenbury and his companions conspired to escape. Behold them, then, when ordered by the constables to resume their places, refusing, and entering into a desperate struggle with those officers of the law. A pistol was fired, the shot passing close to Rattenbury's head. He and his companion then downed the constables and escaped across the moors; where, meeting with another party of smugglers, they were sheltered at Newquay. Next morning they travelled horseback, in company with the host who had sheltered them, to Mevagissey, whence they hired a boat to Budleigh Salterton, and thence walked home again to Beer.

Next year Rattenbury was appointed captain of a smuggling vessel called the *Trafalgar*, and after five fortunate voyages had the misfortune to lose her in heavy weather off Alderney. He and some associates then bought a vessel called the *Lively*, but she was chased by a French privateer and the helmsman shot. The privateer's captain was so overcome by this incidental killing that he relinquished his prize. After a few more trips, the *Lively* proved unseaworthy, and the confederates then purchased the *Neptune*, which was wrecked after three successful voyages had been made. But Rattenbury tells us, with some pride, that he saved the cargo. In the meanwhile, however, the *Lively* having been repaired, had put to sea in the smuggling interest again, and had been captured and confiscated by the revenue officers. Rattenbury lost £160 by that business. Soon afterwards he took a share in a twelve-oared galley, and was one of those who went in

it to Alderney for a cargo. On the return they were unfortunate enough to fall in with two revenue cutters: the *Stork* and the *Swallow*, that had been especially detailed to capture them; and accordingly did execute that commission, in as thorough and workmanlike fashion as possible, seizing the tubs and securing the persons of Rattenbury and two others; although the nine other oarsmen escaped. Captain Emys, of the *Stork*, took Rattenbury aboard his vessel, and treated him well, inviting him to his cabin and to eat and drink with him. Next day the smugglers were landed at Cowes.

“Rattenbury,” said the genial captain, “I am going to send you aboard a man-o’-war, and you must get clear how you can.” To this the saucy Rattenbury replied, “Sir, you have been giving me roast meat ever since I have been aboard, and now you have run the spit into me.” He was then put aboard the *Royal William*, on which he found a great many other smuggler prisoners. Thence, in the course of a fortnight, he and the others were drafted to the *Resistance* frigate, and sent to Cork. Arrived there, our slippery Rattenbury duly escaped in course of the following day, and was home again in six days more.

The activities of the smugglers were at times exceedingly unpatriotic, in other ways than merely cheating the Revenue, and Rattenbury was no whit better than his fellows. He had not long returned home when he made arrangements, for the substantial consideration of one hundred pounds, to embark across the Channel four French officers, prisoners of war, who had escaped from captivity at Tiverton. Receiving them on arrival at Beer, and concealing them in a house near the beach, their presence was soon detected and warrants were issued for the arrest of Rattenbury and five others concerned. Rattenbury adopted the safest course and surrendered voluntarily, and was acquitted, with a magisterial caution not to do it again.

Every now and again Rattenbury found himself arrested, or in danger of being arrested, as a deserter from the Navy. Returning on one of many occasions from a successful smuggling trip to Alderney, and drinking at an inn, he found himself in company with a sergeant and several privates of the South Devon Militia. Presently the sergeant, advancing towards him, said, “You are my prisoner. You are a deserter, and must go along with me.”

Must! what meaning was there in that imperative word for the bold smuggler of old? None. But Rattenbury's first method was suavity, especially as the militia had armed themselves with swords and muskets, and as such weapons are exceptionally dangerous things in the hands of militiamen. "Sergeant," said he (or says his author for him, in that English which surely Rattenbury himself never employed) "you are surely labouring under an error. I have done nothing that can authorise you in taking me up, or detaining me; you must certainly have mistaken me for some other person."

He then describes how he drew the sergeant into a parley, and how, in course of it, he jumped into the cellar, and, throwing off jacket and shirt, to prevent any one holding him, armed himself with a reaphook and bade defiance to all who should attempt to take him.

The situation was relieved at last by the artful women of Beer rushing in with an entirely fictitious story of a shipwreck and attracting the soldiers' attention. In midst of this diversion, Rattenbury jumped out, and, dashing down to the beach, got aboard his vessel. After this incident he kept out of Beer as much as possible; and shortly afterwards was successful in piloting the *Linskill* transport through a storm that was likely to have wrecked her, and so safely into the Solent. He earned twenty guineas by this; and received the advice of the captain to get a handbill printed, detailing the circumstances of this service, by way of set-off against the various desertions for which he was liable to be at any time called to account.

Soon after this, Lord and Lady Rolle visited Beer, and Rattenbury's wife took occasion to present his lordship with one of the bills that had been struck off. "I am sorry," observed Lord Rolle, reading it, "that I cannot do anything for your husband, as I am told he was the man who threatened to cut my sergeant's guts out." Such, you see, was the execution Rattenbury, at bay in the cellar, had proposed with his reaphook upon the military.

Hearing this, and learning that Lady Rolle was also in the village, he ran after her, and overtaking her carriage, fell upon his knees and presented one of his handbills, entreating her ladyship to use her influence on his behalf, so that the authorities might not be allowed to take him. It is a ridiculous picture, but Rattenbury makes no shame in presenting it. "She then said,"

he tells us, “you ought to go back on board a man-o’-war, and be equal to Lord Nelson; you have such spirits for fighting. If you do so, you may depend I will take care you shall not be hurt.” To which he replied; “My lady, I have ever had an aversion to [sic] the Navy. I wish to remain with my wife and family, and to support them in a creditable manner, [\[194\]](#) and therefore can never think of returning.”

Her ladyship then said, “I will consider about it,” and turned off. About a week afterwards, the soldiers were ordered away from Beer, through the influence of her ladyship, as I conjecture, and the humanity of Lord Rolle.

And so Rattenbury was left in peace. He tells us that he would have now entered upon a new course of life, but found himself “engaged in difficulties from which I was unable to escape, and bound by a chain of circumstances whose links I was unable to break. . . . I seriously resolved to abandon the trade of smuggling; to take a public-house, and to employ my leisure hours in fishing, etc. At first the house appeared to answer pretty well, but after being in it for two years, I found that I was considerably gone back in the world; for that my circumstances, instead of improving, were daily getting worse, for all the money I could get by fishing and piloting went to the brewer.” Thus, he says, he was obliged to return to smuggling; but we cannot help suspecting that Rattenbury is here not quite honest with us, and that smuggling offered just that alluring admixture of gain and adventure he found himself incapable of resisting.

Adventures, it has been truly said, are to the adventurous; and Rattenbury’s career offered no exception to the rule. There was, perhaps, never so unlucky a smuggler as he. Returning to the trade in November 1812, and returning with a cargo of spirits from Alderney, his vessel fell in with the brig *Catherine*, and was pursued, heavily fired upon, and finally captured. The captain of the *Catherine*, raging at them, declared they should all be sent aboard a man-o’-war; but a search of the smuggling craft revealed nothing except one solitary pint of gin in a bottle: the cargo having presumably been put over the side. The crew were, however, taken prisoners aboard the *Catherine*, and their vessel was taken to Brixham. Rattenbury and his men were kept aboard the *Catherine* for a week, cruising in the Channel, and then the brig put in again to Brixham, where the wives of the prisoners were anxiously waiting. Next morning, in the

absence of the captain and chief officer ashore, the women came off in a boat, and were helped aboard the brig; when Rattenbury and three of his men jumped into the boat and pushed off. The second mate, who was in charge of the vessel, caught hold of the oar Rattenbury was using, and broke the blade of it, and the smuggler then threw the remaining part at him. The mate then fired; whereupon Rattenbury's wife knocked the firearm out of his hand. Picking it up, he fired again, but the boat's sail was up, and the fugitives were well on the way to shore, and made good their escape, amid a shower of bullets. They then dispersed, two of them being afterwards re-taken and sent aboard a man-o'-war bound for the West Indies; but Rattenbury made his way safely home again and was presently joined there by his wife.

The public-house was closed in November 1813, smuggling was for a time in a bad way, owing to the Channel being closely patrolled; and Rattenbury, now with a wife and four children, made but a scanty subsistence on fishing and a little piloting. In September 1814 he ventured again in the smuggling way, making a successful run to and from Cherbourg, but in November another run was quite spoilt, in the first instance by a gale, which obliged the smugglers to sink their kegs, and in the second by the revenue officers seizing the boats. Finally, on the next day a custom-house boat ran over their buoy marking the spot where the kegs had been sunk, and seized them all—over a hundred. “This,” says Rattenbury, with the conciseness of a resigned victim, “was a severe loss.”

The succeeding years were more fortunate for him. In 1816 he bought the sloop *Elizabeth and Kitty*, cheap, having been awarded a substantial sum as salvage, for having rescued her when deserted by her crew; and all that year did very well in smuggling spirits from Cherbourg. Successes and failures, arrests, escapes, or releases, then followed in plentiful succession until the close of 1825, when the most serious happening of his adventurous career occurred. He was captured off Dawlish, on December 18th, returning from a smuggling expedition, and detained at Budleigh Salterton watch-house until January 2nd, when he was taken before the magistrates at Exeter, and committed to gaol. There he remained until April 5th, 1827. In 1829 he says he “made an application” to Lord Rolle, who gave him a letter to the Admiral at Portsmouth, and went aboard the *Tartar* cutter. In January 1830

he took his discharge, received his pay at the custom-house, and went home.

Very slyly does he withhold from us the subject of that application, and the nature of the *Tartar's* commission; and it is left for us to discover that the bold smuggler had taken service at last with the revenue and customs authorities, and for a time placed his knowledge of the ins and outs of smuggling at the command of those whose duty it was to defeat the free-traders. It was perhaps the discovery that the work of spying and betraying was irksome, or perhaps the ready threats of his old associates, that caused him to relinquish the work.

However that may be, he was soon at smuggling again, carried on in between genuine trading enterprises; and in November 1831 was unlucky enough to be chased and captured by the Beer preventive boat. As usual, the cargo was carefully sunk before the capture was actually made, and although the preventive men strenuously grappled for it, they found nothing but a piece of rope, about one fathom long. On the very slight presumptive evidence of that length of rope, Rattenbury and his eldest son and two men were found guilty on their trial at Lyme Regis, and were committed to Dorchester gaol. There they remained until February 1833.

Rattenbury's last smuggling experience was a shoregoing one, in the month of January 1836, at Torquay, where he was engaged with another man in carting a load of twenty tubs of brandy. They had got about a mile out of Newton Abbot, at ten o'clock at night, when a party of riding-officers came up and seized the consignment "in the King's name." Rattenbury escaped, being as eel-like and evasive as ever, but his companion was arrested.

Thus, before he was quite fifty-eight years of age, he quitted an exceptionally chequered career; but his wonted fires lived in his son, who continued the tradition, even though the great days of smuggling were by now done.

That son was charged, at Exeter Assizes, in March 1836, with having on the night of December 1st, 1835, taken part with others in assaulting two custom-house officers at Budleigh Salterton. Numerous witnesses swore to his having been at Beer that night, sixteen miles away, but he was found guilty and sentenced to seven years' transportation; the Court being quite

used to this abundant evidence, and quite convinced, Bible oaths to the contrary notwithstanding, that he was at Budleigh Salterton, and did in fact take part in maltreating His Majesty's officers.

Jack Rattenbury was on this occasion cross-examined by the celebrated Mr. Serjeant Bompas, in which he declared he had brought up that son in a proper way, and "larnt him the Creed, the Lord's Prayer, and the Ten Commandments." (Perhaps also that important Eleventh Commandment, "Thou shalt not be found out!")

"You don't find there, 'Thou shalt not smuggle?'" asked Mr. Serjeant Bompas.

"No," replied Rattenbury the ready, "but I find there, 'Thou shalt not bear false witness against thy neighbour.'"

The injured innocent, like to be transported for his country's good, was granted a Royal Pardon, as the result of several petitions sent to Lord John Russell.

The village of Beer, deep down in one of the most romantic rocky coves of South Devon, is nowadays a very different kind of place from what it was in Rattenbury's time. Then the home of fishermen daring alike in fishing and in smuggling, a village to which strangers came but rarely, it is now very much of a favourite seaside resort, and full of boarding-houses that have almost entirely abolished the ancient thatched cottages. A few of these yet linger on, together with one or two of the curious old stone water-conduits and some stretches of the primitive cobbled pavements, but they will not long survive. The sole characteristic industry of Beer that is left, besides the fishing and the stone-quarrying that has been in progress from the very earliest times, is the lace-making, nowadays experiencing a revival.

But the knowing ones will show you still the smugglers' caves: deep crannies in the chalk cliffs of Beer, that at this place so curiously alternate with the more characteristic red sandstone of South Devon.

CHAPTER XIV

THE WHISKY SMUGGLERS

A MODERN form of smuggling little suspected by the average Englishman is found in the illicit whisky-distilling yet carried on in the Highlands of Scotland and the wilds of Ireland, as the records of Inland Revenue prosecutions still annually prove. The sportsman, or the more adventurous among those tourists who roam far from the beaten track, are still likely to discover in rugged and remote situations the ruins of rough stone and turf huts of no antiquity, situated in lonely rifts in the mountain-sides, always with a stream running by. If the stranger is at all inquisitive on the subject of these solitary ruins, he will easily discover that not only are they not old, but that they have, in many cases, only recently been vacated. They are, in fact, the temporary bothies built from the abundant materials of those wild spots by the ingenious crofters and other peasantry, for the purpose of distilling whisky that shall not, between its manufacture and its almost immediate consumption, pay duty to the revenue authorities.

This illegal production of what is now thought to be the “national drink” of Scotland and Ireland, is not of any considerable antiquity, for whisky itself did not grow popular until comparatively recent times. Robert Burns, who may not unfairly be considered the poet-laureate of whisky, and styles it “whisky, drink divine,” would have had neither the possibility of that inspiration, nor have filled the official post of exciseman, had he flourished but a few generations earlier; but he was born in that era when whisky-smuggling and dram-drinking were at their height, and he took an active part in both the drinking of whisky and the hunting down of smugglers of it.

One of the most stirring incidents of his career was that which occurred in 1792, when, foremost of a little band of revenue officers, aided by dragoons, he waded into the waters of Solway, reckless of the quicksands of

that treacherous estuary, and, sword in hand, was the first to board a smuggling brig, placing the crew under arrest and conveying the vessel to Dumfries, where it was sold. It was this incident that inspired him with the poem, if indeed, we may at all fitly claim inspiration for such an inferior Burns product:

THE DE'IL'S AWA' WI' THE EXCISEMAN

The De'il cam' fiddling thro' the town,
And danc'd awa' wi' the exciseman;
And ilka wife cry'd, "Auld Mahoun,
I wish you luck o' your prize, man."

We'll mak' our maut and brew our drink,
We'll dance, and sing, and rejoice, man;
And monie thanks to the muckle black De'il,
That danced awa' wi' the exciseman.

There's threesome reels, and foursome reels,
There's hornpipes and strathspeys, man;
But the ae best dance e'er cam' to our lan',
Was—the De'il's awa' wi' the exciseman.

Whisky, *i.e.* *usquebaugh*, signifying in Gaelic "water of life," originated, we are told, in the monasteries, where so many other comforting cordials were discovered, somewhere about the eleventh or twelfth century. It was for a very long period regarded only as a medicine, and its composition remained unknown to the generality of people; and thus we find among the earliest accounts of whisky, outside monastic walls, an item in the household expenses of James the Fourth of Scotland, at the close of the fifteenth century. There it is styled "*aqua vitæ*."

A sample of this then new drink was apparently introduced to the notice of the King or his Court, and seems to have been so greatly appreciated that eight bolls of malt figure among the household items as delivered to "Friar James Cor," for the purpose of manufacturing more, as per sample.

But for generations to come the nobles and gentry of Scotland continued to drink wine, and the peasantry to drink ale, and it was only with the closing

years of another century that whisky became at all commonly manufactured. We read that in 1579 distillers were for the first time taxed in Scotland, and private stills forbidden; and the rural population did not altogether forsake their beer for the spirit until about the beginning of the eighteenth century. Parliament, however, soon discovered a tempting source of revenue in it, and imposed constantly increasing taxation. In 1736 the distillers' tax was raised to 20s. a gallon, and there were, in addition, imposts upon the retailers.

It might have been foreseen that the very natural result of these extortionate taxes would be to elevate illegal distilling, formerly practised here and there, into an enormously increased industry, flourishing in every glen. Only a very small proportion of the output paid the duties imposed. Every clachan had its still, or stills.

This state of things was met by another Act which prohibited the making of whisky from stills of a smaller capacity than five hundred gallons; but this enactment merely brought about the removal of the more or less openly defiant stills from the villages to the solitary places in the hills and mountains, and necessitated a large increase in the number of excisemen.

Seven years of these extravagant super-taxes sufficed to convince the Government of the folly of so overweighting an article with taxation that successful smuggling of it would easily bring fortunes to bold and energetic men. To do so was thus abundantly proved to be a direct provocation to men of enterprise; and the net result the Government found to be a vastly increased and highly expensive excise establishment, whose cost was by no means met by the revenue derived from the heavy duties. Failure thus becoming evident, the taxes were heavily reduced, until they totalled but ten shillings and sixpence a gallon.

But the spice of adventure introduced by illegal distilling under the old heavy taxation had aroused a reckless frame of mind among the Highlanders, who, once become used to defy the authorities, were not readily persuaded to give up their illegal practices. The glens continued to be filled with private stills. Glenlivet was, in especial, famed for its whisky-smugglers; and the peat-reek arose in every surrounding fold in the hills from hundreds of "sma' stills." Many of these private undertakings did

business in a large way, and openly sold their products to customers in the south, sending their tubs of spirits under strong escort, for great distances. They had customers in England also, and exciting incidents arose at the Border, for not only the question of excise then arose, but that of customs duty as well; for the customs rates on spirits were then higher in England than in Scotland. The border counties of Northumberland and Cumberland, Berwick, Roxburgh, and Dumfriesshire were infested with smugglers of this double-dyed type, to whom must be added the foreign contrabandists, such as the Dutchman, Yawkins, who haunted the coasts of Dumfriesshire and Galloway with his smuggling lugger, the *Black Prince*, and is supposed to be the original of Dirk Hatteraick, in Scott's romance, "Guy Mannering."

The very name of this bold fellow was a terror to those whose duty it was to uphold law and order in those parts; and it was, naturally, to his interest to maintain that feeling of dread, by every means in his power. Scott tells us how, on one particular night, happening to be ashore with a considerable quantity of goods in his sole custody, a strong party of excisemen came down upon him. Far from shunning the attack, Yawkins sprang forward, shouting, "Come on, my lads, Yawkins is before you."

The revenue officers were intimidated, and relinquished their prize, though defended only by the courage and address of one man. On his proper element, Yawkins was equally successful. On one occasion he was landing his cargo at the Manxman's Lake, near Kirkcudbright, when two revenue cutters, the *Pigmy* and the *Dwarf*, hove in sight at once, on different tacks, the one coming round by the Isles of Fleet, the other between the point of Rueberry and the Muckle Ron. The dauntless free-trader instantly weighed anchor and bore down right between the luggers, so close that he tossed his hat on the deck of the one and his wig on that of the other, hoisted a cask to his maintop, to show his occupation, and bore away under an extraordinary pressure of canvas, without receiving injury.

So, at any rate, the fantastic legends tell us, although it is but fair to remark, in this place, that no practical yachtsman, or indeed any other navigator, would for a moment believe in the possibility of such a feat.

To account for these and other hairbreadth escapes, popular superstition freely alleged that Yawkins insured his celebrated lugger by compounding

with the Devil for one-tenth of his crew every voyage. How they arranged the separation of the stock and tithes is left to our conjecture. The lugger was perhaps called the *Black Prince* in honour of the formidable insurer. Her owner's favourite landing-places were at the entrance of the Dee and the Cree, near the old castle of Rueberry, about six miles below Kirkcudbright. There is a cave of large dimensions in the vicinity of Rueberry, which, from its being frequently used by Yawkins and his supposed connection with the smugglers on the shore, is now called "Dirk Hatteraick's Cave." Strangers who visit this place, the scenery of which is highly romantic, are also shown, under the name of the "Gauger's Leap," a tremendous precipice.

"In those halcyon days of the free trade," says Scott, "the fixed price for carrying a box of tea or bale of tobacco from the coast of Galloway to Edinburgh was fifteen shillings, and a man with two horses carried four such packages."

This condition of affairs prevailed until peace had come, after the final defeat of Napoleon at Waterloo. The Government then, as always, sadly in need of new sources of revenue, was impressed with the idea that a fine sum might annually be obtained by placing these shy Highland distillers under contribution. But there were great difficulties in the way. The existing laws were a mere dead letter in those regions, and it was scarce likely that any new measures, unless backed up by a display of military force, would secure obedience. The Duke of Gordon, at that period a personage of exceptionally commanding influence with the clansmen, was appealed to by the Government to use his authority for the purpose of discouraging these practices; but he declared, from his place in the House of Lords, that the Highlanders were hereditary distillers of whisky: it had from time immemorial been their drink, and they would, in spite of every discouragement, continue to make it and to consume it. They would sell it, too, he said, when given the opportunity of doing so by the extravagantly high duty on spirits. The only way out of the difficulty with which the Government was confronted was, he pointed out, the passing of an Act permitting the distilling of whisky on reasonable terms.

The result of this straightforward speech was the passing of an Act in 1823 which placed the moderate excise duty of 2s. 3d. a gallon on the production

of spirits, with a £10 annual license for every still of a capacity of forty gallons: smaller stills being altogether illegal.

These provisions were reasonable enough, but failed to satisfy the peasantry, and the people were altogether so opposed to the regulation of distilling that they destroyed the licensed distilleries. It was scarce worth the while of retailers, under those circumstances, to take out licenses, and so it presently came to pass that for every one duly licensed dealer there would be, according to the district, from fifty to one hundred unlicensed.

And so things remained until by degrees the gradually perfected system of excise patrols wore down this resistance.

In the meanwhile, the licensed distillers had a sorry time of it.

Archibald Forbes, many years ago, in the course of some observations upon whisky-smugglers, gave reminiscences of George Smith, who, from having in his early days been himself a smuggler, became manager of the Glenlivet Distillery. This famous manufactory of whisky, in these days producing about two thousand gallons a week, had an output in 1824 of but one hundred gallons in the same time; and its very existence was for years threatened by the revengeful peasantry and proprietors of the “sma’ stills.” Smith was a man of fine physical proportions and great courage and tenacity of purpose, or he could never have withstood the persecutions and dangers he had long to face. “The outlook,” he said, “was an ugly one. I was warned, before I began, by my neighbours that they meant to burn the new distillery to the ground, and me in the heart of it. The Laird of Aberlour presented me with a pair of hair-trigger pistols, and they were never out of my belt for years. I got together three or four stout fellows for servants, armed them with pistols, and let it be known everywhere that I would fight for my place till the last shot. I had a pretty good character as a man of my word, and through watching, by turns, every night for years, we contrived to save the distillery from the fate so freely predicted for it. But I often, both at kirk and market, had rough times of it among the glen people, and if it had not been for the Laird of Aberlour’s pistols I don’t think I should have been telling you this story now.”

In '25 and '26 three more small distilleries were started in the glen; but the smugglers succeeded very soon in frightening away their occupants, none

of whom ventured to hang on a second year in the face of the threats uttered against them. Threats were not the only weapons used. In 1825 a distillery which had just been started at the head of Aberdeenshire, near the banks o' Dee, was burnt to the ground with all its outbuildings and appliances, and the distiller had a very narrow escape of being roasted in his own kiln. The country was in a desperately lawless state at this time. The riding-officers of the Revenue were the mere sport of the smugglers, and nothing was more common than for them to be shown a still at work, and then coolly defied to make a seizure.

Prominent among these active and resourceful men was one Shaw, proprietor of a shebeen on the Shea Water, in the wilds of Mar. Smugglers were free of his shy tavern, which, as a general rule, the gaugers little cared to visit singly. Shaw was alike a man of gigantic size, great strength, and of unscrupulous character, and stuck at little in the furtherance of his illegal projects. But if Shaw was a terror to the average exciseman, George Smith, for his part, was above the average, and feared no man; and so, when overtaken by a storm on one occasion, had little hesitation in seeking the shelter of this ill-omened house. Shaw happened to be away from home at the time, and Smith was received by the hostess, who, some years earlier, before she had married her husband, had been a sweetheart of the man who now sought shelter. The accommodation afforded by the house was scanty, but a bedroom was found for the unexpected guest, and he in due course retired to it. Mrs. Shaw had promised that his natural enemies, the smugglers, should not disturb him, if they returned in the night; but when they did return, later on, Shaw determined that he would at least give the distillery man a fright. Most of them were drunk, and ready for any mischief, and would probably have been prepared even to murder him. Shaw was, however, with all his faults, no little of a humorist, and only wanted his joke at the enemy's expense.

The band marched upstairs solemnly, in spite of some little hiccoughing, and swung into the bedroom, a torch carried by the foremost man throwing a fitful glare around. The door was locked when they had entered, and all gathered in silence round the bed. Shaw then, drawing a great butcher's knife from the recesses of his clothes, brandished it over the affrighted occupant of the bed. "This gully, mon, iss for your powels," said he.

But Smith had not entered this House of Dread without being properly armed, and he had, moreover, taken his pistols to bed with him, and was at that moment holding one in either hand, under the clothes. As Shaw flourished his knife and uttered his alarming threats, he whipped out the one and presented it at Shaw's head, promising him he would shoot him if the whole party did not immediately quit the room; while with the other (the bed lying beside the fireplace) he fired slyly up the chimney, creating a thunderous report and a choking downfall of soot, in midst of which all the smugglers fled except Shaw, who remained, laughing.

Shaw had many smart encounters with the excise, in which he generally managed to get the best of it. The most dramatic of these was probably the exploit that befell when he was captaining a party of smugglers conveying two hundred kegs of whisky from the mountains down to Perth. The time was winter, and snow lay thick on field and fell; but the journey was made in daytime, for they were a numerous band and well armed, and feared no one. But the local Supervisor of Excise had by some means obtained early news of this expedition, and had secured the aid of a detachment of six troopers of the Scots Greys at Coupar-Angus, part of a squadron stationed at Perth. At the head of this little force rode the supervisor. They came in touch with the smugglers at Cairnwell, in the Spittal of Glenshee.

"Gang aff awa' wi' ye, quietly back up the Spittal," exclaimed the supervisor, "and leave the seizure to us."

"Na, faith," replied Shaw; "ye'll get jist what we care to gie!"

"Say ye so?" returned the excise officer hotly. "I'll hae the whole or nane!"

The blood rose in Shaw's head, and swelled out the veins of his temples. "By God," he swore, "I'll shoot every gauger here before ye'll get a drap!"

The supervisor was a small man with a bold spirit. He turned to his cavalry escort with the order "Fire!" and at the same time reached for Shaw's collar, with the exclamation, "Ye've given me the slip often enough, Shaw! Yield now, I've a pistol in each pocket of my breeches."

"Have ye so?" coolly returned the immense and statuesque Shaw, "it's no' lang they'll be there, then!" and with that he laid violent hands upon each pocket and so picked the exciseman bodily out of his saddle, tore out both

pistols and pockets, and then pitched him, as easily as an ordinary man could have done a baby, head over heels into a snow-drift.

Meanwhile, the soldiers had not fired; rightly considering that, as they were so greatly outnumbered, to do so would be only the signal for an affray in which they would surely be worsted. A wordy wrangle then followed, in which the exciseman and the soldiers pointed out that they could not possibly go back empty-handed; and in the end, Shaw and his brother smugglers went their way, leaving four kegs behind, “just out o’ ceeveelity,” and as some sort of salve for the wounded honour of the law and its armed coadjutors.

Not many gaugers were so lion-hearted as this; but one, at least, was even more so. This rash hero one day met two smugglers in a solitary situation. They had a cart loaded up with whisky-kegs, and when the official, unaided, and with no human help near, proposed single-handed to seize their consignment and to arrest them, they must have been as genuinely astonished as ever men have been. The daring man stood there, purposeful of doing his duty, and really in grave danger of his life; but these two smugglers, relishing the humour of the thing, merely descended from their cart, and, seizing him and binding him hand and foot, sat him down in the middle of the road with wrists tied over his knees and a stick through the crook of his legs, in the “trussed fowl” fashion. There, in the middle of the highway, they proposed to leave him; but when he pitifully entreated not to be left there, as he might be run over and killed in the dark, they considerately carried him to the roadside; with saturnine humour remarking that he would probably be starved there instead, before he would be noticed.



SMUGGLERS HIDING GOODS IN A TOMB.

The flood-tide of Government prosecutions of the “sma’ stills” was reached in 1823–5, when an average of one thousand four hundred cases annually was reached. These were variously for actual distilling, or for the illegal possession of malt, for which offence very heavy penalties were exacted.

Preventive men were stationed thickly over the face of the Highlands, the system then employed being the establishment of “Preventive Stations” in important districts, and “Preventive Rides” in less important neighbourhoods. The stations consisted of an officer and one or two men, who were expected by the regulations not to sleep at the station more than six nights in the fortnight. During the other eight days and nights they were to be on outside duty. A ride was a solitary affair, of one exciseman. Placed in authority over the stations were “supervisors,” who had each five stations under his charge, which he was bound to visit once a week.

George Smith, of Glenlivet, already quoted, early found his position desperate. He was a legalised distiller, and paid his covenanted duty to Government, and he rightly considered himself entitled, in return for the

tribute he rendered, to some measure of protection. He therefore petitioned the Lords of the Treasury to that effect; and my lords duly replied, after the manner of such, that the Government would prosecute any who dared molest him. This, however, was not altogether satisfactory from Smith's point of view. He desired rather to be protected from molestation than to be left open to attack and the aggressors to be punished. A dead man derives no satisfaction from the execution of his assassin. Moreover, even the prosecution was uncertain. In Smith's own words, "I cannot say the assurance gave me much ease, for I could see no one in Glenlivet who dared institute such proceedings."

It was necessary for a revenue officer to be almost killed in the execution of his duty before the Government resorted to the force requisite for the support of the civil power. A revenue cutter was stationed in the Moray Firth, with a crew of fifty men, designed to be under the orders of the excise officers in cases of emergency.

But the smugglers were not greatly impressed with this display, and when the excisemen, accompanied with perhaps five-and-twenty sailors, made raids up-country, frequently met them in great gangs of perhaps a hundred and fifty, and recaptured any seizures they had made and adopted so threatening an attitude that the sailors were not infrequently compelled to beat a hasty and undignified retreat. One of these expeditions was into Glenlivet itself, where the smugglers were all Roman Catholics. The excisemen, with this in mind, considered that the best time for a raid would be Monday morning, after the debauch of the Sunday afternoon and night in which the Roman Catholics were wont to indulge; and accordingly, marching out of Elgin town on the Sunday, arrived at Glenlivet at daybreak. At the time of their arrival the glen was, to all appearance, deserted, and their coming unnoticed, and the sight of the peat-reek rising in the still air from some forty or fifty "sma' stills" rejoiced their hearts.

But they presently discovered that their arrival had not only been observed but foreseen, for the whole country-side was up, and several hundred men, women, and children were assembled on the hill-sides to bid active defiance to them. The excisemen keenly desired to bring the affair to a decisive issue, but the thirty seamen who accompanied them had a due amount of discretion, and refused to match their pistols and cutlasses against the

muskets that the smugglers ostentatiously displayed. The party accordingly marched ingloriously back, except indeed those sailors who, having responded too freely to the smugglers' invitation to partake of a "wee drappie," returned gloriously drunk. The excisemen, so unexpectedly baulked of what they had thought their certain prey, ungraciously refused a taste.

This formed the limit of the sorely tried Government's patience, and in 1829 a detachment of regulars was ordered up to Braemar, with the result that smuggling was gradually reduced to less formidable proportions.

The Celtic nature perceives no reason why Governments should confer upon themselves the rights of taxing and inspecting the manufacture of spirits, any more than any other commodity. The matter appears to resolve itself merely into expediency: and the doctrine of expediency we all know to be immoral. The situation was—and is, whether you apply it to spirits or to other articles in general demand—the Government wants revenue, and, seeking it, naturally taxes the most popular articles of public consumption. The producers and the consumers of the articles selected for these imposts just as naturally seek to evade the taxes. This, to the Celtic mind, impatient of control, is the simplest of equations.

About 1886 was the dullest time in the illicit whisky-distilling industry of Scotland, and prosecutions fell to an average of about twenty a year. Since then there has been, as official reports tell us, in the language of officialdom, a "marked recrudescence" of the practice. As Mr. Micawber might explain, in plainer English, "there is—ah—in fact, more whisky made now." Several contributory causes are responsible for this state of things. Firstly, an economical Government reduced the excise establishment; then the price of barley, the raw material, fell; and the veiled rebellion of the crofters in the north induced a more daring and lawless spirit than had been known for generations past. Also, restrictions upon the making of malt—another of the essential constituents from which the spirit is distilled—were at this time removed, and any one who cared might make it freely and without license.

Your true Highlander will not relinquish his "mountain-dew" without a struggle. His forefathers made as much of it as they liked, out of

inexpensive materials, and drank it fresh and raw. No one bought whisky; and a whole clachan would be roaring drunk for a week without a coin having changed hands. Naturally, the descendants of these men—"it wass the fine time they had, whateffer"—dislike the notion of buying their whisky from the grocer and drinking stuff made in up-to-date distilleries. They prefer the heady stuff of the old brae-side pot-still, with a rasp on it like sulphuric acid and a consequent feeling as though one had swallowed lighted petroleum: stuff with a headache for the Southerner in every drop, not like the tamed and subdued creature that whisky-merchants assure their customers has not got a headache in a hogshead.

The time-honoured brae-side manner of brewing whisky is not very abstruse. First find your lonely situation, the lonelier and the more difficult of access, obviously the better. If it is at once lonely and difficult of approach, and at the same time commands good views of such approaches as there are, by so much it is the better. But one very cardinal fact must not be forgotten: the site of the proposed still and its sheltering shieling, or bothy, must have a water-supply, either from a mountain-stream naturally passing, or by an artfully constructed rude system of pipes.

A copper still, just large enough to be carried on a man's back, and a small assortment of mash-tubs, and some pitchers and pannikins, fully furnish such a rustic undertaking.

The first step is to convert your barley into malt; but this is to-day a needless delay and trouble, now that malt can be made entirely without let or hindrance. This was done by steeping the sacks of barley in running water for some forty-eight hours, and then storing the grain underground for a period, until it germinated. The malt thus made was then dried over a rude kiln fired with peats, whose smoke gave the characteristic smoky taste possessed by all this bothy-made stuff.

It was not necessary for the malt to be made on the site of the still, and it was, and is, generally carried to the spot, ready-made for the mash-tubs. The removal of the duty upon malt by Mr. Gladstone, in 1880, was one of that grossly overrated and really amateur statesman's many errors. His career was full of false steps and incompetent bunglings, and the removal of the Malt Tax was but a small example among many Imperial tragedies on a

grand scale of disaster. It put new and vigorous life into whisky-smuggling, as any expert could have foretold; for it was precisely the long operation of converting the barley into malt that formed the illegal distiller's chief difficulty. The time taken, and the process of crushing or bruising the grains, offered some obstacles not easily overcome. The crushing, in particular, was a dangerous process when the possession of unlicensed malt was an offence; for that operation resulted in a very strong and unmistakable odour being given forth, so that no one who happened to be in the neighbourhood when the process was going on could be ignorant of it, while he retained his sense of smell.

Brought ready-made from the clachan to the bothy, the malt was emptied into the mash-tubs to ferment; the tubs placed in charge of a boy or girl, who stirs up the mess with a willow-wand or birch-twigs; while the men themselves are out and about at work on their usual avocations.

Having sufficiently fermented, the next process was to place the malt in the still, over a brisk heat. From the still a crooked spout descends into a tub. This spout has to be constantly cooled by running water, to produce condensation of the vaporised alcohol. Thus we have a second, and even more important, necessity for a neighbouring stream, which often, in conjunction with the indispensable fire, serves the excisemen to locate these stills. If a bothy is so artfully concealed by rocks and turves that it escapes notice, even by the most vigilant eye, amid the rugged hill-sides, the smoke arising from the peat-fire will almost certainly betray it.

The crude spirit thus distilled into the tub is then emptied again into the still, which has been in the meanwhile cleared of the exhausted malt and cleansed, and subjected to a second distilling, over a milder fire, and with a small piece of soap dropped into the liquor to clarify it.

The question of maturing the whisky never enters into the minds of these rustic distillers, who drink it, generally, as soon as made. Very little is now made for sale; but when sold the profit is very large, a capital of twenty-three shillings bringing a return of nine or ten pounds.

But the typical secret whisky-distiller has no commercial instincts. It cannot fairly be said that he has a soul above them, for he is just a shiftless fellow, whose soul is not very apparent in manner or conversation, and

whose only ambition is to procure a sufficiency of “whusky” for self and friends; and a “sufficiency” in his case means a great deal. He has not enough money to buy taxed whisky; and if he had, he would prefer to make his own, for he loves the peat-reek in it, and he thinks “jist naething at a’” of the “puir stuff” that comes from the great distilleries.

He is generally ostensibly by trade a hanger-on to the agricultural or sheep-farming industries, but between his spells of five days at the bothy (for it takes five days to the making of whisky) he is usually to be seen loafing about, aimlessly. Experienced folk can generally tell where such an one has been, and what he has been doing, after his periodical absences, for his eyelids are red with the peat-smoke and his clothes reek with it.



Perhaps the busiest centre of Highland illicit whisky-distilling is now to be located in the Gairloch, but anything in the shape of exact information on so shy a subject is necessarily not obtainable. Between this district and the Outer Hebrides, islands where no stills are to be found, a large secret trade is still believed to exist. Seizures are occasionally made but the policy of

the Inland Revenue authorities is now a broad one, in which the existence of small stills in inconsiderable numbers, although actually known, is officially ignored: the argument being that undue official activity, with the resultant publicity, would defeat itself by advertising the fact of it being so easy to manufacture whisky, leading eventually to the establishment of more stills.

The illegal production of spirits does, in fact, proceed all over Great Britain and Ireland to a far greater extent than generally suspected; and such remote places as the Highlands are nowadays by no means the most favourable situations for the manufacture. Indeed, crowded towns form in these times the most ideal situations. No one in the great cities is in the least interested in what his neighbour is doing, unless what he does constitutes a nuisance: and it is the secret distiller's last thought to obtrude his personality or his doings upon the notice of the neighbours. Secrecy, personal comfort, and conveniences of every kind are better obtained in towns than on inclement brae-sides; and the manufacture and repair of the utensils necessary to the business are effected more quickly, less expensively, and without the prying curiosity of a Highland clachan.

It follows from this long-continued course of illegal distilling that the Highlands are full of tales of how the gaugers were outwitted, and of hairbreadth escapes and curious incidents. Among these is the story of the revengeful postmaster of Kingussie, who, on his return from a journey to Aberlour on a dark and stormy night, called at Dalnashaugh inn, where he proposed to stay an hour or two. The pretty maid of the inn attended diligently to him for awhile, until a posse of some half-dozen gaugers entered, to rest there on their way to Badenoch, where they were due, to make a raid on a number of illicit stills. The son of the postmaster suddenly set with the arrival of these strangers. They were given the parlour, and treated with the best hospitality the house could afford, while he was banished to the kitchen. He was wrathful, for was he not a Government official, equally with these upstarts? But he dissembled his anger, and, as the evening wore on and the maid grew tired, he suggested she had better go to bed, and he would be off by time the moon rose. No sooner had she retired than he took the excisemen's boots, lying in the inglenook to dry, and pitched them into a great pot of water, boiling over the blaze.

When the moon had risen, he duly mounted his pony and set out for Badenoch, where he gave out the news that the gaugers were coming.

The excisemen could not stir from the inn for a considerable time, for their boiled boots refused to be drawn on; and by the time they had been enabled to stretch them and to set out once more on their way, the Badenoch smugglers had made off with all their gear, leaving nothing but empty bothies for inspection. The local historian is silent as to what happened afterwards to the postmaster, the only possible author of this outrage.

A smuggler of Strathdearn was unfortunate in having the excise pouncing suddenly upon him in his bothy, and taking away his only cask of whisky. The hated myrmidons of a Sassenach Government went off with the cask, and were so jealous of their prize that they took it with them to the inn where they were to pass the night. All that evening they sang songs and were merry with a numerous company in an upper room; but even at their merriest they did not forget their capture, and one of their number sat upon it all the time.

It chanced, however, that among these merry fellows were some of the smuggler's friends, who were careful to note exactly the position of the cask. They procured an auger and bored a hole from the room below, through the flooring and into the cask, draining all the whisky away. When the excisemen had come to the end of their jollification, they had only the empty cask for their trouble.

One of the brae-side distillers of Fortingal brought a cart laden with kegs of whisky into Perth, by arrangement with an innkeeper of that town; but the innkeeper refused to pay a fair price.

"Wha will her sell it till, then?" asked the would-be vendor.

The innkeeper, a person of a saturnine humour, mentioned a name and a house, and the man went thither with his cart.

"What is it, my man?" asked the occupier, coming to the door.

"Well, yer honour, 'tis some o' the finest whusky that iver was made up yon, and niver paid the bawbee's worth o' duty."

“D’ye know who I am?” returned the householder. “I’m an officer of excise, and I demand to know who sent you to me.”

The smuggler told him.

“Now,” said the exciseman, “go back to him and sell him your whisky at his own price, and then begone.”

The man did as he was bidden; sold his consignment, and left the town. It was but a few hours afterwards that the innkeeper’s premises were raided by the excise, who seized the whisky and procured a conviction at the next Assizes, where he was heavily fined.

One of the last incidents along the Border, in connection with whisky-smuggling between Scotland and England, occurred after the duty had been considerably lowered. This was a desperate affray which took place on the night of Sunday, January 16th, 1825, at Rockcliffe Cross, five miles from Carlisle on the Wigton road. One Edward Forster, officer of excise, was on duty when he observed a man, whose name, it afterwards appeared, was Charles Gillespie, a labourer, carrying a suspicious object, and challenged him. This resulted in an encounter in which the excise officer’s head was badly cut open. Calling aid of another labourer, who afterwards gave evidence, he remarked that he thought the smuggler had almost done for him, but pursued the man and fired upon him in the dark, with so good an aim that he was mortally wounded, and presently died. It was a dangerous thing in those times for an excise officer to do his duty, and at the inquest held the coroner’s jury returned a verdict of “Murder”; the men who formed the jury being doubtless drawn from a class entirely in sympathy with smuggling, and possibly engaged in it themselves. Forster, evidently expectant of that verdict, did not present himself, and was probably transferred by his superiors to some post far distant. There the affair ends.

About the same time, on the Carlisle and Wigton road, two preventive men at three o’clock in the morning met a man carrying a load, which, when examined, proved to be a keg of spirits. Two other men then came up and bludgeoned the officers, one of whom dropped his cutlass; whereupon a smuggler picked it up, and, attacking him vigorously, cut him over the head. The smugglers then all escaped, leaving behind them two bladders containing eight gallons of whisky.

CHAPTER XV

SOME SMUGGLERS' TRICKS AND EVASIONS—MODERN TOBACCO-SMUGGLING
—SILKS AND LACE—A DOG DETECTIVE—LEGHORN HATS—FOREIGN
WATCHES

THE tricks practised by smugglers other than those daring and resourceful fellows who risked life, limb, and liberty in conflict with the elements and the preventive service, may form, in the narration, an amusing chapter. Smugglers of this kind may be divided, roughly, into three classes. Firstly, we have the ingeniously evasive trade importer in bulk, who resorts to false declarations and deceptive packing and labelling, for the purpose of entering his merchandise duty-free. Secondly, we have the sailors, the firemen of ocean-going steamers, and other persons of like classes, who smuggle tobacco and spirits, not necessarily to a commercial end, in considerable quantities; and thirdly, there are those enterprising holiday-makers and travellers for pleasure who cannot resist the sport.

We read in *The Times* of 1816 that, among the many expedients at that time practised for smuggling goods into France, the following scheme of introducing merchandise into Dieppe had some dexterity. Large stone bottles were procured, and, the bottoms being knocked off, they were then filled with cotton stockings and thread lace. A false bottom was fixed, and, to avoid suspicion, the mouth of each bottle was left open. Any inquiries were met with the statement that the bottles were going to the spirit merchant, to be refilled.



SMUGGLERS ATTACKED. *From a mezzotint after Sir Francis Bourgeois.*

This evasion was successfully carried on until a young man from Brighton ventured on too heavy a speculation. He filled his bottle with ten dozen stockings, which so weighted it that the bottom came off, disclosing the contents.

Ingenuity worthy of a better cause is the characteristic of modern types of smugglers. A constant battle of wits between them and the custom-house officers is in progress at all ports of entry; and the fortunes of either side may be followed with much interest.

One of the most ingenious of such tricks was that of the trader who was importing French kid-gloves. He caused them to be despatched in two cases; one, containing only right-hand gloves, to Folkestone, the other, left-hand only, to London. Being at the time dutiable articles, and the consignee refusing to pay the duty, the two cases were confiscated and their contents in due course sold at auction. No one has a use for odd gloves, and these oddments accordingly in each case realised the merest trifle; but the purchaser—who was of course the consignee himself—netted a very considerable profit over the transaction. The abolition of duty on such articles has, however, rendered a modern repetition of the trick unnecessary. Nor is it any longer likely that foreign watches find their way

to these shores in the old time-honoured style—*i.e.* hung in leather bags round the persons of unassuming travellers.

Such an one, smuggling an unusual number across from Holland, calculated upon the average passage of twenty-four hours, and reckoned he could, for once in a way, endure that spell of waiting and walking about deck without lying down. He could not, as a matter of fact, on account of the watches, afford to lie down. To his dismay, the vessel, midway of the passage, encountered a dense fog, and had occasionally to stop or slow down; and, in the end, it was a forty-eight hours' passage. The unfortunate smuggler could not endure so much, and was obliged to disclose his treasure. So the Revenue scored heavily on that occasion.

Tobacco is still largely smuggled, and is, in fact, the foremost article so treated to-day; the very heavy duty, not less than five times its value, forming a great, and readily understood, temptation. Perhaps the most notable attempt in modern times to smuggle tobacco in bulk was that discovered in 1881.

The custom-house staff in London had for some time before that date become familiar with warning letters sent anonymously, hinting that great quantities of tobacco were continually being conveyed into England from Rotterdam without paying duty, but for a while little notice was taken of these communications; until at length they grew so definite that the officials had no choice but to inquire. Detective officers were accordingly despatched to Rotterdam, to watch the proceedings there, and duly observed the packing of two large marine boilers with tobacco, by hydraulic pressure. They were then shipped aboard a steamer and taken to London, whence they were placed upon the railway at King's Cross, for delivery in the north. A great deal of secret manoeuvring by the custom-house officials and the police resulted in both boilers being seized in London and those responsible for them being secured. It was then discovered that they were only dummy boilers, made expressly for smuggling traffic; and it was further thought that this was by no means the first journey they had made. The parties to this transaction were fined close upon five thousand pounds, and the consignment was confiscated.

To conceal tobacco in hollow loaves of bread, especially made and baked for this purpose, was a common practice, and one not altogether unknown nowadays; while the coal-bunkers, the engine-rooms, and the hundred and one odd corners among the iron plates and girders of modern steamships afford hiding-places not seldom resorted to. The customs officers, who board every vessel entering port, of course discover many of these *caches*, but it is not to be supposed that more than a percentage of them are found.

Smuggled cigars are to-day a mere commonplace of the ordinary custom-house officer's experience with private travellers, and no doubt a great quantity find a secret passage through, in the trading way. For some years there was a considerable import of broomsticks into England from the Continent, and little or no comment was made upon the curious fact of it being worth while to import so inexpensive an article, which could equally well be made here. But the mystery was suddenly dispelled one day when two clerks in a customs warehouse, wearied of a dull afternoon, set to the amusement of playing single-stick with two of these imported broomsticks. No sooner did one broomstick smite upon another in this friendly encounter than they both broke in half, liberating a plentiful shower of very excellent cigars, which had been secreted in the hollowed staves.

Silks formed an important item in the smugglers' trade, and even the gentlemen of that day unconsciously contributed to it, by the use of bandana handkerchiefs, greatly affected by that snuff-taking generation. Huskisson, a thoroughgoing advocate of Free Trade, was addressing the House of Commons on one occasion and declaring that the only possible way to stop smuggling was to abolish, or at any rate to greatly reduce, the duties; when he dramatically instanced the evasions and floutings of the laws.

"Honourable members of this House are well aware that bandana handkerchiefs are prohibited by law, and yet," he continued, drawing one from his pocket, while the House laughed loud with delight, "I have no doubt there is hardly a gentleman here who has not got a bandana handkerchief."

Lace-smuggling, of course, exercised great fascination for the ladies, who—women being generally lacking in the moral sense, or possessing it only in the partial and perverted manner in which it is owned by infants—very rarely could resist the temptation to secrete some on their way home from

foreign parts. The story is told how a lady who had a smuggled lace veil of great value in her possession grew very nervous of being able to carry it through, and imparted her anxiety to a gentleman at the hotel dinner. He offered to take charge of it, as, being a bachelor, no one was in the least likely to suspect him of secreting such an article. But, in the very act of accepting his offer, she chanced to observe a saturnine smile spreading over the countenance of the waiter at her elbow. She instantly suspected a spy, and secretly altered her plans, causing the veil to be sewn up in the back of her husband's waistcoat.

The precaution proved to be a necessary one, for the luggage of the unfortunate bachelor was mercilessly overhauled at every customs station on the remainder of the journey.

Among the many ruses practised upon the preventive men, who, as the butts of innumerable evasive false-pretences, must have been experts in the ways of practical jokes, was that of the pretended drunken smuggler. To divert attention from any pursuit of the main body of the tub-carrying gang, one of their number would be detailed to stagger along, as though under the influence of drink, in a different direction, with a couple of tubs slung over his shoulders. It was a very excellently effective trick, but had the obvious disadvantage of working only once at any one given station. It was the fashion to describe the preventive men as fools, but they were not such crass fools as all that, to be taken in twice by the same simple dodge.

The solitary and apparently intoxicated tub-carrier would lead the pursuers a little way and would then allow himself easily to be caught, but would then make a desperate and prolonged resistance in defence of his tubs. At last, overpowered and the tubs taken from him, and himself escorted to the nearest blockade-station, the tubs themselves would be examined—and would generally be found to contain only sea-water!

The customs men, however, were not without their own bright ideas. The service would scarcely have been barren of imagination unless it were recruited from a specially selected levy of dunderheads. But it was an exceptionally brilliant officer who hit upon the notion of training a puppy for discovering those places where the smugglers had, as a temporary expedient, hidden their spirit-tubs. It would often happen that a successful

run ended at the beach, and that opportunities for conveying the cargo inland had to be waited upon. It would, therefore, be buried in the shingle, or in holes dug in the sands at low water, until a safe opportunity occurred. The customs staff knew this perfectly well, but they necessarily lacked the knowledge of the exact spots where these stores had been made.



SMUGGLERS DEFEATED. *From a miniature after Sir Francis Bouverton.*

The exceptionally imaginative customs officer in question trained a terrier pup to the business of scenting them by the cunning method of bringing the creature up with an acquired taste for alcohol. This he did by mixing the pup's food with spirits, and allowing it to take no food that was not so flavoured. Two things resulted from this novel treatment: the dog's growth was stunted, and it grew up with such a liking for spirits that it would take nothing not freely laced with whisky, rum, gin, or brandy.

The plan of operations with a dog educated into these vicious tastes was simple. When his master found a favourable opportunity for strolling along the shore, in search of buried kegs, the dog, having been deprived of his food the day before, was taken. When poor hungry Tray came to one of these spots, the animal's keen and trained scent instantly detected it, and he would at once begin scratching and barking like mad.

The smugglers were not long in solving the mystery of their secret hoards being all at once so successfully located; and, all too soon for the Revenue,

a well-aimed shot from the cliffs presently cut the dog's career short.

“Perhaps the oddest form of the smuggling carried on in later times,” says a writer in an old magazine, “was a curious practice in vogue between Calais and Dover about 1819–20. This, however, was rather an open and well-known technical evasion of the customs dues than actual smuggling. The fashion at that time came in of ladies wearing Leghorn hats and bonnets of enormous dimensions. They were huge, strong plaits, nearly circular, and commonly about a yard in diameter; and they sold in England at from two to three guineas, and sometimes even more, apiece. A heavy duty was laid upon them, amounting to nearly half their value.

It is a well-known concession, made by the custom-houses of various countries, that wearing-apparel in use is not liable to duty, and herein lay the opportunity of those who were financially interested in the import of Leghorn plaits. A dealer in them hired, at a low figure, a numerous company of women and girls of the poorest class to voyage daily from Dover to Calais and back, and entered into a favourable contract with the owners of one of the steamers for season-tickets for the whole band of them at low rates. The sight of these women leaving the town in the morning with the most deplorable headgear and returning in the evening gloriously arrayed, so far as their heads were concerned, was for some few years a familiar and amusing one to the people of Dover.

Another ingenious evasion was that long practised by the Swiss importers of watches at the time when watches also were subject to duty. An *ad valorem* duty was placed upon them, which was arrived at by the importers making a declaration of their value. In order to prevent the value being fixed too low, and the Revenue being consequently defrauded, the Government had the right of buying any goods they chose, at the prices declared. This was by no means a disregarded right, for the authorities did frequently, in suspicious cases, exercise it, and bought considerable consignments of goods, which were afterwards disposed of by auction, at well-known custom-house sales.

The Swiss makers and importers of watches managed to do a pretty good deal of business with the customs as an unwilling partner, and they did it in a perfectly legitimate way; although a way not altogether without suspicion

of sharp practice. They would follow consignments of goods declared at ordinary prices with others of exactly similar quality, entered at the very lowest possible price, consistent with the making of a trading profit; and the customs officials, noting the glaring discrepancy, would exercise their rights and buy the cheaper lots, thinking to cause the importers a severe loss and thus give them a greatly needed lesson. The watch-manufacturers really desired nothing better, and were cheerfully prepared to learn many such lessons; for they thus secured an immediate purchaser, for cash, and so greatly increased their turnover. Other folks incidentally benefited, for goods sold at customs auctions rarely ever fetched their real value: there were too many keenly interested middlemen about for that to be permitted. Thus, an excellent watch only, as a rule, to be bought for from £14 to £15, could on these occasions often be purchased for £10. Naturally enough, the proprietors of watch and jewellery businesses were the chief bidders at these auctions; and, equally naturally, they usually found means to keep down the prices to themselves, while carefully ensuring that private bidders should be artfully run up.

CHAPTER XVI

COAST BLOCKADE—THE PREVENTIVE WATER-GUARD AND THE COASTGUARD
—OFFICIAL RETURN OF SEIZURES—ESTIMATED LOSS TO THE REVENUE IN
1831—THE SHAM SMUGGLER OF THE SEASIDE—THE MODERN COASTGUARD

THE early coastguardmen had a great deal of popular feeling to contend with. When the coast-blockade was broken up in 1831, and the “Preventive Water-Guard,” as this new body was styled, was formed, officers and men alike found the greatest difficulty in obtaining lodgings. No one would let houses or rooms to the men whose business it was to prevent smuggling, and thus incidentally to take away the excellent livelihood the fisherfolk and longshoremen were earning. Thus, the earliest stations of the coastguard were formed chiefly out of old hulks and other vessels condemned for sea-going purposes, but quite sound, and indeed, often peculiarly comfortable as residences, moored permanently in sheltered creeks, or hauled up, high and dry, on beaches that afforded the best of outlooks upon the sea.

Very few of these primitive coastguard stations are now left. Their place has been pretty generally taken by the neat, if severely unornamental, stations, generally whitewashed, and enclosed within a compound-wall, with which summer visitors to our coasts are familiar. And the old-time prejudice against the men has had plenty of time to die away during the eighty years or so in which the coastguard service has existed. There are still, however, some eleven or twelve old hulks in use as coastguard stations; principally in the estuaries of the Thames and Medway.

The Preventive Water-Guard, from which the existing coastguard service was developed, was not only the old coast-blockade reorganised, but was an extension of it from the shores of Hampshire, Sussex, Kent, and Essex, to the entire coast-line of the United Kingdom. It was manned by sailors from

the Royal Navy, and the stations were commanded by naval lieutenants. Many of the martello towers that had been built at regular intervals along the shores of Kent and Sussex, and some few in Suffolk, in or about 1805, when the terror of foreign invasion was acute, were used for these early coastguard purposes.

That the preventive service did not prevent, and did not at first even seriously interfere with, smuggling, was the contention of many well-informed people, with whom the Press generally sided. The coast-blockade, too, was—perhaps unjustly—said to be altogether inefficient; and was further said, truly enough, to be ruinously costly. Controversy was bitter on these matters. In January 1825 *The Times* recorded the entry of the revenue cutter, *Hawke*, into Portsmouth, after a cruise in which she had chased and failed to capture, owing to heavy weather, a smuggling lugger which successfully ran seven hundred kegs of spirits. To this item of news Lieutenant J. F. Tompson, of H.M.S. *Ramillies*, commanding the coast-blockade at Lancing, took exception, and wrote to *The Times* a violent letter, complaining of the statements, and saying that they were absolutely untrue. To this *The Times* replied, with considerable acerbity, on February 3rd, that the statement was true and the lieutenant's assertions unwarranted. The newspaper then proceeded to "rub it in" vigorously: "There is nothing more ridiculous, in the eyes of those who live upon our sea-coasts, than to witness the tender sensibilities of officers employed upon the coast-blockade whenever a statement is made that a smuggler has succeeded in landing his cargo; as though they formed a part of the most perfect system that can be established for the suppression of smuggling. Now be it known to all England that this is a gross attempt at humbug. Notwithstanding all the unceasing vigilance of the officers and men employed, smuggling is carried on all along the coast, from Deal to Cornwall, to as great a degree as the public require. Any attempt to smuggle *this* FACT may answer the purpose of a party, or a particular system, but it will never obtain belief.

"It was only a few days since that a party of coast-blockade men (we believe belonging to the Tower, No. 61) made common cause with the smugglers, and they walked off altogether!"

Exactly! The sheer madness of the Government in maintaining the extraordinary high duties, and of adding always another force to existing

services, designed to suppress the smugglers' trade, was sufficiently evident to all who would not refuse to see. When commodities in great demand with all classes were weighted with duties so heavy that few persons could afford to purchase those that had passed through His Majesty's Custom-houses, two things might have been foreseen: that the regularised imports would, under the most favourable circumstances, inevitably decrease; and that the smuggling which had already been notoriously increasing by leaps and bounds for a century past would be still further encouraged to supply those articles at a cheap rate, which the Government's policy had rendered unattainable by the majority of people.

An account printed by order of the House of Commons in the beginning of 1825 gave details of all customable commodities seized during the last three years by the various establishments formed for the prevention of smuggling: the Coastguard, or Preventive Water-guard; the Riding-officers; and the revenue cruisers and ships of war.

In that period the following articles were seized and dealt with:

Tobacco	902,684 $\frac{1}{4}$	lb.
Snuff	3,000	,,
Brandy	135,000	gallons.
Rum	253	,,
Gin	227,000	,,
Whisky	10,500	,,
Tea	19,000	lb.
Silk	42,000	yards.
India handkerchiefs	2,100	pieces.
Leghorn hats	23	
Cards	3,600	packs.
Timber	10,000	pieces.
Stills	75	

The cost of making these seizures, and dealing with them, was put as follows:

	£	s.	d.
Law expenses	29,816	19	4¾
Storage, rent of warehouses, etc.	18,875	14	10½
Salaries, cooperage, casks, repairs, etc.	1,533,708	4	10
Rewards to officers, etc.	488,127	2	11½
	£2,070,528	2	0¾

The produce of all these articles sold was £282,541 8s. 5¾d.; showing a loss to the nation, in attempting during that period to suppress smuggling, of considerably over one million and three quarters sterling.

This return of seizures provides an imposing array of figures, but, amazing as those figures are by themselves, they would be still more so if it were possible to place beside them an exact return of the goods successfully run, in spite of blockades and preventive services. Then we should see these figures fade into insignificance beside the enormous bulk of goods that came into the country and paid no dues.

Some very startling figures are available by which the enormous amount of smuggling effected for generations may be guessed. It would be possible to prepare a tabulated form from the various reports of the Board of Customs, setting forth the relation between duty-paid goods and the estimated value of smuggled commodities during a term of years, but as this work is scarce designed to fill the place of a statistical abstract, I will forbear. A few illuminating items, it may be, will suffice.

Thus in 1743 it was calculated that the annual average import of tea through the legitimate channels was 650,000 lb.; but that the total consumption was three times this amount. One Dutch house alone was known to illegally import an annual weight of 500,000 lb.

An even greater amount of spirit-smuggling may legitimately be deduced from the perusal of the foregoing pages, and, although in course of time

considerably abated, as the coastguard and other organisations settled down to their work of prevention and detection, it remained to a late date of very large proportions. Thus the official customs report for 1831 placed the loss to the Revenue on smuggled goods at £800,000 annually. To this amount the item of French brandy contributed £500,000. The annual cost of protecting the Revenue (excise, customs, and preventive service) was at the same time between £700,000 and £800,000.

An interesting detailed statement of the contraband trade in spirits from Roscoff, one of the Brittany ports, shows that, two years later than the above, from March 15th to 17th, 1833, there were shipped to England, per smuggling craft, 850 tubs of brandy; and between April 13th and 20th in the same year 750 tubs; that is to say, 6,400 gallons in little more than one month. And although Roscoff was a prominent port in this trade, it was but one of several.

So late as 1840, forty-eight per cent. of the French silks brought into this country were said to have paid no duty; and for years afterwards silk-smugglers, swathed apoplectically in contraband of this description, formed the early steamship companies' most regular patrons.

The seaside holiday-maker of that age was an easy prey of pretended smugglers, cunning rascals who traded upon that most wide-spread of human failings, the love of a bargain, no matter how illegitimately it may be procured. The lounge on the seaside parades of that time was certain, sooner or later, to be approached by a mysterious figure with an indefinable air of mystery and a semi-nautical rig, who, with many careful glances to right and left, and in a hoarse whisper behind a secretive hand, told a tale of smuggled brandy or cigars, watches or silks. "Not 'arf the price you'd pay for 'em in the shops, guv'nor," the shameless impostor would say, producing a bundle of cigars, "but the real thing; better than them wot most of the shops keep. I see you're a gent. as knows a good smoke. You shall 'ave 'em"—at some preposterously low price. And generally the greenhorn did have them; finding, when he came to smoke the genuine Flor de Cabbage he had bought, that they would have been dear at any price. To that complexion of mean fraud did the old smuggling traditions of courage, adventure, and derring-do come at last!

The modern coastguard, known technically as the First Naval Reserve, is still under Admiralty control, but proposals are, it is understood, now afoot for entirely altering its status, and for reorganising it as a purely civil force, under the orders of the customs and excise authorities. At present the coastguard establishment numbers some 4,200 officers and men, and is understood to cost £260,000 a year. It is not, perhaps, generally understood that the coastguardman is really a man-o'-war's man, attached to a particular ship, and liable at any moment of national emergency to be called to rejoin his ship, and to proceed on active service.

It is not really to be supposed that the coastguard succeed in entirely suppressing smuggling, even in our own times. Few are the articles that are now subject to duty, and the temptation is consequently not now very great. Also, the landing of such goods as tea, tobacco, and spirits in bulk would readily be detected; but smuggling of spirits and of tobacco in small quantities is commercially remunerative while the duties are as high as from 11s. to 17s. a gallon, and from 3s. 6d. to 5s. a pound in respect of tobacco and cigars; while large quantities of that entirely modern article, saccharine, on which there is a duty of one shilling and threepence an ounce (with a minimum legal weight on import of eleven pounds, designed to render clandestine traffic in it difficult), must, in the very nature of things, be illegally introduced.

That there will be a phenomenal increase of smuggling when the inevitable happens and protection of the country's trade against the foreigner is instituted, seems certain. It will seem like old times come again.

THE END

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NOTES.

[66] “Gregory’s Gang” was a noted band of thieves and housebreakers, active about 1730–35. Dick Turpin was at times associated with them. See “Half Hours with the Highwaymen,” vol. ii., p. 177.

[173] “Autobiography of a Cornish Smuggler.” (Gibbings & Co., Ltd., 1900.)

[194] By smuggling, presumably.

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WHILE THE FREETRADERS PASSED.

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CUTTING HIM ACROSS THE EYES AND NOSE,
WHILE HE IS SAYING THE LORD'S PRAYER.
SEVERAL OF THE OTHER SMUGGLERS STANDING BY.

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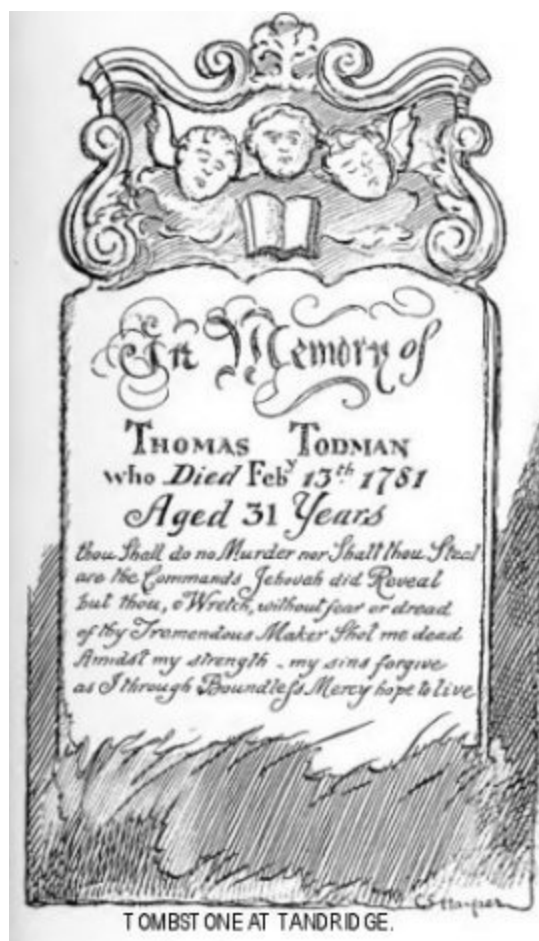
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